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THE NATIONAL ARCHIVES
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# FEDERAL REGISTER
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## TITLE 5—ADMINISTRATIVE PERSONNEL

### Chapter I—Civil Service Commission

PART 25—FEDERAL EMPLOYEES' PAY REGULATIONS

MISCELLANEOUS AMENDMENTS

Effective upon publication in the FEDERAL REGISTER, §§ 25.11 (b), (f) (2), 25.14, 25.15, 25.16, 25.17, 25.18, 25.103 (g) and 25.104 (c) and (d) are revoked, and the following sections are amended: §§ 25.1, 25.11 (d), (e) (5), and (g), 25.12 (a), 25.13 (b), 25.53, 25.102 (b) and (c), 25.103 (b) (1), (c) and (d), and 25.104 (a). These changes are required by the approval on September 1, 1954, of Public Law 763, 83d Congress.

§ 25.1 *Scope.* This subpart applies to each civilian officer or employee in or under the departments as defined in section 201 (a) of the Classification Act of 1949, subject to the exemptions specified in sections 202, 204, and 705 of the act, who meets all of the conditions of eligibility for periodic step-increases.

§ 25.11 *Definitions.* * * *

(d) "Maximum scheduled rate" is the maximum rate of any grade under the CPC or General Schedules established under Title VI of the act, exclusive of rates established under regulations governing longevity step-increases.

(e) "Waiting period" * * *

(5) Service in any other Federal department as defined in section 201 (a) of the act where the employee exercises reemployment rights in accordance with the provisions of Part 10 of this chapter.

* * * * *

(g) "Current performance rating" is the current official performance rating under a performance rating plan which has been approved by the Civil Service Commission.

§ 25.12 *Conditions of eligibility for periodic step-increases.* * * *

(a) That his current performance rating is "Satisfactory" or better.

* * * * *

§ 25.13 *Effective date.* * * *

(b) Any step increase becoming due as the result of retroactive corrective action in accordance with the mandatory provisions of any statute or Commission regulation shall be made effective as of the date the officer or employee would have met all the conditions if proper action had been taken originally.

* * * * *

§ 25.53 *Conditions of eligibility.* Each officer or employee in a permanent position who has completed the required aggregate period shall be granted a longevity step increase for each longevity period completed in his grade, provided his current performance rating is "Satisfactory" or better. The requirement of a performance rating shall be waived for any period of intervening military service. No officer or employee shall be given more than one longevity step increase for any longevity period, or more than three successive longevity step increases.

(Sec. 1101, 63 Stat. 971; 5 U. S. C. 1072. Interpret or apply secs. 701–705, 63 Stat. 967–969, sec. 102, 103, 68 Stat. 1105; 5 U. S. C. 1121–1125)

§ 25.102 *Definitions.* * * *

(b) "Reemployment" is any employment, including reinstatement, or any other type of appointment, subsequent to a separation from the Federal service.

(c) "Transfer" means a change of position by an employee from one agency to another, without a break in service of a full workday.

* * * * *

§ 25.103 *General provisions.* * * *

(b) (1) Subject to the mandatory requirements of paragraph (d) of this section and § 25.104, an employee who is reemployed, transferred, reassigned, promoted, repromoted, or demoted may be paid at any scheduled rate for his grade which does not exceed the employee's highest previous rate. If the employee's highest previous rate falls between two scheduled rates of the new grade, he may be given the higher rate. If the employee's existing rate of basic compensation is less than the minimum scheduled rate of the new grade, his compensation shall be increased to the minimum rate. An employee whose type of appointment is changed in the same position may continue to be paid at his existing rate or may be paid at any higher scheduled rate for his grade which does not exceed his highest previous rate; and if his highest previous rate falls between two scheduled rates of the grade, he may be given the higher rate.

* * * * *

(c) An employee who had earned a rate above the maximum scheduled rate

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FEDERAL REGISTER

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**(For use during 1955)**

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**Title 7: Parts 210–899 ($2.50)**

**Title 15 ($1.25)**

**Title 26: Parts 80–169 ($0.50)**

**Title 26: Part 300 to end and Title 27 ($1.25)**

**Title 50 ($0.55)**

Previously announced: Title 3, 1954 Supp. ($1.75); Title 7: Parts 1–209 ($0.60); Part 900 to end ($2.25); Title 8 ($0.45); Title 9 ($0.65); Titles 10–13 ($0.50); Title 14: Parts 1–399 ($2.25); Part 400 to end ($0.65); Title 16 ($1.25); Title 17 ($0.55); Title 18 ($0.50); Title 19 ($0.40); Title 20 ($0.75); Titles 22–23 ($0.75); Title 24 ($0.75); Title 25 ($0.50); Titles 28–29 ($1.25); Titles 30–31 ($1.25); Title 32A, Revised December 31, 1954 ($1.50); Titles 35–37 ($0.75); Title 38 ($2.00); Titles 40–42 ($0.50); Titles 44–45 ($0.75); Title 49: Parts 1–70 ($0.60); Parts 71–90 ($0.75); Parts 91–164 ($0.50); Part 165 to end ($0.60)

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of his grade as the result of one or more longevity step increases in the same or higher grade, may, at the discretion of the department, be given any scheduled rate of his grade, or a comparable step above the maximum rate for his grade, when he is reemployed or transferred in the same or a lower grade or reassigned, repromoted or demoted.

(d) Where an employee occupies a position not subject to the Classification Act, and the employee together with his position is initially brought under the Classification Act of 1949, as amended, pursuant to a Reorganization Act or other legislation, an Executive order of the President, or a decision of the Civil Service Commission under section 203 of the Classification Act of 1949, as amended, the employee's rate of basic compensation shall be determined as follows:

(1) If the employee is receiving a rate of basic compensation less than the minimum scheduled rate of the grade in which his position is placed, his compensation shall be increased to the minimum rate.

(2) If the employee is receiving a rate of basic compensation equal to a scheduled rate of the grade in which his position is placed, his compensation shall be fixed at such scheduled rate.

(3) If the employee is receiving a rate of basic compensation at a rate between two scheduled rates of the grade in which his position is placed, his compensation shall be fixed at the higher of the two rates.

(4) If the employee is receiving a rate of basic compensation in excess of the maximum scheduled rate of the grade in which his position is placed, he shall continue to receive basic compensation without change in rate until he leaves such position or until he is entitled to receive basic compensation at a higher rate by reason of the operation of the Classification Act of 1949, as amended.

(5) After his salary rate has been initially established, an employee may subsequently receive increases in compensation by reason of the operation of Title V, Title VII, or section 802 (b) of Title VIII of the Classification Act of 1949, as amended. An employee whose salary was initially established under the foregoing provisions of this subsection and whose position is later changed to a lower grade without material change of duties and responsibilities, shall be paid at the rate he received immediately prior to the date his position became subject to the act (as increased by section 1 (b) 2 (b) of Public Law 201, 82d Congress, or any similar statutory provision) or at any higher rate authorized by other provisions of this section.

(6) An employee may continue to receive a rate fixed above the maximum scheduled rate of his grade under subparagraph (4) or (5) of this paragraph or under any applicable provision of law so long as he continues to occupy the same position, but the rate of basic compensation of a subsequent appointee to such position shall be fixed in accordance with the other applicable provisions in this subpart.

* * * * *

§ 25.104 *Special provisions.* (a) An employee promoted, repromoted or transferred to a higher grade between Classification Act positions or grades shall receive basic compensation at the lowest rate of such higher grade which exceeds his existing rate of basic compensation by not less than one-step increase of the grade from which he is transferred or promoted, unless a higher rate is authorized under the provisions of § 25.103 (b) or (c). However, if a special minimum rate has been established under § 25.105 for the class of positions, the employee will not receive less than the special minimum pay rate. If there is no rate in such higher grade which is at least a one-step increase above his existing rate of basic compensation, he shall receive the maximum scheduled rate of such higher grade, or his existing rate, whichever is the higher.

* * * * *

(Sec. 1101, 63 Stat. 971; 5 U. S. C. 1072. Interpret or apply secs. 801, 802, 63 Stat. 969, sec. 803, 68 Stat. 1106; 5 U. S. C. 1131–1133)

UNITED STATES CIVIL SERVICE COMMISSION,
[SEAL] WM. C. HULL,
*Executive Assistant.*

[F. R. Doc. 55–5506; Filed, July 7, 1955; 8:52 a. m.]

# TITLE 9—ANIMALS AND ANIMAL PRODUCTS

## Chapter I—Agricultural Research Service, Department of Agriculture

### Subchapter C—Interstate Transportation of Animals and Poultry

[B. A. I. Order 383, Revised, Amdt. 57]

### PART 76—HOG CHOLERA, SWINE PLAGUE, AND OTHER COMMUNICABLE SWINE DISEASES

### SUBPART B—VESICULAR EXANTHEMA

#### CHANGES IN AREAS QUARANTINED

Pursuant to the provisions of sections 1 and 3 of the act of March 3, 1905, as amended (21 U. S. C. 123, 125), sections 1 and 2 of the act of February 2, 1903, as amended (21 U. S. C. 111–113, 120), and section 7 of the act of May 29, 1884, as amended (21 U. S. C. 117), § 76.27, as amended, Subpart B, Part 76, Title 9, Code of Federal Regulations (20 F. R. 2881, 2973, 3499, 3931, 4397), which contains a notice with respect to the States in which swine are affected with vesicular exanthema, a contagious, infectious, and communicable disease, and which quarantines certain areas in such States because of said disease, is hereby further amended in the following respects:

1. A new subdivision (xii) is added to subparagraph (8) of paragraph (d), relating to Gloucester County, in New Jersey, to read:

(xii) That part of Washington Township lying southeast of Ganttown Road, west of Black Horse Pike and Fries Mill Road, and northeast of the Fairview-Cross Keys Road and the Hurffville-Cross Keys Road.

2. A new subdivision (vii) is added to subparagraph (11) of paragraph (d), relating to Monmouth County, in New Jersey, to read:

(vii) That part of Upper Freehold Township and Millstone Township lying north of County Route No. 537, west of Noah Hunt Road, south of County Route No. 526, and east of Red Valley-Monmouth Road.

3. A new subdivision (vii) is added to subparagraph (5) of paragraph (d), relating to Hudson County, in New Jersey, to read:

(vii) Lots 1, 2, and 3, in Block 125, in the town of Secaucus, owned and operated by Adam Zengel Estate.

*Effective date.* The foregoing amendment shall become effective upon issuance.

The amendment excludes certain areas in New Jersey from the areas heretofore quarantined because of vesicular exanthema. Hereafter, the restrictions pertaining to the interstate movement of swine, and carcasses, parts and offal of swine, from or through quarantined areas, contained in 9 CFR, 1954 Supp., Part 76, Subpart B, as amended, will not apply to such areas. However, the restrictions pertaining to such movement from nonquarantined areas, contained in said Subpart B, as amended, will apply thereto.

The amendment relieves certain restrictions presently imposed, and must be made effective immediately to be of maximum benefit to persons subject to

the restrictions which are relieved. Accordingly, under section 4 of the Administrative Procedure Act (5 U. S. C. 1003), it is found upon good cause that notice and other public procedure with respect to the amendment are impracticable and contrary to the public interest, and the amendment may be made effective less than 30 days after publication in the FEDERAL REGISTER.

(Sec. 2, 32 Stat. 792, as amended; 21 U. S. C. 111. Interprets or applies secs. 4, 5, 23 Stat. 32, sec. 1, 32 Stat. 791; 21 U. S. C. 120)

Done at Washington, D. C., this 1st day of July 1955.

[SEAL] M. R. CLARKSON,
*Acting Administrator,*
*Agricultural Research Service.*

[F. R. Doc. 55-5532; Filed, July 7, 1955; 8:57 a. m.]

## TITLE 7—AGRICULTURE

### Chapter I—Agricultural Marketing Service (Standards, Inspections, Marketing Practices), Department of Agriculture

**Subchapter C—Regulations and Standards Under the Farm Products Inspection Act**

PART 51—FRUITS, VEGETABLES AND OTHER PRODUCTS (INSPECTION, CERTIFICATION AND STANDARDS)[1]

BASIS FOR CHARGES; FEES FOR APPEAL INSPECTIONS

Under the authority conferred by the provisions in the Agricultural Marketing Act of 1946 (60 Stat. 1087; 7 U. S. C. 1621 et seq.), for the investigation and certification of the class, quality, and condition of agricultural commodities and food products and products containing agricultural commodities or derivatives thereof, §§ 51.37 and 51.40 of the regulations governing the inspection and certification of fruits, vegetables and other products (§§ 51.1 through 51.51) is hereby amended to become effective July 18, 1955.

The amendment is as follows:

1. Delete § 51.37 *Basis for charges* and insert in lieu thereof the following:

§ 51.37 *Basis for charges* (a) The fee for each lot of products inspected by a salaried inspector acting exclusively for the Department of Agriculture, except for peanuts, pecans and other nuts, shall be on the following basis: For an inspection covering quality and condition $10.00 when the quantity involved is more than one-half of a carload of the customary size for such products in the area from which shipped but not more than a full carload, and $6.60 when the quantity involved is not more than one-half of such carload, but the maximum fee for any carload not exceeding the customary size which contains more than one kind of a product shall be $20.00. For an inspection covering condition-only, $8.00 when the quantity involved is more than one-half of carload of the customary size for such products in the area from which shipped but not more than a full carload, and $5.40 when the quantity involved is not more than one-half of such carload, but the maximum fee for condition-only inspection of any carload not exceeding the customary size which contains more than one kind of a product shall be $16.00.

(b) For each lot of peanuts, pecans, or other nuts inspected, except pursuant to the provisions in § 51.19, the fee shall be $14.00 when the quantity involved is not more than a full carload: *Provided,* That the different grades and varieties of peanuts shall be considered separate lots and the fee for farmers' stock peanuts (unshelled) shall be $1.50 per ton.

(c) When any lot involved is in excess of a carload the quantity shall be calculated in terms of carloads and fractions thereof of the customary size for such carloads and carload rates aforesaid applied: *Provided,* That said fractions shall be calculated in terms of fourths or next higher fourths. When inspections are made on which formal certificates are not issued, as provided in § 51.19, or when the products inspected cannot readily be calculated in terms of carlots, or when the services rendered are such that a charge on the carlot basis would be inadequate or inequitable, charges for inspection may be based on the time consumed by the inspector in connection with such inspections, computed at the rate of $4.00 per hour, or the charges may be based upon the number of pounds or number of containers in the lot inspected, if such charges are in substantial conformity with the hourly or carload rate.

2. Delete § 51.40 *Fees for appeal inspections* and insert in lieu thereof the following:

§ 51.40 *Fees for appeal inspections.* Fees for appeal inspections on all products shall be at the same rate as those set forth in § 51.37, except that when it is found that there was a material error in the determination based upon the original inspection no fee will be charged, and except that appeal inspection for Government agencies shall be on the hourly basis prescribed in § 51.37, plus traveling and other expenses authorized to be charged by the provisions in § 51.41.

The amendment revises the fees for terminal inspection made necessary in view of recent legislation increasing the salaries of Federal employees.

It is hereby found that it would be impracticable and contrary to the public interest to give preliminary notice and engage in public rule making procedures with respect to this amendment or to postpone the effective date of the amendment until thirty (30) days after publication in the FEDERAL REGISTER for the reasons that (1) recent legislation authorizes increased salaries for Federal employees which will result in increased cost of service; (2) increased costs of performing the services will be effective retroactive to March 13, 1955; and (3) services provided herein are permissive and the industry does not require additional time in order to comply with this amendment.

(Sec. 205, 60 Stat. 1090; 7 U. S. C. 1624)

Done at Washington, D. C., this 5th day of July 1955.

[SEAL] ROY W. LENNARTSON,
*Deputy Administrator,*
*Marketing Services.*

[F. R. Doc. 55-5529; Filed, July 7, 1955; 8:56 a. m.]

PART 52—PROCESSED FRUITS AND VEGETABLES, PROCESSED PRODUCTS THEREOF, AND CERTAIN OTHER PROCESSED FOOD PRODUCTS[1]

SUBPART—REGULATIONS GOVERNING INSPECTION AND CERTIFICATION

MISCELLANEOUS AMENDMENTS

Pursuant to the Agricultural Marketing Act of 1946 (60 Stat. 1087 et seq., 7 U. S. C. 1621 et seq.) and by virtue of the authority vested in me by the Secretary of Agriculture, existing regulations governing the inspection and certification of processed fruits and vegetables, processed products thereof, and certain other processed food products (§§ 52.1 to 52.87) are amended as hereinafter set forth.

Such regulations are hereby amended, effective 10 days after their publication in the FEDERAL REGISTER, as follows:

1. Delete § 52.41 *Payment of fees and charges* and insert in lieu thereof the following:

§ 52.41 *Payment of fees and charges.* Fees and charges for any inspection service shall be paid by the interested party making the application for such service, in accordance with the applicable provisions of the regulations in this part, and, if so required by the person in charge of the office of inspection serving the area where the services are to be performed, an advance of funds prior to rendering inspection service in an amount suitable to the Administrator, or a surety bond suitable to the Administrator, may be required as a guarantee of payment for the services rendered. All fees and charges for any inspection service performed pursuant to the regulations in this part shall be paid by check, draft, or money order payable to the Agricultural Marketing Service and remitted to the office of inspection serving the area in which the services are performed, within ten (10) days from the date of billing, unless otherwise specified in a contract between the applicant and the Administrator, in which latter event the contract provisions shall apply.

2. Delete § 52.42 *Schedule of fees* and insert in lieu thereof the following:

§ 52.42 *Schedule of fees.* (a) Unless otherwise provided in a written agreement between the applicant and the Administrator, the fees to be charged and collected for any inspection service performed under the regulations in this

[1] Among such other products are the following: Raw nuts; Christmas trees and greens; flowers and flower bulbs; and onion sets.

[1] Among such other processed food products are the following: Honey; molasses, except for stockfeed; nuts and nut products, except oil; sugar (cane, beet and maple); sirups (blended), sirups, except from grain; marine food products, except oil.

part at the request of the United States, or any agency or instrumentality thereof, shall be at the rate of $4.50 per hour.

(b) Unless otherwise provided in the regulations in this part, the fees to be charged and collected for any inspection service performed under the regulations in this part shall be based on the applicable rates specified in this section.[1]

(1) *Canned fruits and vegetables and canned fruit and vegetable products, including pickles, relishes, jams, jellies, marmalades, and concentrates; and other canned processed food products, such as peanut butter, honey, and maple sirup.*

OFFICIALLY DRAWN SAMPLES

For each lot packed in containers of a volume not exceeding that of a No. 12 size can (603 x 812) except canned pineapple and canned pineapple juice inspected in Puerto Rico:

| | |
|---|---|
| Minimum fee for 600 cases or less | [2] $9.00 |
| For each additional 100 cases, or fraction thereof, in excess of 600 cases but not in excess of 10,000 cases | [2] 1.00 |
| For each additional 100 cases, or fraction thereof, in excess of 10,000 cases | [2] .80 |

For each lot of canned pineapple and canned pineapple juice inspected in Puerto Rico:

| | |
|---|---|
| The fee for each case of 24 containers or less | $0.015 |
| The fee for each case of more than 24 containers | .020 |
| The minimum fee for any lot | 6.00 |

For each lot of honey packed in containers of a volume exceeding that of a No. 12 size can (603 x 812), the fee for sampling and inspecting the samples shall be in accordance with the following schedule:

| | |
|---|---|
| (a) For sampling the honey, including travel time, per hour | $4.50 |
| (b) For inspection—each sample | .75 |
| (c) For liquefying crystallized or partially crystallized honey for any one applicant at any one time—each group of 15 samples or fraction thereof | 4.50 |
| (d) Minimum fee for any lot | 9.00 |

UNOFFICIALLY DRAWN SAMPLES

For containers of a volume not exceeding that of a No. 3 size can (404 x 414):

| | |
|---|---|
| Minimum fee for 4 containers or less | $4.50 |
| For each additional container in excess of 4 containers | 1.00 |

For containers of a volume exceeding that of a No. 3 size can (404 x 414), but not exceeding that of a No. 12 size can (603 x 812):

| | |
|---|---|
| Minimum fee for 2 containers or less | $4.50 |
| For each additional container in excess of 2 containers | 2.00 |

(2) *Frozen fruits and vegetables and frozen fruit and vegetable products.*

OFFICIALLY DRAWN SAMPLES

For each lot other than frozen corn-on-the-cob or when inspected in Puerto Rico:

| | |
|---|---|
| Minimum fee for 10,000 pounds or less | [3] $9.00 |
| For each additional 5,000 pounds or fraction thereof, in excess of 10,000 pounds but not in excess of 100,000 pounds | [3] 2.50 |
| For each additional 5,000 pounds, or fraction thereof, in excess of 100,000 pounds | [3] 2.00 |
| For each lot inspected in Puerto Rico: | |
| Minimum fee for 10,000 pounds or less | 9.00 |
| For each additional 5,000 pounds, or fraction thereof, in excess of 10,000 pounds | 2.50 |
| For each lot of frozen corn-on-the-cob: | |
| Minimum fee for 1,500 dozen ears or less | [4] 9.00 |
| For each additional 1,000 dozen ears, or fraction thereof, in excess of 1,500 dozen ears but not exceeding 15,000 dozen ears | [4] 2.50 |
| For each additional 1,000 dozen ears, or fraction thereof, in excess of 15,000 dozen ears | [4] 2.00 |

UNOFFICIALLY DRAWN SAMPLES

| | |
|---|---|
| Minimum fee for 2 samples or less of any type or weight | $4.50 |
| For each additional sample in excess of 2 samples | 2.00 |

(3) *Dried fruits other than figs and dates.*

OFFICIALLY DRAWN SAMPLES

Each lot:

| | |
|---|---|
| Minimum fee for 12,000 pounds or less | $9.00 |
| For each additional 2,000 pounds, or fraction thereof, in excess of 12,000 pounds | .70 |

UNOFFICIALLY DRAWN SAMPLES

| | |
|---|---|
| Each sample | 4.50 |

(4) *Dried figs and dates.*

OFFICIALLY DRAWN SAMPLES

Each lot:

| | |
|---|---|
| Minimum fee for 8,000 pounds or less | $9.00 |
| For each additional 2,000 pounds, or fraction thereof, in excess of 8,000 pounds | 2.00 |

UNOFFICIALLY DRAWN SAMPLES

| | |
|---|---|
| Each sample | 4.50 |

(5) *Edible sugarcane, molasses, sugarcane sirup, and refiners sirup.*

OFFICIALLY AND UNOFFICIALLY DRAWN SAMPLES

The total fee for sampling and inspection of samples shall be in accordance with the following schedule:

| | |
|---|---|
| (a) For sampling the product, including travel time, per hour | $4.50 |
| (b) For inspecting—each sample | $1.00 |
| (c) For complete chemical analyses required to determine grade: | |
| First analysis | 25.00 |
| Each additional analysis for one applicant at one time | 12.00 |

(6) *Other processed food products.* The fee to be charged and collected for the inspection of any processed product not included in subparagraphs (1), (2), (3), (4), and (5) of this paragraph shall be at the rate of $4.50 per hour for the time consumed by the inspector in making the inspection, including the time consumed in sampling by the inspector or licensed sampler: *Provided*, That, fees for sampling time will not be assessed by the office of inspection when such fees have been assessed and collected directly from the applicant by a licensed sampler.

3. Delete § 52.44 *Inspection fees when charges for sampling have been collected by a licensed sampler* and insert in lieu thereof the following:

§ 52.44 *Inspection fees when charges for sampling have been collected by a licensed sampler.* For each lot of processed products from which samples have been drawn by a licensed sampler and with respect to which the sampling fee has been collected by the licensed sampler, the fee to be charged for the inspection shall be 75 percent of the fee provided in this part applicable to the respective processed product: *Provided*, That, if the fee charged for the inspection service is based on the hourly rate of charge, the fee shall be at the rate of $4.50 per hour prescribed in this part.

4. Delete § 52.45 *Inspection fees when charges for sampling have not been collected by a licensed sampler* and insert in lieu thereof the following:

§ 52.45 *Inspection fees when charges for sampling have not been collected by a licensed sampler.* For each lot of processed products from which samples have been drawn by a licensed sampler, and with respect to which the sampling fee has not been collected by the licensed sampler, the fee to be charged for the inspection shall be 75 percent of the fee as prescribed in this part, plus a reasonable charge to cover the cost of sampling as may be determined by the Administrator: *Provided*, That, if the fee charged is based on the hourly rate, the fee shall be at the rate of $4.50 per hour prescribed in this part, plus a reasonable charge to cover the cost of sampling, as determined by the Administrator.

5. Delete § 52.47 *Charges for micro, chemical, and certain other special analyses* and insert in lieu thereof the following:

§ 52.47 *Charges for micro, chemical, and certain other special analyses.* (a) The following charges shall be made for micro, chemical, and certain other special analyses which may be requested by the applicant or required by the inspector to determine the quality or condition of the processed product: [2]

[1] The fees specified in this section are exclusive of charges for such micro, chemical and certain other special analyses, other than salt and acidity by direct titration, soluble solids (by refractometer) or total solids (by refractometer), which may be requested by the applicant or required by the inspector to determine the quality or condition of the processed product.

[2] However, the fee for any additional lots of 200 cases or less which are offered for inspection by the same applicant at the same time and which are available for inspection at the same time and place shall be $6.75.

[3] However, the fee for any additional lots of 1,500 pounds or less which are offered for inspection by the same applicant at the same time and which are available for inspection at the same time and place shall be $6.75.

[4] However, the fee for any additional lots of 250 dozen or less which are offered for inspection by the same applicant at the same time and which are available for inspection at the same time and place shall be $6.75.

[2] When any of these analyses are made at the request of an applicant and are not in connection with an inspection to determine the quality or condition of the product, the listed fees shall be increased by 30 percent.

| Type of analysis | For first analysis | For each additional analysis |
|---|---|---|
| Mold count | $1.50 | $1.50 |
| Worm larvae and insect fragment count | 3.00 | 3.00 |
| Fly egg and maggot count | 3.00 | 3.00 |
| Alcohol insoluble solids | 5.00 | 3.00 |
| Alcohol (distillation and specific gravity) | 9.00 | 5.00 |
| Ascorbic acid (vitamin C) | 9.00 | 2.00 |
| Total ash (carbonated or sulfated) | 5.00 | 3.00 |
| Ash, acid insoluble | 6.00 | 3.00 |
| Ash, water soluble or water insoluble | 6.00 | 3.00 |
| Ash, NaCl free (approximate method—total ash less NaCl) | 9.00 | 3.00 |
| Ash, NaCl free ($P_2O_5$ x 2) | 15.00 | 6.00 |
| Catalase test | 3.00 | 1.50 |
| Crude fiber | 12.00 | 6.00 |
| Diastase test for honey (AOAC method) | 6.00 | 3.00 |
| Ether extract (crude fat) | 9.00 | 5.00 |
| Fat (acid hydrolysis) | 9.00 | 6.00 |
| Fiber (green and wax bean) | 6.00 | 3.00 |
| Iodine number | 9.00 | 4.50 |
| Moisture (air oven method) | 3.00 | 3.00 |
| Moisture (vacuum oven method) | 3.00 | 3.00 |
| Nitrogen or crude protein | 9.00 | 3.00 |
| Non-volatile ether extract | 9.00 | 4.50 |
| Oil of lemon and orange extract (precipitation method) | 5.00 | 3.00 |
| Oil of lemon with oil base (distillation method) | 5.00 | 4.00 |
| Phosphorous pentoxide ($P_2O_5$) | 15.00 | 6.00 |
| Potash ($K_2O$) | 15.00 | 6.00 |
| Phosphorous pentoxide ($P_2O_5$) and aluminum trioxide ($Al_2O_3$) | 18.00 | 12.00 |
| Recoverable oil | 3.00 | 2.00 |
| Peroxidase test (frozen vegetables) | 4.50 | 3.00 |
| Reducing sugars | 12.00 | 6.00 |
| Reducing sugars plus sucrose | 18.00 | 12.00 |
| Sucrose (direct polarization) | 6.00 | 3.00 |
| Sucrose (chemical methods) | 18.00 | 12.00 |
| Starch or carbohydrates (direct hydrolysis) | 18.00 | 9.00 |
| Sulphur dioxide (direct titration) | 5.00 | 3.00 |
| Sulphur dioxide (distillation method) | 9.00 | 5.00 |
| Total solids (drying method) | 3.00 | 3.00 |
| Vanillin and coumarin | 12.00 | 9.00 |
| Volatile and non-volatile ether extract | 10.00 | 6.00 |
| Water extract | 5.00 | 5.00 |
| Water-insoluble-inorganic-residue (peanut butter) | 9.00 | 4.50 |
| Water-insoluble-inorganic-residue, filth analysis, and particle count (peanut butter) | 13.50 | 9.00 |

(b) The following charges shall be made for analyses which are requested by an applicant and are not in connection with an inspection to determine the quality or condition of the product: [2]

| Type of analysis | For first analysis | For each additional analysis |
|---|---|---|
| Brix readings (refractometric or spindle) | $3.00 | $1.00 |
| Brix readings (double dilution) | 3.00 | 2.00 |
| Total acidity (direct titration) | 3.00 | 1.00 |
| Free fatty acids | 4.50 | 1.50 |
| Salt (NaCl)—direct titration | 4.50 | 1.50 |
| Soluble solids (refractometric method) | 3.00 | 1.00 |
| Total solids (refractometric method) | 3.00 | 1.00 |
| Color determination of extracted honey | 3.00 | 1.00 |
| Color determination of sugarcane molasses or sugarcane sirup | 4.50 | 1.50 |

6. Delete § 52.48 *When charges are to be based on hourly rate not otherwise provided for in this part* and insert in lieu thereof the following:

§ 52.48 *When charges are to be based on hourly rate not otherwise provided for in this part.* When inspection is for condition only or when inspection services or related services are rendered and formal certificates are not issued or when the services rendered are such that charges based upon the foregoing sections would be inadequate or inequitable, charges may be based on the time consumed by the inspector in performance of such inspection service at the rate of $4.50 per hour.

7. Delete § 52.49 *Fees for score sheets* and insert in lieu thereof the following:

§ 52.49 *Fees for score sheets.* If the applicant for inspection service requests score sheets showing in detail the inspection of each container or sample inspected and listed thereon, such score sheets may be furnished by the inspector in charge of the office of inspection serving the area where the inspection was performed; and such applicant shall be charged at the rate of $2.25 for each twelve samples, or fraction thereof, inspected and listed on such score sheets.

8. Delete § 52.50 *Fees for additional copies of inspection certificates* and insert in lieu thereof the following:

§ 52.50 *Fees for additional copies of inspection certificates.* Additional copies of any inspection certificate other than those provided for in § 52.21, may be supplied to any interested party upon payment of a fee of $2.25 for each set of five (5) or fewer copies.

9. Delete § 52.52 *Charges for inspection service on a contract basis* and insert in lieu thereof the following:

§ 52.52 *Charges for inspection service on a contract basis.* (a) Irrespective of fees and charges prescribed in foregoing sections, the Administrator may enter into contracts with applicants to perform continuous inspection services or other inspection services pursuant to the regulations in this part and other requirements as prescribed by the Administrator in such contract, and the charges for such inspection service provided in such contracts shall be on such basis as will reimburse the Agricultural Marketing Service of the Department for the full cost of rendering such inspection service including an appropriate overhead charge to cover as nearly as practicable administrative overhead expenses as may be determined by the Administrator.

(b) No Member of, or Delegate to Congress, or Resident Commissioner, shall be admitted to any share or part of any contract provided for in this section or to any benefit that may arise therefrom, but this provision shall not be construed to extend to such contract if made with a corporation for its general benefit, and shall not extend to any benefits that may accrue from the contract to a Member of, or Delegate to Congress, or a Resident Commissioner in his capacity as a farmer.

Notice of proposed rule making, public procedure thereon, and delaying of the making of this document effective later than 10 days after publication (see section 4 of the Administrative Procedure Act; 5 U. S. C. 1001 et seq.) are impractical, unnecessary, and contrary to the public interest because (1) the fees to be charged for the service are required by the statutes authorizing the service to be "reasonable and as nearly as may be to cover the cost of the service rendered." The determination of such costs depends upon facts wholly within the knowledge of the United States Department of Agriculture; (2) recent legislation authorizing increased salary payments and other costs are currently in effect; (3) delay in making effective the increased fees would result in an increasing deficit in proportion to the length of delay; and (4) the services provided herein are permissive and the industry does not require additional time in order to comply with these amendments.

(Sec. 205, 60 Stat. 1090; 7 U. S. C. 1624)

Dated: July 5, 1955.

[SEAL] ROY W. LENNARTSON,
*Deputy Administrator,*
*Marketing Services.*

[F. R. Doc. 55-5523; Filed, July 7, 1955; 8:54 a. m.]

[2] When these analyses are made in connection with an inspection to determine the quality or condition of the product no fee shall be charged for the analyses.

## Chapter IX—Agricultural Marketing Service (Marketing Agreements and Orders), Department of Agriculture

[Plum Order 12]

### PART 936—FRESH BARTLETT PEARS, PLUMS, AND ELBERTA PEACHES GROWN IN CALIFORNIA

#### REGULATION BY GRADES AND SIZES

§ 936.511 *Plum Order 12*—(a) *Findings.* (1) Pursuant to the marketing agreement, as amended, and Order No. 36, as amended (7 CFR Part 936), regulating the handling of fresh Bartlett pears, plums, and Elberta peaches grown in the State of California, effective under the applicable provisions of the Agricultural Marketing Agreement Act of 1937, as amended, and upon the basis of the recommendations of the Plum Commodity Committee, established under the aforesaid amended marketing agreement and order, and upon other available information, it is hereby found that the limitation of shipments of plums of the variety hereinafter set forth, and in the manner herein provided, will tend to effectuate the declared policy of the act.

(2) It is hereby further found that it is impracticable and contrary to the public interest to give preliminary notice, engage in public rule-making procedure, and postpone the effective date of this section until 30 days after publication thereof in the FEDERAL REGISTER (60 Stat. 237; 5 U. S. C. 1001 et seq.) in that, as hereinafter set forth, the time intervening between the date when information upon which this section is based became available and the time when this section must become effective in order to effectuate the declared policy of the act is insufficient; a reasonable time is permitted, under the circumstances, for preparation for such effective time; and good cause exists for making the provisions of this section effective not later than July 9, 1955. A reasonable determination as to the supply of, and the demand for, such plums must await the development of the crop thereof, and adequate information thereon was not

available to the Plum Commodity Committee until June 30, 1955; recommendation as to the need for, and the extent of, regulation of shipments of such plums was made at the meeting of said committee on June 30, 1955, after consideration of all available information relative to the supply and demand conditions for such plums, at which time the recommendation and supporting information was submitted to the Department; shipments of the current crop of such plums are expected to begin on or about July 9, 1955, and this section should be applicable to all such shipments of such plums in order to effectuate the declared policy of the act; and compliance with the provisions of this section will not require of handlers any preparation therefor which cannot be completed by the effective time of this section.

(b) *Order.* (1) During the period beginning at 12:01 a. m., P. s. t., July 9, 1955, and ending at 12:01 a. m., P. s. t., November 1, 1955, no shipper shall ship from any shipping point during any day any package or container of Becky Smith plums unless:

(i) Such plums grade at least U. S. No. 1 with a total tolerance of ten (10) percent for defects not considered serious damage in addition to the tolerances permitted for such grade; and

(ii) The plums are, except to the extent otherwise specified in this paragraph, of a size not smaller than a size that will pack a 4 x 4 standard pack.

(2) During each day of the aforesaid period, however, any shipper may ship from any shipping point a quantity of such plums, by number of packages or containers, which are of a size smaller than a size that will pack a 4 x 4 standard pack, as aforesaid, but are not of a size smaller than a size that will pack a 4 x 5 standard pack if said quantity does not exceed thirty-three and one-third (33⅓) percent of the number of the same type of packages or containers of plums which are of a size not smaller than a size that will pack a 4 x 4 standard pack, as aforesaid.

(3) If any shipper, during any day of the aforesaid period, ships from any shipping point less than the maximum allowable quantity of such plums that may be of a size smaller than a size that will pack a 4 x 4 standard pack, as aforesaid, the quantity of the undershipment of such plums may be shipped by such shipper only from such shipping point during the next two succeeding calendar days in addition to the quantities of such plums of a size smaller that a size that will pack a 4 x 4 standard pack, as aforesaid, that such shipper could have shipped from such shipping point on such two succeeding calendar days if there had been no undershipment.

(4) Section 936.143 of the rules and regulations, as amended (§ 936.100 et seq.; 18 F. R. 712, 2839; 19 F. R. 425), sets forth the requirements with respect to the inspection and certification of shipments of fruit covered by this section. Such section also prescribes the conditions which must be met if any shipment is to be made without prior inspection and certification. Notwithstanding that shipments may be made without inspection and certification, each shipper shall comply with all grade and size regulations applicable to the respective shipment.

(5) As used in this section, "U. S. No. 1" and "serious damage" shall have the same meaning as set forth in the revised United States Standards for plums and prunes (fresh) (§§ 51.1520 to 51.1530 of this title); "standard pack" shall have the applicable meanings of the terms "standard pack" and "equivalent size" as when used in § 936.142 of the aforesaid amended rules and regulations; and all other terms shall have the same meaning as when used in the amended marketing agreement and order.

(Sec. 5, 49 Stat. 753, as amended; 7 U. S. C. 608c)

Dated: July 5, 1955.

[SEAL] FLOYD F. HEDLUND,
*Acting Director, Fruit and Vegetable Division, Agricultural Marketing Service.*

[F. R. Doc. 55-5524; Filed, July 7, 1955; 8:55 a. m.]

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[Plum Order 13]

## PART 936—FRESH BARTLETT PEARS, PLUMS, AND ELBERTA PEACHES GROWN IN CALIFORNIA

### REGULATION BY GRADES AND SIZES

§ 936.512 *Plum Order 13*—(a) *Findings.* (1) Pursuant to the marketing agreement, as amended, and Order No. 36, as amended (7 CFR Part 936), regulating the handling of fresh Bartlett pears, plums, and Elberta peaches grown in the State of California, effective under the applicable provisions of the Agricultural Marketing Agreement Act of 1937, as amended, and upon the basis of the recommendations of the Plum Commodity Committee, established under the aforesaid amended marketing agreement and order, and upon other available information, it is hereby found that the limitation of shipments of plums of the variety hereinafter set forth, and in the manner herein provided, will tend to effectuate the declared policy of the act.

(2) It is hereby further found that it is impracticable and contrary to the public interest to give preliminary notice, engage in public rule-making procedure, and postpone the effective date of this section until 30 days after publication thereof in the FEDERAL REGISTER (60 Stat. 237; 5 U. S. C. 1001 et seq.) in that, as hereinafter set forth, the time intervening between the date when information upon which this section is based became available and the time when this section must become effective in order to effectuate the declared policy of the act is insufficient; a reasonable time is permitted, under the circumstances, for preparation for such effective time; and good cause exists for making the provisions of this section effective not later than July 9, 1955. A reasonable determination as to the supply of, and the demand for, such plums must await the development of the crop thereof, and adequate information thereon was not available to the Plum Commodity Committee until June 30, 1955; recommendation as to the need for, and the extent of, regulation of shipments of such plums was made at the meeting of said committee on June 30, 1955, after consideration of all available information relative to the supply and demand conditions for such plums, at which time the recommendation and supporting information was submitted to the Department; shipments of the current crop of such plums are expected to begin on or about July 9, 1955, and this section should be applicable to all such shipments of such plums in order to effectuate the declared policy of the act; and compliance with the provisions of this section will not require of handlers any preparation therefor which cannot be completed by the effective time of this section.

(b) *Order.* (1) During the period beginning at 12:01 a. m., P. s. t., July 9, 1955, and ending at 12:01 a. m., P. s. t., November 1, 1955, no shipper shall ship from any shipping point during any day any package or container of Sugar plums unless:

(i) Such plums grade at least U. S. No. 1 with a total tolerance of ten (10) percent for defects not considered serious damage in addition to the tolerances permitted for such grade; and

(ii) The plums are, except to the extent otherwise specified in this paragraph, of a size not smaller than a size that will pack a 5 x 5 standard pack.

(2) During each day of the aforesaid period, however, any shipper may ship from any shipping point a quantity of such plums, by number of packages or containers, which are of a size smaller than a size that will pack a 5 x 5 standard pack, as aforesaid, but are not of a size smaller than a size that will pack a 5 x 6 standard pack if said quantity does not exceed twenty-five (25) percent of the number of the same type of packages or containers of plums which are of a size not smaller than a size that will pack a 5 x 5 standard pack, as aforesaid.

(3) If any shipper, during any day of the aforesaid period, ships from any shipping point less than the maximum allowable quantity of such plums that may be of a size smaller than a size that will pack a 5 x 5 standard pack, as aforesaid, the quantity of the undershipment of such plums may be shipped by such shipper only from such shipping point during the next two succeeding calendar days in addition to the quantities of such plums of a size smaller than a size that will pack a 5 x 5 standard pack, as aforesaid, that such shipper could have shipped from such shipping point on such two succeeding calendar days if there had been no undershipment.

(4) Section 936.143 of the rules and regulations, as amended (§ 936.100 et seq.; 18 F. R. 712, 2839; 19 F. R. 425), sets forth the requirements with respect to the inspection and certification of shipments of fruit covered by this section. Such section also prescribes the conditions which must be met if any shipment is to be made without prior inspection

and certification. Notwithstanding that shipments may be made without inspection and certification, each shipper shall comply with all grade and size regulations applicable to the respective shipment.

(5) As used in this section, "U. S. No. 1" and "serious damage" shall have the same meaning as set forth in the revised United States Standards for plums and prunes (fresh) (§§ 51.1520 to 51.1530 of this title); "standard pack" shall have the applicable meanings of the terms "standard pack" and "equivalent size" as when used in § 936.142 of the aforesaid amended rules and regulations; and all other terms shall have the same meaning as when used in the amended marketing agreement and order.

(Sec. 5, 49 Stat. 753, as amended; 7 U. S. C. 608c)

Dated: July 5, 1955.

[SEAL] FLOYD F. HEDLUND,
*Acting Director, Fruit and Vegetable Division, Agricultural Marketing Service.*

[F. R. Doc. 55-5525; Filed, July 7, 1955; 8:55 a. m.]

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[Plum Order 14]

PART 936—FRESH BARTLETT PEARS, PLUMS, AND ELBERTA PEACHES GROWN IN CALIFORNIA

REGULATION BY GRADES AND SIZES

§ 936.513 *Plum Order 14*—(a) *Findings.* (1) Pursuant to the marketing agreement, as amended, and Order No. 36, as amended (7 CFR Part 936), regulating the handling of fresh Bartlett pears, plums, and Elberta peaches grown in the State of California, effective under the applicable provisions of the Agricultural Marketing Agreement Act of 1937, as amended, and upon the basis of the recommendations of the Plum Commodity Committee, established under the aforesaid amended marketing agreement and order, and upon other available information, it is hereby found that the limitation of shipments of plums of the variety hereinafter set forth, and in the manner herein provided, will tend to effectuate the declared policy of the act.

(2) It is hereby further found that it is impracticable and contrary to the public interest to give preliminary notice, engage in public rule-making procedure, and postpone the effective date of this section until 30 days after publication thereof in the FEDERAL REGISTER (60 Stat. 237; 5 U. S. C. 1001 et seq.) in that, as hereinafter set forth, the time intervening between the date when information upon which this section is based became available and the time when this section must become effective in order to effectuate the declared policy of the act is insufficient; a reasonable time is permitted, under the circumstances, for preparation for such effective time; and good cause exists for making the provisions of this section effective not later than July 9, 1955. A reasonable determination as to the supply of, and the demand for, such plums must await the development of the crop thereof, and adequate information thereon was not available to the Plum Commodity Committee until June 30, 1955; recommendation as to the need for, and the extent of, regulation of shipments of such plums was made at the meeting of said committee on June 30, 1955, after consideration of all available information relative to the supply and demand conditions for such plums, at which time the recommendation and supporting information was submitted to the Department; shipments of the current crop of such plums are expected to begin on or about July 9, 1955, and this section should be applicable to all such shipments of such plums in order to effectuate the declared policy of the act; and compliance with the provisions of this section will not require of handlers any preparation therefor which cannot be completed by the effective time of this section.

(b) *Order.* (1) During the period beginning at 12:01 a. m., P. s. t., July 9, 1955, and ending at 12:01 a. m., P. s. t., November 1, 1955, no shipper shall ship from any shipping point during any day any package or container of Diamond plums unless:

(i) Such plums grade at least U. S. No. 1 with a total tolerance of ten (10) percent for defects not considered serious damage in addition to the tolerances permitted for such grade; and

(ii) Such plums are of a size not smaller than a size that will pack a 5 x 5 standard pack.

(2) Section 936.143 of the rules and regulations, as amended (§ 936.100 et seq.; 18 F. R. 712, 2839; 19 F. R. 425), sets forth the requirements with respect to the inspection and certification of shipments of fruit covered by this section. Such section also prescribes the conditions which must be met if any shipment is to be made without prior inspection and certification. Notwithstanding that shipments may be made without inspection and certification, each shipper shall comply with all grade and size regulations applicable to the respective shipment.

(3) As used in this section, "U. S. No. 1" and "serious damage" shall have the same meaning as set forth in the revised United States Standards for plums and prunes (fresh) (§§ 51.1520 to 51.1530 of this title); "standard pack" shall have the applicable meanings of the terms "standard pack" and "equivalent size" as when used in § 936.142 of the aforesaid amended rules and regulations; and all other terms shall have the same meaning as when used in the amended marketing agreement and order.

(Sec. 5, 49 Stat. 753, as amended; 7 U. S. C. 608c)

Dated: July 5, 1955.

[SEAL] FLOYD F. HEDLUND,
*Acting Director, Fruit and Vegetable Division, Agricultural Marketing Service.*

[F. R. Doc. 55-5526; Filed, July 7, 1955; 8:55 a. m.]

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[Plum Order 15]

PART 936—FRESH BARTLETT PEARS, PLUMS, AND ELBERTA PEACHES GROWN IN CALIFORNIA

REGULATION BY GRADES AND SIZES

§ 936.514 *Plum Order 15*—(a) *Findings.* (1) Pursuant to the marketing agreement, as amended, and Order No. 36, as amended (7 CFR Part 936), regulating the handling of fresh Bartlett pears, plums, and Elberta peaches grown in the State of California, effective under the applicable provisions of the Agricultural Marketing Agreement Act of 1937, as amended, and upon the basis of the recommendations of the Plum Commodity Committee, established under the aforesaid amended marketing agreement and order, and upon other available information, it is hereby found that the limitation of shipments of plums of the variety hereinafter set forth, and in the manner herein provided, will tend to effectuate the declared policy of the act.

(2) It is hereby further found that it is impracticable and contrary to the public interest to give preliminary notice, engage in public rule-making procedure, and postpone the effective date of this section until 30 days after publication thereof in the FEDERAL REGISTER (60 Stat. 237; 5 U. S. C. 1001 et seq.) in that, as hereinafter set forth, the time intervening between the date when information upon which this section is based became available and the time when this section must become effective in order to effectuate the declared policy of the act is insufficient; a reasonable time is permitted, under the circumstances, for preparation for such effective time; and good cause exists for making the provisions of this section effective not later than July 9, 1955. A reasonable determination as to the supply of, and the demand for, such plums must await the development of the crop thereof, and adequate information thereon was not available to the Plum Commodity Committee until June 30, 1955, recommendation as to the need for, and the extent of, regulation of shipments of such plums was made at the meeting of said committee on June 30, 1955, after consideration of all available information relative to the supply and demand conditions for such plums, at which time the recommendation and supporting information was submitted to the Department; shipments of the current crop of such plums are expected to begin on or about July 9, 1955, and this section should be applicable to all such shipments of such plums in order to effectuate the declared policy of the act; and compliance with the provisions of this section will not require of handlers any preparation therefor which cannot be completed by the effective time of this section.

(b) *Order.* (1) During the period beginning at 12:01 a. m., P. s. t., July 9, 1955, and ending at 12:01 a. m., P. s. t., November 1, 1955, no shipper shall ship from any shipping point during any day any package or container of Late Tragedy plums unless:

(i) Such plums grade at least U. S. No. 1 with a total tolerance of ten (10)

percent for defects not considered serious damage in addition to the tolerances permitted for such grade: *Provided*, That, gum spots which do not cause serious damage shall not be considered as a grade defect with respect to such grade; and

(ii) The plums are, except to the extent otherwise specified in this paragraph, of a size not smaller than a size that will pack a 5 x 6 standard pack.

(2) During each day of the aforesaid period, however, any shipper may ship from any shipping point a quantity of such plums, by number of packages or containers, which are of a size smaller than a size that will pack a 5 x 6 standard pack, as aforesaid, but are not of a size smaller than a size that will pack a 6 x 6 standard pack if said quantity does not exceed eleven and eleven one-hundredths (11.11) percent of the number of the same type of packages or containers of plums which are of a size not smaller than a size that will pack a 5 x 6 standard pack, as aforesaid.

(3) If any shipper, during any day of the aforesaid period, ships from any shipping point less than the maximum allowable quantity of such plums that may be of a size smaller than a size that will pack a 5 x 6 standard pack, as aforesaid, the quantity of the undershipment of such plums may be shipped by such shipper only from such shipping point during the next two succeeding calendar days in addition to the quantities of such plums of a size smaller than a size that will pack a 5 x 6 standard pack, as aforesaid, that such shipper could have shipped from such shipping point on such two succeeding calendar days if there had been no undershipment.

(4) Section 936.143 of the rules and regulations, as amended (§ 936.100 et seq.; 18 F. R. 712, 2839; 19 F. R. 425), sets forth the requirements with respect to the inspection and certification of shipments of fruit covered by this section. Such section also prescribes the conditions which must be met if any shipment is to be made without prior inspection and certification. Notwithstanding that shipments may be made without inspection and certification, each shipper shall comply with all grade and size regulations applicable to the respective shipment.

(5) As used in this section, "U. S. No. 1" and "serious damage" shall have the same meaning as set forth in the revised United States Standards for plums and prunes (fresh) (§§ 51.1520 to 51.1530 of this title); "standard pack" shall have the applicable meanings of the terms "standard pack" and "equivalent size" as when used in § 936.142 of the aforesaid amended rules and regulations; and all other terms shall have the same meaning as when used in the amended marketing agreement and order.

(Sec. 5, 49 Stat. 753, as amended; 7 U. S. C. 608c)

Dated: July 5, 1955.

[SEAL] FLOYD F. HEDLUND,
*Acting Director, Fruit and Vegetable Division, Agricultural Marketing Service.*

[F. R. Doc. 55-5527; Filed, July 7, 1955; 8:55 a. m.]



[Plum Order 16]

## PART 936—FRESH BARTLETT PEARS, PLUMS, AND ELBERTA PEACHES GROWN IN CALIFORNIA

### REGULATION BY GRADES AND SIZES

§ 936.515 *Plum Order 16*—(a) *Findings.* (1) Pursuant to the marketing agreement, as amended, and Order No. 36, as amended (7 CFR Part 936), regulating the handling of fresh Bartlett pears, plums, and Elberta peaches grown in the State of California, effective under the applicable provisions of the Agricultural Marketing Agreement Act of 1937, as amended, and upon the basis of the recommendations of the Plum Commodity Committee, established under the aforesaid amended marketing agreement and order, and upon other available information, it is hereby found that the limitation of shipments of plums of the variety hereinafter set forth, and in the manner herein provided, will tend to effectuate the declared policy of the act.

(2) It is hereby further found that it is impracticable and contrary to the public interest to give preliminary notice, engage in public rule-making procedure, and postpone the effective date of this section until 30 days after publication thereof in the FEDERAL REGISTER (60 Stat. 237; 5 U. S. C. 1001 et seq.) in that, as hereinafter set forth, the time intervening between the date when information upon which this section is based became available and the time when this section must become effective in order to effectuate the declared policy of the act is insufficient; a reasonable time is permitted, under the circumstances, for preparation for such effective time; and good cause exists for making the provisions of this section effective not later than July 9, 1955. A reasonable determination as to the supply of, and the demand for, such plums must await the development of the crop thereof, and adequate information thereon was not available to the Plum Commodity Committee until June 30, 1955; recommendation as to the need for, and the extent of, regulation of shipments of such plums was made at the meeting of said committee on June 30, 1955, after consideration of all available information relative to the supply and demand conditions for such plums, at which time the recommendation and supporting information was submitted to the Department; shipments of the current crop of such plums are expected to begin on or about July 9, 1955, and this section should be applicable to all such shipments of such plums in order to effectuate the declared policy of the act; and compliance with the provisions of this section will not require of handlers any preparation therefor which cannot be completed by the effective time of this section.

(b) *Order.* (1) During the period beginning at 12:01 a. m., P. s. t., July 9, 1955, and ending at 12:01 a. m., P. s. t., November 1, 1955, no shipper shall ship from any shipping point during any day any package or container of Late Santa Rosa plums unless:

(i) Such plums grade at least U. S. No. 1 with a total tolerance of ten (10) percent for defects not considered serious damage in addition to the tolerances permitted for such grade; and

(ii) The plums are, except to the extent otherwise specified in this paragraph, of a size not smaller than a size that will pack a 4 x 5 standard pack.

(2) During each day of the aforesaid period, however, any shipper may ship from any shipping point a quantity of such plums, by number of packages or containers, which are of a size smaller than a size that will pack a 4 x 5 standard pack, as aforesaid, but are not of a size smaller than a size that will pack a 5 x 5 standard pack if said quantity does not exceed eleven and eleven one-hundredths (11.11) percent of the number of the same type of packages or containers of plums which are of a size not smaller than a size that will pack a 4 x 5 standard pack, as aforesaid.

(3) If any shipper, during any day of the aforesaid period, ships from any shipping point less than the maximum allowable quantity of such plums that may be of a size smaller than a size that will pack a 4 x 5 standard pack, as aforesaid, the quantity of the undershipment of such plums may be shipped by such shipper only from such shipping point during the next two succeeding calendar days in addition to the quantities of such plums of a size smaller than a size that will pack a 4 x 5 standard pack, as aforesaid, that such shipper could have shipped from such shipping point on such two succeeding calendar days if there had been no undershipment.

(4) Section 936.143 of the rules and regulations, as amended (§ 936.100 et seq.; 18 F. R. 712, 2839; 19 F. R. 425), sets forth the requirements with respect to the inspection and certification of shipments of fruit covered by this section. Such section also prescribes the conditions which must be met if any shipment is to be made without prior inspection and certification. Notwithstanding that shipments may be made without inspection and certification, each shipper shall comply with all grade and size regulations applicable to the respective shipment.

(5) As used in this section, "U. S. No. 1" and "serious damage" shall have the same meaning as set forth in the revised United States Standards for plums and prunes (fresh) (§§ 51.1520 to 51.1530 of this section); "standard pack" shall have the applicable meanings of the terms "standard pack" and "equivalent size" as when used in § 936.142 of the aforesaid amended rules and regulations; and all other terms shall have the same meaning as when used in the amended marketing agreement and order.

(Sec. 5, 49 Stat. 753, as amended; 7 U. S. C. 608c)

Dated: July 5, 1955.

[SEAL] FLOYD F. HEDLUND,
*Acting Director, Fruit and Vegetable Division, Agricultural Marketing Service.*

[F. R. Doc. 55-5528; Filed, July 7, 1955; 8:56 a. m.]

PART 958—IRISH POTATOES GROWN IN COLORADO

LIMITATION OF SHIPMENTS

§ 958.318 *Limitation of shipments*—(a) *Findings.* (1) Pursuant to Marketing Agreement No. 97 and Order No. 58 (7 CFR Part 958; 19 F. R. 9368), regulating the handling of Irish potatoes grown in the State of Colorado, effective under the applicable provisions of the Agricultural Marketing Agreement Act of 1937, as amended (48 Stat. 31, as amended, 7 U. S. C. 601 et seq.), and upon the basis of the recommendation and information submitted by the area committee for Area No. 1, established pursuant to said marketing agreement and order, and upon other available information, it is hereby found that the limitation of shipments as hereinafter provided, will tend to effectuate the declared policy of the act.

(2) It is hereby found that it is impracticable and contrary to the public interest to give preliminary notice, engage in public rule making procedure, and postpone the effective date of this section until 30 days after publication in the FEDERAL REGISTER (5 U. S. C. 1001 et seq.) in that (i) the time intervening between the date when information upon which this section is based became available and the time when this section must become effective in order to effectuate the declared policy of the act is insufficient, (ii) more orderly marketing in the public interest, than would otherwise prevail, will be promoted by regulating the shipment of potatoes, in the manner set forth below, on and after the effective date of this section, (iii) compliance with this section will not require any preparation on the part of handlers which cannot be completed by the effective date, (iv) a reasonable time is permitted under the circumstances for such preparation, and (v) information regarding the committee's recommendation has been made available to producers and handlers in the production area.

(b) *Order.* (1) During the period July 18, 1955, through May 31, 1956, inclusive, no handler shall ship:

(i) Any potatoes of the round varieties (including, but not being limited to, Irish Cobblers, Katahdins, Kennebecs, Pontiacs, and Bliss Triumphs) grown in Area No. 1, unless such potatoes grade not less than U. S. No. 1, 2 inches minimum diameter, and are not more than 24 ounces maximum size;

(ii) Any potatoes of the round varieties (including, but not being limited to, Irish Cobblers, Katahdins, Kennebecs, Pontiacs, and Bliss Triumphs) grown in Area No. 1 unless such potatoes grade U. S. No. 2, or better grade up to, but not including, the U. S. No. 1 grade, and are 2 inches minimum diameter; or

(iii) Any potatoes of the long varieties (including, but not being limited to Russet Burbank and White Rose) grown in Area No. 1 unless such potatoes grade not less than U. S. No. 2, 4 ounces minimum size.

(2) During the months of September and October 1955, no handler shall ship potatoes of any variety grown in Area No. 1 unless such potatoes meet the requirements of subparagraph (1) of this paragraph and, in addition, are not more than "moderately skinned," as such term is defined in the United States Standards for Potatoes (§§ 51.1540 to 51.1559 of this title), which means that not more than 10 percent of the potatoes in any lot have more than one half of the skin missing or "feathered."

(3) Grades and sizes used in this section shall have the same meanings assigned these terms in the United States Standards for Potatoes (§§ 51.1540 to 51.1559 of this title), including the tolerances set forth therein; and all other terms shall have the same meaning as when used in Marketing Agreement No. 97 and Order No. 58 (7 CFR Part 958).

(Sec. 5, 49 Stat. 753, as amended; 7 U. S. C. 608c)

Done at Washington, D. C., this 5th day of July 1955, to become effective July 18, 1955.

[SEAL] FLOYD F. HEDLUND,
*Acting Director, Fruit and Vegetable Division, Agricultural Marketing Service.*

[F. R. Doc. 55-5530; Filed, July 7, 1955; 8:56 a. m.]

# TITLE 14—CIVIL AVIATION

## Chapter II—Civil Aeronautics Administration, Department of Commerce

[Amdt. 58]

PART 600—DESIGNATION OF CIVIL AIRWAYS

ALTERATIONS

The civil airway alterations appearing hereinafter have been coordinated with the civil operators involved, the Army, the Navy and the Air Force, through the Air Coordinating Committee, Airspace Panel, and are adopted to become effective when indicated in order to promote safety. Compliance with the notice procedures, and effective date provisions of section 4 of the Administrative Procedure Act would be impracticable and contrary to public interest and therefore is not required.

Part 600 is amended as follows:

1. Section 600.226 is added to read:

§ 600.226 *Red civil airway No. 26 (Petersburg, Va., to Corapeake, N. C.).* From the intersection of the southwest course of the Richmond, Va., radio range and the northwest course of the Waverly, Va., radio range via the Waverly, Va., radio range station to the intersection of the southeast course of the Waverly, Va., radio range and the southwest course of the Norfolk, Va., radio range.

2. Section 600.258 is amended to read:

§ 600.258 *Red civil airway No. 58 (Augusta, Maine to United States-Canadian Border).* That airspace over United States territory from the Augusta, Maine, radio range station via the Bangor, Maine, radio range station; Pennfield Ridge, New Brunswick, Canada, radio range station to the St. John, New Brunswick, Canada, radio range station.

3. Section 600.308 is added to read:

§ 600.308 *Red civil airway No. 108 (Promontory Point, Utah, to Fort Bridger, Wyo.).* From the Promontory Point, Utah, nondirectional radiobeacon via the Corinne, Utah, nondirectional radiobeacon to the Fort Bridger, Utah, radio range station.

4. Section 600.616 is added to read:

§ 600.616 *Blue civil airway No. 16 (Waverly, Va., to Tappahannock, Va.).* From the Waverly, Va., radio range station to the Tappahannock, Va., radio range station.

5. Section 600.619 *Blue civil airway No. 19 (Key West, Fla., to Orlando, Fla.),* is amended by deleting the words: "excluding the portions which overlap Restricted Areas (R–170) and (R–169)".

6. Section 600.677 *Blue civil airway No. 77 (Promontory Point, Utah, to Corinne, Utah)* is revoked.

7. Section 600.6002 *VOR civil airway No. 2 (Seattle, Wash., to Boston, Mass.)* is amended by changing the last portion to read: "From the Buffalo, N. Y., omnirange station via the Rochester, N. Y., omnirange station; Syracuse, N. Y., omnirange station; Albany, N. Y., omnirange station, including a south alternate via the intersection of the Syracuse omnirange 117° True and the Albany omnirange 269° True radials; Gardner, Mass., omnirange station; to the Boston, Mass., omnirange station."

8. Section 600.6003 *VOR civil airway No. 3 (Key West Fla., to Bangor, Maine)* is amended by changing all before the West Palm Beach, Fla., omnirange station to read: "From the Key West, Fla., omnirange station via the Miami, Fla., omnirange station, excluding the portion which overlaps Airspace Warning Area (W–173); intersection of the Miami omnirange 060° True and the West Palm Beach omnirange 176° True radials; West Palm Beach, Fla., omnirange station;" and by deleting the words, "From the point of intersection of the Herndon, Va., omnirange 089° True and the Washington, D. C., terminal omnirange 351° True radials via the intersection of the Herndon omnirange 045° True and the Martinsburg, W. Va., omnirange 101° True radials; intersection of the Herndon omnirange 045° True and the West Chester omnirange 253° True radials;" and substituting the following words in lieu thereof, "From the point of intersection of the Herndon, Va., omnirange 045° True and the Martinsburg, W. Va., omnirange 101° True radials via the intersection of the Herndon omnirange 045° True and the West Chester omnirange 253° True radials;".

9. Section 600.6004 *VOR civil airway No. 4 (Seattle Wash., to Washington, D. C.)* is amended by changing all after the Charleston, W. Va., omnirange station to read: "Charleston, W. Va., omnirange station; Elkins, W. Va., omnirange station, including a south alternate via the intersection of the Charleston omnirange 081° True and the Elkins omnirange 227° True radials; Front Royal, Va., omnirange station; to the Herndon, Va., omnirange station."

10. Section 600.6007 *VOR civil airway No. 7 (Miami, Fla., to Green Bay, Wis.)*

is amended by changing all before the Marianna, Fla., omnirange station to read: "From the Miami, Fla., omnirange station via the Fort Myers, Fla., omnirange station, including a west alternate via the intersection of the Miami omnirange 274° True and the Fort Myers omnirange 133° True radials; Lakeland, Fla., omnirange station, including an east alternate via the intersection of the Fort Myers omnirange 035° True and the Lakeland omnirange 161° True radials; Cross City, Fla., omnirange station, including a west alternate from the Fort Myers omnirange station to the Cross City omnirange station via the Tampa, Fla., omnirange station and the intersection of the Tampa omnirange 012° True and the Cross City omnirange 150° True radials; Tallahassee, Fla., omnirange station, including a west alternate via the intersection of the Cross City omnirange 287° True and the Tallahassee omnirange 150° True radials; Marianna, Fla., omnirange station;".

11. Section 600.6026 *VOR civil airway No. 26 (Cherokee, Wyo., to Cleveland, Ohio)* is amended by changing the portion between the Green Bay, Wis., omnirange station and the Lansing, Mich., omnirange station to read: "Green Bay, Wis., omnirange station, including a south alternate; White Cloud, Mich., omnirange station; Lansing, Mich., omnirange station;".

12. Section 600.6029 *VOR civil airway No. 29 (Salisbury, Md., to United States-Canadian Border)* is amended by changing all before the West Chester, Pa., omnirange station to read: "From the Chincoteague, Va., Navy LF radio range station via the Salisbury, Md., omnirange station; Dover, Del., omnirange station; West Chester, Pa., omnirange station;" and by adding a new last portion to read, "The portions of this airway which overlap the Chincoteague restricted area (R–45) are excluded."

13. Section 600.6035 *VOR civil airway No. 35 (Tallahassee, Fla., to Syracuse, N. Y.)* is amended by deleting the following words, "Elmira omnirange 048° True" and substituting the following words in lieu thereof: "Elmira omnirange 047° True".

14. Section 600.6054 is amended to read:

§ 600.6054 *VOR civil airway No. 54 (Texarkana, Ark., to Spartanburg, S. C.).* From the Texarkana, Ark., omnirange station via the Little Rock, Ark., omnirange station, including a north alternate via the intersection of the Texarkana omnirange 031° True and the Little Rock omnirange 255° True radials; intersection of the Little Rock omnirange 077° True and the Memphis omnirange 261° True radials; Memphis, Tenn., omnirange station, including a north alternate from the Little Rock omnirange station to the Memphis omnirange station via the intersection of the Little Rock omnirange 062° True and the Memphis omnirange 276° True radials; to the Muscle Shoals, Ala., omnirange station. From the Chattanooga, Tenn., omnirange station to the Spartanburg, S. C., omnirange station.

15. Section 600.6055 is amended to read:

§ 600.6055 *VOR civil airway No. 55 (Dayton, Ohio, to Green Bay, Wis.).* From the Dayton, Ohio, omnirange station via the Fort Wayne, Ind., omnirange station, including a west alternate; Goshen, Ind., omnirange station; South Bend, Ind., omnirange station; Pullman, Mich., omnirange station; Muskegon, Mich., omnirange station; intersection of the Muskegon omnirange 352° True and the Green Bay omnirange 118° True radials; to the Green Bay, Wis., omnirange station.

16. Section 600.6093 is amended by changing the caption to read, "*VOR civil airway No. 93 (Washington, D. C., to Princeton, Maine)*" by changing all before the Allentown, Pa., omnirange station to read, "From the Riverdale, Md., nondirectional radio beacon via the Baltimore, Md., omnirange station; intersection of the Baltimore omnirange 015° True and the Allentown omnirange 228° True radials; Allentown, Pa., omnirange station;" and by adding a new last portion to read, "The portions of this airway which overlap the Washington, D. C., prohibited area (P–56) are excluded."

17. Section 600.6097 *VOR civil airway No. 97 (Miami, Fla., to Minneapolis, Minn.)* is amended by changing all before the Albany, Ga., omnirange station to read: "From the Miami, Fla., omnirange station via the Tampa, Fla., omnirange station; Tallahassee, Fla., omnirange station, including an east alternate from the Tampa omnirange station to the Tallahassee omnirange station via the intersection of the Tampa omnirange 330° True and the Cross City omnirange 182° True radials, the Cross City, Fla., omnirange station and the intersection of the Cross City omnirange 287° True and the Tallahassee omnirange 150° True radials; Albany, Ga., omnirange station;" and by adding a last portion to read: "The portions of this airway which overlap the Dinner Point warning area (W–143) are excluded."

18. Section 600.6098 is amended to read:

§ 600.6098 *VOR civil airway No. 98 (Fort Wayne, Ind., to Erie, Pa.).* From the Fort Wayne, Ind., omnirange station via the Carleton, Mich., omnirange station; intersection of the Carleton omnirange 076° True and the Erie omnirange 280° True radials; to the Erie, Pa., omnirange station.

19. Section 600.6103 is amended by changing the words "added to read" to "amended to read."

20. Section 600.6119 is amended to read:

§ 600.6119 *VOR civil airway No. 119 (Huntington, W. Va., to Bradford, Pa.).* From the Huntington, W. Va., nondirectional radio beacon via the Parkersburg, W. Va., omnirange station; Wheeling, W. Va., omnirange station; Fitzgerald, Pa., omnirange station; to the Bradford, Pa., omnirange station.

21. Section 600.6128 is amended by changing the caption to read: "*VOR civil airway No. 128 (Chicago, Ill., to New Bern, N. C.)*" and by adding a new last portion to read: "From the point of intersection of the Wilmington, N. C., omnirange 005° True and the New Bern omnirange 297° True radials; to the New Bern, N. C., omnirange station, excluding the airspace above 5500 feet above mean sea level daily during the period from sunset to sunrise."

22. Section 600.6145 is amended to read:

§ 600.6145 *VOR civil airway No. 145 (Utica, N. Y., to the United States-Canadian Border).* From the Utica, N. Y., MF radio range station via the intersection of the Utica MF radio range northwest course and the Watertown omnirange 155° True radial; Watertown, N. Y., omnirange station; to the United States-Canadian Border via the Watertown omnirange 360° True radial.

23. Section 600.6152 is amended to read:

§ 600.6152 *VOR civil airway No. 152 (Tampa, Fla., to Daytona Beach, Fla.).* From the Tampa, Fla., omnirange station via the Orlando, Fla., omnirange station, including a north alternate via the intersection of the Tampa omnirange 039° True and the Orlando omnirange 258° True radials and also a south alternate via the Lakeland, Fla., omnirange station; to the Daytona Beach, Fla., omnirange station.

24. Section 600.6155 is added to read:

§ 600.6155 *VOR civil airway No. 155 (Gordonsville, Va., to Front Royal, Va.).* From the Gordonsville, Va., omnirange station via the direct radial to the point of intersection of the Herndon, Va., omnirange 209° True and the Front Royal omnirange 144° True radials; to the Front Royal, Va., omnirange station.

25. Section 600.6157 is amended to read:

§ 600.6157 *VOR civil airway No. 157 (Wilmington, N. C., to Richmond, Va.).* From the Wilmington, N. C., omnirange station via the Rocky Mount, N. C., omnirange station; Lawrenceville, Va., omnirange station; to the Richmond, Va., LF radio range station, excluding the portion which overlaps the Camp Pickett restricted area (R–44).

26. Section 600.6159 is amended to read:

§ 600.6159 *VOR civil airway No. 159 (Miami, Fla., to Albany, Ga.).* From the Miami, Fla., omnirange station via the intersection of the Miami omnirange 338° True and the West Palm Beach omnirange 219° True radials; West Palm Beach, Fla., omnirange station; Vero Beach, Fla., omnirange station; intersection of the Vero Beach omnirange 339° True and the Orlando omnirange 131° True radials; Orlando, Fla., omnirange station; Cross City, Fla., omnirange station; to the Albany, Ga., omnirange station.

27. Section 600.6162 is amended to read:

§ 600.6162 *VOR civil airway No. 162 (Harrisburg, Pa., to Allentown, Pa.).*

From the Harrisburg, Pa., omnirange station via the point of intersection of the Harrisburg omnirange 073° True and the Selinsgrove, Pa., omnirange 133° True radials; direct to the Allentown, Pa., omnirange station, including a south alternate from the Harrisburg omnirange station to the Allentown omnirange station via the point of intersection of the West Chester, Pa., omnirange 314° True and the Allentown omnirange 228° True radials.

28. Section 600.6180 is added to read:

§ 600.6180 *VOR civil airway No. 180 (Lansing, Mich., to Selfridge, Mich.).* From the Lansing, Mich., omnirange station to the Selfridge, Mich., omnirange station.

29. Section 600.6185 is added to read:

§ 600.6185 *VOR civil airway No. 185 (Augusta, Ga., to Knoxville, Tenn.).* From the Augusta, Ga., omnirange station via the Spartanburg, S. C., omnirange station; Asheville, N. C., omnirange station; intersection of the Asheville omnirange 300° True and the Knoxville omnirange 069° True radials; to the Knoxville, Tenn., omnirange station, including an east alternate from the Asheville omnirange station to the Knoxville omnirange station via the intersection of the Asheville omnirange 329° True and the Knoxville omnirange 069° True radials.

30. Section 600.6191 is added to read:

§ 600.6191 *VOR civil airway No. 191 (Walnut Ridge, Ark., to Chicago, Ill.).* From the Walnut Ridge, Ark., omnirange station via the Farmington, Mo., omnirange station; Troy, Ill., omnirange station; Roberts, Ill., omnirange station; intersection of the Roberts omnirange 012° True and the Chicago Midway Airport terminal omnirange 198° True radials; to the Chicago, Ill., Midway Airport terminal omnirange station.

31. Section 600.6193 is added to read:

§ 600.6193 *VOR civil airway No. 193 (Grand Rapids, Mich., to Traverse City, Mich.).* From the Grand Rapids, Mich., ILS outer marker via the White Cloud, Mich., omnirange station; to the Traverse City, Mich., LF radio range station.

32. Section 600.194 is added to read:

§ 600.6194 *VOR civil airway No. 194 (Charlotte, N. C., to Raleigh, N. C.).* From the Charlotte, N. C., omnirange station to the Raleigh, N. C., omnirange station.

33. Section 600.6195 is added to read:

§ 600.6195 *VOR civil airway No. 195.* [Unassigned.]

34. Section 600.6197 is added to read:

§ 600.6197 *VOR civil airway No. 197 (Toledo, Ohio, to Detroit, Mich.).* From the Waterville, Ohio, omnirange station to the Carleton, Mich., omnirange station.

35. Section 600.6056 *VOR civil airway No. 56 (Montgomery, Ala., to Florence, S. C.)* is amended by changing all after the Columbia, S. C., omnirange station to read: "Columbia, S. C., omnirange station; to the Florence, S. C., omnirange station. The portions of this airway which overlap the Savannah River Airspace Reservation (P–378) and the Fort Benning restricted area (R–129) are excluded."

(Sec. 205, 52 Stat. 984, amended; 49 U. S. C. 425. Interprets or applies sec. 302, 52 Stat. 985, as amended; 49 U. S. C. 452)

This amendment shall become effective 0001, e. s. t., July 14, 1955.

[SEAL] F. B. LEE,
*Administrator of Civil Aeronautics.*

[F. R. Doc. 55–5479; Filed, July 7, 1955; 8:46 a. m.]

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[Amdt. 58]

PART 601—DESIGNATION OF CONTROL AREAS, CONTROL ZONES, AND REPORTING POINTS

ALTERATIONS

The control area, control zone and reporting point alterations appearing hereinafter have been coordinated with the civil operators involved, the Army, the Navy and the Air Force, through the Air Coordinating Committee, Airspace Panel, and are adopted to become effective when indicated in order to promote safety. Compliance with the notice, procedures, and effective date provisions of section 4 of the Administrative Procedure Act would be impracticable and contrary to public interest and therefore is not required.

Part 601 is amended as follows:

1. Section 601.226 is added to read:

§ 601.226 *Red civil airway No. 26 control areas (Petersburg, Va., to Corapeake, N. C.).* All of Red civil airway No. 26.

2. Section 601.308 is added to read:

§ 601.308 *Red civil airway No. 108 control areas (Promontory Point, Utah to Fort Bridger, Wyo.).* All of Red civil airway No. 108.

3. Section 601.616 is added to read:

§ 601.616 *Blue civil airway No. 16 control areas (Waverly, Va., to Tappahannock, Va.).* All of Blue civil airway No. 16.

4. Section 601.677 *Blue civil airway No. 77 control areas (Promontory Point, Utah to Corinne, Utah)* is revoked.

5. Section 601.1003 is added to read:

§ 601.1003 *Control area extension (Corinne, Utah).* Within 5 miles either side of a line bearing 289° True extending from the Corinne nondirectional radio beacon to Blue civil airway No. 78.

6. Section 601.1070 is amended to read:

§ 601.1070 *Control area extension (Oceanside, Calif.).* Within 5 miles either side of a line bearing 293° True extending from the Oceanside non-directional radio beacon to its point of intersection with a line bearing 221° True from the Los Angeles radio range station; within 5 miles either side of a line bearing 284° True extending from the Oceanside nondirectional radio beacon to its point of intersection with a line bearing 181° True from the Los Angeles omnirange station.

7. Section 601.1074 is amended to read:

§ 601.1074 *Control area extension (Los Angeles, Calif.).* Within 5 miles either side of the west and south courses of the Los Angeles radio range extending from the radio range station to points 40 miles west and south; within 5 miles either side of a line bearing 221° True extending from the Los Angeles radio range station to a point 40 miles southwest; within 5 miles either side of the southeast course of the Camarillo, Calif., radio range extending from Amber civil airway No. 8 to the intersection of the southeast course of the Camarillo radio range with a bearing of 221° True from the Los Angeles radio range station; within 5 miles either side of a line bearing 181° True extending from the Los Angeles omnirange station to a point 40 miles south of the omnirange station.

8. Section 601.1150 *Control area extension (Wilmington, N. C.)* is amended by changing the words "Wilmington, N. C. VHF radio range station" to read "Wilmington, N. C., omnirange station" wherever they appear.

9. Section 601.1151 is amended to read:

§ 601.1151 *Control area extension (Wilmington, N. C.).* That airspace within tangent lines drawn from the circumference of a circle 5 miles in radius centered on the Wilmington, N. C., omnirange station to a circle 5 miles in radius centered at a point at lat. 33°55'00", long. 77°19'00" to a circle 15 miles in radius centered at the intersection of a line bearing 133° True from the Wilmington, N. C., omnirange station and the Western boundary of the New York Oceanic Control Area, excluding the portion below 2,000 feet which lies outside the continental limits of the United States.

10. Section 601.1266 *Control area extension (Litchfield, Mich.),* is amended by changing the words which read: "on the southeast by VOR civil airway No. 11" to read: "on the southeast by VOR civil airway No. 98".

11. Section 601.1298 is amended to read:

§ 601.1298 *Control area extension (Promontory Point, Utah).* That airspace bounded on the north by VOR civil airway No. 6, on the east by VOR civil airway No. 21, on the south by VOR civil airway No. 32 and on the west by long. 112°56'30".

12. Section 601.1380 is added to read:

§ 601.1380 *Control area extension (Johnston Island).* All of the airspace from 700 feet upwards within a radius of 100 nautical miles centered on the Johnston Island nondirectional radio beacon at lat. 16°45'00" N., long. 169°30'00" W.

13. Section 601.1381 is added to read:

§ 601.1381 *Control area extension (Kwajalein Island).* All of the airspace from 700 feet upwards within a radius of 100 nautical miles of the Kwajalein

nondirectional radio beacon at lat. 8°45'00" N., long. 167°45'00" E., extending clockwise from a true bearing of 270° from the nondirectional radio beacon to a true bearing of 180° from the nondirectional radio beacon, and within a radius of 25 nautical miles of the Kwajalein nondirectional radio beacon extending clockwise from a true bearing of 180° from the nondirectional radio beacon to a true bearing of 270° from the nondirectional radio beacon excluding the portions which overlap Airspace Warning Areas W–448, W–445 and W–450.

14. Section 601.1382 is added to read:

§ 601.1382 *Control area extension (Wake Island).* All of the airspace from 700 feet upwards within a radius of 100 nautical miles centered on the Wake Island nondirectional radio beacon at lat. 19°18'00" N., long. 166°39'00" E.

15. Section 601.2168 *Tampa, Fla., control zone* is amended by changing the portion which reads: "and within 2 miles either side of the 274° True radial of the Tampa omnirange extending from the Pinellas County Airport control zone to a point 10 miles west of the omnirange station" to read: "and within 2 miles either side of the 340° True radial of the Tampa omnirange extending from the Pinellas County Airport control zone to a point 10 miles northwest of the omnirange station".

16. Section 601.2360 is added to read:

§ 601.2360 *South Weymouth, Mass., control zone.* Within a 4-mile radius of the South Weymouth Naval Air Station and within 1½ miles east of and 2½ miles west of and parallel to a line bearing 155° True extending from the Naval Air Station to a point 10 miles southeast of the South Weymouth nondirectional radio beacon.

17. Section 601.2137 *Columbia, S. C., control zone* is amended by changing the portion which reads: "and within 2 miles either side of the 102° and 282° True radials of the Columbia omnirange extending from the airport control zone to a point 10 miles west of the omnirange station" to read: "and within 2 miles either side of the 325° and 145° True radials of the Columbia omnirange extending from the airport control zone to a point 10 miles southeast of the omnirange station,".

18. Section 601.4226 is added to read:

§ 601.4226 *Red civil airway No. 26 Petersburg, Va., to Corapeake, N. C.).* Waverly, Va., radio range station.

19. Section 601.4308 is added to read:

§ 601.4308 *Red civil airway No. 108 (Promontory Point, Utah to Fort Bridger, Wyo.).* No reporting point designation.

20. Section 601.4616 is added to read:

§ 601.4616 *Blue civil airway No. 16 (Waverly, Va., to Tappahannock, Va.).* No reporting point designation.

21. Section 601.4677 *Blue civil airway No. 77 (Promontory Point, Utah to Corinne, Utah)* is revoked.

22. Section 601.5001 *Other reporting points* is amended by changing *Carp Intersection* to read:

Carp Intersection: The intersection of a line bearing 133° True from the Wilmington, N. C., omnirange station and the western boundary of the New York Oceanic Control Area.

23. Section 601.6054 is amended to read:

§ 601.6054 *VOR civil airway No. 54 control areas (Texarkana, Ark., to Spartanburg, S. C.).* All of VOR civil airway No. 54 including north alternates.

24. Section 601.6055 is amended to read:

§ 601.6055 *VOR civil airway No. 55 control areas (Dayton, Ohio, to Green Bay, Wis.).* All of VOR civil airway No. 55 including a west alternate.

25. Section 601.6093 is amended to read:

§ 601.6093 *VOR civil airway No. 93 control areas (Washington, D. C., to Princeton, Maine).* All of VOR civil airway No. 93.

26. Section 601.6098 is amended to read:

§ 601.6098 *VOR civil airway No. 98 control areas (Fort Wayne, Ind., to Erie, Pa.).* All of VOR civil airway No. 98.

27. Section 601.6119 is amended to read:

§ 601.6119 *VOR civil airway No. 119 control areas (Huntington, W. Va., to Bradford, Pa.).* All of VOR civil airway No. 119.

28. Section 601.6128 is amended to read:

§ 601.6128 *VOR civil airway No. 128 control areas (Chicago, Ill., to New Bern, N. C.).* All of VOR civil airway No. 128, including a north and a south alternate.

29. Section 601.6145 is amended to read:

§ 601.6145 *VOR civil airway No. 145 control areas (Utica, N. Y., to the United States-Canadian Border).* All of VOR civil airway No. 145.

30. Section 601.6155 is added to read:

§ 601.6155 *VOR civil airway No. 155 control areas (Gordonsville, Va., to Front Royal, Va.).* All of VOR civil airway No. 155.

31. Section 601.6157 is amended to read:

§ 601.6157 *VOR civil airway No. 157 control areas (Wilmington, N. C., to Richmond, Va.).* All of VOR civil airway No. 157.

32. Section 601.6159 is amended to read:

§ 601.6159 *VOR civil airway No. 159 control areas (Miami, Fla., to Albany, Ga.).* All of VOR civil airway No. 159.

33. Section 601.6162 is amended to read:

§ 601.6162 *VOR civil airway No. 162 control areas (Harrisburg, Pa., to Allentown, Pa.).* All of VOR civil airway No. 162, including a south alternate.

34. Section 601.6180 is added to read:

§ 601.6180 *VOR civil airway No. 180 control areas (Lansing, Mich., to Selfridge, Mich.).* All of VOR civil airway No. 180.

35. Section 601.6185 is added to read:

§ 601.6185 *VOR civil airway No. 185 control areas (Augusta, Ga., to Knoxville, Tenn.).* All of VOR civil airway No. 185, including an east alternate, but excluding the airspace between the main airway and the east alternate airway from the Asheville, N. C., omnirange station to the Knoxville, Tenn., omnirange station.

36. Section 601.6191 is added to read:

§ 601.6191 *VOR civil airway No. 191 control areas (Walnut Ridge, Ark., to Chicago, Ill.)* All of VOR civil airway No. 191.

37. Section 601.6193 is added to read:

§ 601.6193 *VOR civil airway No. 193 control areas (Grand Rapids, Mich., to Traverse City, Mich.).* All of VOR civil airway No. 193.

38. Section 601.6194 is added to read:

§ 601.6194 *VOR civil airway No. 194 control areas (Charlotte, N. C., to Raleigh, N. C.).* All of VOR civil airway No. 194.

39. Section 601.6195 is added to read:

§ 601.6195 *VOR civil airway No. 195 control areas.* [Unassigned.]

40. Section 601.6197 is added to read:

§ 601.6197 *VOR civil airway No. 197 control areas (Toledo, Ohio to Detroit, Mich.).* All of VOR civil airway No. 197.

41. Section 601.7001 *Domestic VOR reporting points* is amended by adding the following reporting points:

South Boston, Va., omnirange station.

Pioneer Intersection: The intersection of the Fort Wayne, Ind., omnirange 037° True and the Waterville, Ohio, omnirange 288° True radials.

Edgerton Intersection: The intersection of the Fort Wayne, Ind. omnirange 037° True and the Goshen, Ind., omnirange 092° True radials.

by revoking the following reporting points:

Losoya Intersection: The intersection of the San Antonio, Tex., omnirange 167° True and the Cotulla, Tex., omnirange 040° True radials.

Danville, Va., omnirange station

and by changing the following reporting point to read:

La Belle Intersection: The intersection of the Miami, Fla., omnirange 316° True and the Fort Myers, Fla., omnirange 035° True radials.

(Sec. 205, 52 Stat. 984, as amended; 49 U. S. C. 425. Interprets or applies sec. 601, 52 Stat. 1107, as amended; 49 U. S. C. 551)

This amendment shall become effective 0001 e. s. t., July 14, 1955.

[SEAL] F. B. LEE,
*Administrator of Civil Aeronautics.*

[F. R. Doc. 55–5480; Filed, July 7, 1955; 8:47 a. m.]

[Amdt. 88]

## PART 610—MINIMUM EN ROUTE IFR ALTITUDES

### MISCELLANEOUS AMENDMENTS

The minimum en route IFR altitudes appearing hereinafter have been coordinated with interested members of the industry in the regions concerned insofar as practicable. The altitudes are adopted without delay in order to provide for safety in air commerce. Compliance with the notice, procedures, and effective date provisions of section 4 of the Administrative Procedure Act would be impracticable and contrary to the public interest, and therefore is not required.

Part 610 is amended as follows: (Listed items to be placed in appropriate sequence in the sections indicated).

1. Section 610.14 *Green Civil Airway No. 4* is amended to read in part:

| From— | To— | Minimum altitude |
|---|---|---|
| West Jefferson (INT), Ind. | Columbus, Ohio (LFR). | 2,500 |

2. Section 610.220 *Red Civil Airway No. 20* is amended to delete:

| From— | To— | Minimum altitude |
|---|---|---|
| North Royalton, Ohio (FM). | Akron Ohio (LFR) (southeast-bound only). | 2,600 |

3. Section 610.255 *Red Civil Airway No. 55* is amended to read in part:

| From— | To— | Minimum altitude |
|---|---|---|
| South Bend, Ind. (LFR). | Goshen, Ind. (LFR).. | 2,400 |

4. Section 610.258 *Red Civil Airway No. 58* is amended to read:

| From— | To— | Minimum altitude |
|---|---|---|
| Augusta, Maine (LFR). | Bangor, Maine (LFR). | 2,300 |
| Bangor, Maine (LFR).. | U. S.-Canadian Border. | 2,500 |

5. Section 610.268 *Red Civil Airway No. 68* is amended to read in part:

| From— | To— | Minimum altitude |
|---|---|---|
| Midland, Tex. (LFR).. | San Angelo, Tex. (LFR) | 4,400 |

6. Section 610.269 *Red Civil Airway No. 69* is amended to read:

| From— | To— | Minimum altitude |
|---|---|---|
| Midland, Tex. (LFR).. | Int. NE crs. Midland, Tex. (LFR), and W crs. Big Spring, Tex. (LFR). | 4,400 |

7. Section 610.6003 *VOR Civil Airway No. 3* is amended to read in part:

| From— | To— | Minimum altitude |
|---|---|---|
| Daytona Beach, Fla. (VOR). | Jacksonville, Fla. (VOR). | 1,300 |
| Via E alter..... | Via E alter..... | [1] 1,700 |

[1] 1,300'—Minimum terrain clearance altitude.

8. Section 610.6004 *VOR Civil Airway No. 4* is amended to read in part:

| From— | To— | Min. altitude |
|---|---|---|
| Kansas City, Mo. (VOR). | Lexington (INT), Mo.. | 2,400 |
| Lexington (INT), Mo.. | Columbia, Mo. (VOR). | [1] 3,400 |
| Kansas City, Mo. (VOR), via N alter. | Excelsior (INT), Mo., via N alter. | 2,400 |
| Excelsior (INT), Mo., via N alter. | Tina (INT), Mo., via N alter. | [1] 3,100 |
| Tina (INT), Mo., via N alter. | Columbia, Mo. (VOR), via N alter. | [1] 4,900 |

[1] 2,400'—Minimum terrain clearance altitude.

9. Section 610.6005 *VOR Civil Airway No. 5* is amended to read in part:

| From— | To— | Minimum altitude |
|---|---|---|
| Jacksonville, Fla. (VOR) via W alter. | Hilliard (INT), Fla., via Walter. | 1,300 |
| Hilliard (INT), Fla., via W alter. | Alma, Ga. (VOR), via W alter. | 1,500 |
| Alma, Ga. (VOR), via W alter. | Powersville (INT), Ga., via W alter. | [1] 6,800 |
| Powersville (INT), Ga., via W alter. | Atlanta, Ga. (VOR), via W alter. | [2] 3,500 |
| Cincinnati, Ohio (VOR). | Columbus, Ohio (VOR). | 2,500 |

[1] 1,700'—Minimum terrain clearance altitude.
[2] 2,300'—Minimum terrain clearance altitude.

10. Section 610.6008 *VOR Civil Airway No. 8* is amended to delete:

| From— | To— | Minimum altitude |
|---|---|---|
| Findlay, Ohio (VOR), via N alter. | Mansfield, Ohio (VOR), via N alter. | 2,500 |

11. Section 610.6009 *VOR Civil Airway No. 9* is amended to read in part:

| From— | To— | Minimum altitude |
|---|---|---|
| Farmington, Mo. (VOR). | Crystal City [1] (INT), Mo. | 2,500 |
| Crystal City [1] (INT), Mo. | Meramec (INT), Mo.. | 2,500 |
| Meramec (INT), Mo.... | St. Louis, Mo. (VOR). | 2,000 |

[1] 3,000'—Minimum reception altitude.

12. Section 610.6010 *VOR Civil Airway No. 10* is amended to read in part:

| From— | To— | Minimum altitude |
|---|---|---|
| Kansas City, Mo. (VOR). | Polo (INT), Mo..... | 2,400 |
| Polo (INT), Mo..... | Kirksville, Mo. (VOR).. | [1] 3,400 |
| Kansas City, Mo. (VOR), via S alter. | Excelsior (INT), Mo., via S alter. | 2,400 |
| Excelsior (INT), Mo., via S alter. | Kirksville, Mo. (VOR), via S alter. | [1] 3,100 |

[1] 2,400'—Minimum terrain clearance altitude.

13. Section 610.6012 *VOR Civil Airway No. 12* is amended to read in part:

| From— | To— | Minimum altitude |
|---|---|---|
| Kansas City, Mo. (VOR). | Lexington (INT), Mo.. | 2,400 |
| Lexington (INT), Mo.. | Columbia, Mo. (VOR). | [1] 3,400 |
| Kansas City, Mo. (VOR), via N alter. | Excelsior (INT), Mo., via N alter. | 2,400 |
| Excelsior (INT), Mo., via N alter. | Tina (INT), Mo., via N alter. | [1] 3,100 |
| Tina (INT), Mo., via N alter. | Columbia, Mo. (VOR), via N alter. | [1] 4,900 |
| St. Louis, Mo. (VOR).. | Vandalia, Ill. (VOR). | 2,000 |
| St. Louis, Mo. (VOR), via N alter. | Fidelity [2] (INT), Ill., via N alter. | 2,000 |
| Fidelity [2] (INT), Ill., via N alter. | Gillespie (INT), Ill., via N alter. | [3] 3,000 |
| Gillespie (INT), Ill., via N alter. | Vandalia, Ill. (VOR), via N alter. | 2,000 |
| Dayton, Ohio (VOR).. | Columbus, Ohio (VOR). | 2,500 |

[1] 2,400'—Minimum terrain clearance altitude.
[2] 3,000'—Minimum reception altitude.
[3] 2,000'—Minimum terrain clearance altitude.

14. Section 610.6013 *VOR Civil Airway No. 13* is amended to read in part:

| From— | To— | Minimum altitude |
|---|---|---|
| Kansas City, Mo. (VOR), via E alter. | Lathrop (INT), Mo., via E alter. | 2,400 |
| Lathrop (INT), Mo., via E alter. | Jameson [1] (INT), Mo., via E alter. | [2] 2,900 |
| Jameson [1] (INT), Mo., via E alter. | Lamoni, Iowa (VOR), via E alter. | [2] 2,900 |
| Butler, Mo. (VOR)..... | Grandview (INT), Mo. | 2,400 |
| Grandview (INT), Mo. | Kansas City, Mo. (VOR). | 3,000 |

[1] 3,000'—Minimum reception altitude.
[2] 2,400'—Minimum terrain clearance altitude.

15. Section 610.6014 *VOR Civil Airway No. 14* is amended to read in part:

| From— | To— | Minimum altitude |
|---|---|---|
| St. Louis, Mo. (VOR).. | Vandalia, Ill. (VOR).. | 2,000 |
| St. Louis, Mo. (VOR), via N alter. | Fidelity [1] (INT), Ill., via N alter. | 2,000 |
| Fidelity [1] (INT), Ill., via N alter. | Gillespie (INT), Ill., via N alter. | [2] 3,000 |
| Gillespie (INT), Ill., via N alter. | Vandalia, Ill. (VOR), via N alter. | 2,000 |

[1] 3,000'—Minimum reception altitude.
[2] 2,000'—Minimum terrain clearance altitude.

16. Section 610.6015 *VOR Civil Airway No. 15* is amended to read in part:

| From— | To— | Minimum altitude |
|---|---|---|
| Kansas City, Mo. (VOR). | Camden (INT), Mo. | 2,400 |
| Camden (INT), Mo. | St. Joseph, Mo. (VOR) | 2,800 |

17. Section 610.6016 *VOR Civil Airway No. 16* is amended to read in part:

| From— | To— | Minimum altitude |
|---|---|---|
| Midland, Tex. (VOR) | Big Spring, Tex. (VOR). | 4,400 |

18. Section 610.6025 *VOR Civil Airway No. 25* is amended to read in part:

| From— | To— | Minimum altitude |
|---|---|---|
| The Dalles, Oreg. (VOR), via E alter. Toppenish (INT), Wash., via E alter. | Toppenish (INT), Wash., via E alter. | 7,000 |
| | Yakima, Wash. (VOR), via E alter: | |
| | (Northbound) | 4,000 |
| | (Southbound) | 5,000 |

19. Section 610.6026 *VOR Civil Airway No. 26* is amended by adding:

| From— | To— | Minimum altitude |
|---|---|---|
| Casper, Wyo. (VOR) | Rapid City,[1] S. Dak. (VOR). | [2] 13,000 |

[1] 6,000′—Minimum crossing altitude at Rapid City (VOR), westbound.
[2] 10,000′—Minimum terrain clearance altitude.

20. Section 610.6049 *VOR Civil Airway No. 49* is amended by adding:

| From— | To— | Minimum altitude |
|---|---|---|
| Int. Butte, Mont. (VOR) 343° mag. rad. and Helena, Mont. (VOR), 253° mag. rad. | Avon (INT), Mont. | 9,000 |
| Avon (INT), Mont. | Wolf Creek (INT), Mont. | 9,500 |
| Wolf Creek (INT), Mont. | Great Falls,[1] Mont. (VOR). | 8,500 |

[1] 6,600′—Minimum crossing altitude at Great Falls (VOR), southwest-bound.

21. Section 610.6051 *VOR Civil Airway No. 51* is amended to read in part:

| From— | To— | Minimum altitude |
|---|---|---|
| Jacksonville, Fla. (VOR), via W alter. Hilliard (INT), Fla. via W alter. | Hilliard (INT), Fla., via W alter. | 1,300 |
| | Alma, Ga. (VOR), via W alter. | 1,500 |

22. Section 610.6055 *VOR Civil Airway No. 55* is amended to read in part:

| From— | To— | Minimum altitude |
|---|---|---|
| Goshen, Ind (VOR) | South Bend, Ind. (VOR). | 2,400 |

23. Section 610.6059 *VOR Civil Airway No. 59* is amended to read in part:

| From— | To— | Minimum altitude |
|---|---|---|
| Evansville, Ind. (VOR). | Farina[1] (INT), Ill. | 2,000 |
| Farina[1] (INT), Ill. | Vandalia, Ill. (VOR) | 2,000 |
| Evansville, Ind. (VOR), via E alter. | Vandalia, Ill. (VOR), via E alter. | 2,000 |

[1] 3,100′—Minimum reception altitude.

24. Section 610.6068 *VOR Civil Airway No. 68* is amended to read in part:

| From— | To— | Minimum altitude |
|---|---|---|
| Hobbs, N. Mex. (VOR) | Pipe Line (INT), Tex. | 5,300 |
| Pipe Line (INT), Tex. | Midland, Tex. (VOR). | 5,000 |
| Hobbs, N. Mex. (VOR), via S alter. | Midland, Tex. (VOR), via S alter. | 5,300 |
| Midland, Tex. (VOR), via dir. or S alter. | San Angelo, Tex. (VOR), via dir. or S alter. | 4,400 |

25. Section 610.6069 *VOR Civil Airway No. 69* is amended to read in part:

| From— | To— | Minimum altitude |
|---|---|---|
| Farmington, Mo. (VOR). | Red Bud (INT), Ill. | 2,500 |
| Red Bud (INT), Ill. | Troy, Ill. (VOR) | 2,200 |

26. Section 610.6070 *VOR Civil Airway No. 70* is amended by adding:

| From— | To— | Minimum altitude |
|---|---|---|
| Baton Rouge, La. (VOR). | Madisonville[1] (INT), La. | 2,300 |

[1] 2,000′—Minimum reception altitude.

27. Section 610.6072 *VOR Civil Airway No. 72* is amended to read in part:

| From— | To— | Minimum altitude |
|---|---|---|
| Vichy, Mo. (VOR) | Troy, Ill. (VOR) | 2,200 |

28. Section 610.6088 *VOR Civil Airway No. 88* is amended to read in part:

| From— | To— | Minimum altitude |
|---|---|---|
| Vichy, Mo. (VOR) | Crystal City[1] (INT), Mo. | [2] 3,000 |
| Crystal City[1] (INT), Mo. | Red Bud (INT), Ill. | [2] 3,000 |
| Red Bud (INT), Ill. | Centralia, Ill. (VOR) | 2,500 |
| Centralia, Ill. (VOR) | Cisne (INT), Ill. | 2,100 |
| Cisne (INT), Ill. | Scotland, Ind. (VOR) | [3] 3,000 |

[1] 3,000′—Minimum reception altitude.
[2] 2,500′—Minimum terrain clearance altitude.
[3] 2,100′—Minimum terrain clearance altitude.

29. Section 610.6100 *VOR Civil Airway No. 100* is amended to delete:

| From— | To— | Minimum altitude |
|---|---|---|
| San Francisco,[1] Calif. (VOR). | Los Banos (INT), Calif. | 7,000 |
| Los Banos (INT), Calif. | Fresno, Calif. (VOR) | 3,000 |
| Hillview (INT), Calif. | San Francisco, Calif. (VOR), (westbound only). | 3,000 |

[1] 4,500′—Minimum crossing altitude at San Francisco (VOR), eastbound.

30. Section 610.6114 *VOR Civil Airway No. 114* is amended to delete:

| From— | To— | Minimum altitude |
|---|---|---|
| Shreveport, La. (VOR) | Alexandria, La. (VOR). | [1] 4,800 |
| Baton Rouge, La. (VOR), via N alter. | Madisonville[2] (INT), La., via N alter. | 2,300 |
| Madisonville[2] (INT), La., via N alter. | New Orleans, La. (VOR), via N alter. | 1,700 |

[1] 1,700′—Minimum terrain clearance altitude.
[2] 2,000′—Minimum reception altitude.

31. Section 610.6114 *VOR Civil Airway No. 114* is amended by adding:

| From— | To— | Minimum altitude |
|---|---|---|
| Dallas, Tex. (VOR), via S alter. | Gregg County, Tex. (VOR), via S alter. | [1] 4,000 |
| Gregg County, Tex. (VOR). | Converse[2] (INT), La. | [2] 3,400 |
| Converse[2] (INT), La. | Alexandria, La. (VOR). | [2] 3,400 |
| Gregg County, Tex. (VOR), via N alter. | Shreveport, La. (VOR), via N alter. | 1,800 |
| Shreveport, La. (VOR), via N alter. | Converse[2] (INT), La., via N alter. | [2] 3,000 |
| Converse[2] (INT), La., via N alter. | Alexandria, La. (VOR), via N alter. | [2] 3,400 |

[1] 2,300′—Minimum terrain clearance altitude.
[2] 3,400′—Minimum reception altitude.
[3] 1,700′—Minimum terrain clearance altitude.

32. Section 610.6116 *VOR Civil Airway No. 116* is amended to read in part:

| From— | To— | Minimum altitude |
|---|---|---|
| Kansas City, Mo. (VOR). | Excelsior (INT), Mo. | 2,400 |
| Excelsior (INT), Mo. | Tina (INT), Mo. | [1] 3,100 |
| Tina (INT), Mo. | Excello (INT), Mo. | [2] 5,000 |
| Excello (INT), Mo. | Warren (INT), Mo. | [2] 2,500 |
| Warren (INT), Mo. | Quincy, Ill. (VOR) | 2,000 |

[1] 2,400′—Minimum terrain clearance altitude.
[2] 2,000′—Minimum terrain clearance altitude.

33. Section 610.6120 *VOR Civil Airway No. 120* is amended by adding:

| From— | To— | Minimum altitude |
|---|---|---|
| Mullan Pass, Mont. (VOR). | Great Falls, Mont. (VOR). | 12,700 |

34. Section 610.6174 *VOR Civil Airway No. 174* is amended to read in part:

| From— | To— | Minimum altitude |
|---|---|---|
| Troy, Ill. (VOR) | Vernon (INT), Ill. | 2,100 |
| Vernon (INT), Ill. | Farina [1] (INT), Ill. | [2] 3,100 |
| Farina [1] (INT), Ill. | Carlisle (INT), Ind. | [2] 3,100 |
| Carlisle (INT), Ind. | Scotland, Ind. (VOR). | 2,000 |

[1] 3,100′—Minimum reception altitude.
[2] 2,100′—Minimum terrain clearance altitude.

35. Section 610.6176 *VOR Civil Airway No. 176* is amended to read in part:

| From— | To— | Minimum altitude |
|---|---|---|
| Centralia, Ill. (VOR) | Cisne (INT), Ill. | 2,100 |
| Cisne (INT), Ill. | Scotland, Ind. (VOR). | [1] 3,000 |

[1] 2,100′—Minimum terrain clearance altitude.

36. Section 610.6190 *VOR Civil Airway No. 190* is added to read:

| From— | To— | Minimum altitude |
|---|---|---|
| Grants, N. Mex. (VOR). | Aden (INT), N. Mex. | 10,000 |
| Aden (INT), N. Mex. | Santa Fe, N. Mex. (VOR). | 9,000 |
| Santa Fe,[1] N. Mex. (VOR). | Las Vegas,[2] N. Mex. (VOR). | 12,500 |
| Las Vegas, N. Mex. (VOR). | Dalhart, Tex. (VOR). | [3] 13,000 |
| Dalhart, Tex. (VOR) | Gage, Okla. (VOR) | [4] 5,700 |

[1] 11,600′—Minimum crossing altitude at Santa Fe (VOR), eastbound.
[2] 11,300′—Minimum crossing altitude at Las Vegas (VOR), westbound.
[3] 9,000′—Minimum terrain clearance altitude.
[4] 5,200′—Minimum terrain clearance altitude.

37. Section 610.6192 *VOR Civil Airway No. 192* is added to read:

| From— | To— | Minimum altitude |
|---|---|---|
| Grants, N. Mex. (VOR). | Ladrones (INT), N. Mex. | 11,000 |
| Ladrones [1] (INT), N. Mex. | Corona, N. Mex. (VOR). | 9,500 |
| Corona, N. Mex. (VOR). | Tucumcari, N. Mex. (VOR). | [2] 11,000 |

[1] 10,000′—Minimum crossing altitude at Ladrones (INT), northwest-bound.
[2] 9,000′—Minimum terrain clearance altitude.

38. Section 610.6196 *VOR Civil Airway No. 196* is added to read:

| From— | To— | Minimum altitude |
|---|---|---|
| Rock River, Wyo. (VOR). | Wheatland (INT), Wyo. | 11,000 |
| Wheatland (INT), Wyo. | Chadron, Nebr. (VOR). | [1] 10,000 |

[1] 8,000′—Minimum terrain clearance altitude.

39. Section 610.6199 *VOR Civil Airway No. 199* is added to read:

| From— | To— | Minimum altitude |
|---|---|---|
| San Francisco,[1] Calif. (VOR). | Los Banos (INT), Calif. | 7,000 |
| Los Banos (INT), Calif. | Fresno, Calif. (VOR). | 3,000 |
| Hillview (INT), Calif. | San Francisco, Calif. (VOR) (westbound only). | 3,000 |

[1] 4,500′—Minimum crossing altitude at San Francisco (VOR), eastbound.

(Sec. 205, 52 Stat. 984, as amended; 49 U. S. C. 425. Interpret or apply sec. 601, 52 Stat. 1007, as amended; 49 U. S. C. 551)

These rules shall become effective July 28, 1955.

[SEAL] F. B. LEE,
*Administrator of Civil Aeronautics.*

[F. R. Doc. 55-5398; Filed, July 7, 1955; 8:45 a. m.]

# TITLE 24—HOUSING AND HOUSING CREDIT

## Chapter II—Federal Housing Administration, Housing and Home Finance Agency

### Subchapter B—Property Improvement Loans

### PART 201—CLASS 1 AND CLASS 2 PROPERTY IMPROVEMENT LOANS

### Subchapter O—National Defense Rental Housing Insurance

### PART 296—ELIGIBILITY REQUIREMENTS FOR NATIONAL DEFENSE RENTAL HOUSING INSURANCE

GENERAL INSURANCE RESERVE; ELIGIBILITY FOR INSURANCE

1. Section 201.12 (b) is amended to read as follows:

§ 201.12 *Insurance reserve.* * * *

(b) *General insurance reserve.* There shall be maintained for each insured a general insurance reserve, which shall equal ten percent of the aggregate amount advanced on all eligible loans originated by such insured pursuant to the provisions of the regulations in this part on and after March 1, 1950, and prior to the expiration of the Commissioner's authority to insure under the provisions of the act, less the amount of all claims approved for payment by the Commissioner in connection with such loans and less the amount of the adjustment or adjustments, if any, made pursuant to paragraph (c) of this section.

(Sec. 2, 48 Stat. 1246, as amended; 12 U. S. C., 1703)

2. Section 296.2 (a) is amended to read as follows:

§ 296.2 *Eligibility for insurance.* (a) No mortgage may be insured under this title, except on a project or projects in such area or areas as the President shall designate.

(Sec. 907, 65 Stat. 301; 12 U. S. C. 1750f).

Issued at Washington, D. C., June 30, 1955.

[SEAL] NORMAN P. MASON,
*Federal Housing Commissioner.*

[F. R. Doc. 55-5504; Filed, July 7, 1955; 8:51 a. m.]

### Subchapter N—National Defense Housing Insurance

### PART 295—NATIONAL DEFENSE HOUSING INSURANCE; RIGHTS AND OBLIGATIONS OF MORTGAGEE UNDER INSURANCE CONTRACT

CONDITION OF PROPERTY WHEN TRANSFERRED; DELIVERY OF DEBENTURES AND CERTIFICATES OF CLAIM

In § 295.11 (a), subparagraph (4) is redesignated as subparagraph (2), and subparagraphs (1), (2) and (3) are consolidated and amended to read as follows:

§ 295.11 *Condition of property when transferred; delivery of debentures and certificates of claim.* (a) * * *

(1) Debentures of the National Defense Housing Insurance Fund as set forth in section 904 of the act, which debentures shall:

(i) Be issued as of the date foreclosure proceedings were instituted, or as of the date the property was otherwise acquired by the mortgagee after default, or as of the date the property was acquired by the Commissioner if directly conveyed to the Commissioner from the mortgagor;

(ii) Have a face value to be determined by adding to original principal of the mortgage, as increased by the amount of advances made by the mortgagee and approved by the Commissioner for the improvement or repair of the property pursuant to an "open-end" provision in the mortgage, which was unpaid on the date of the institution of the foreclosure proceedings or the acquisition of the property otherwise after default, the amount of all payments which have been made by the mortgagee for taxes, ground rent and water rates, which are liens prior to the mortgage, special assessments, which are noted on the application for insurance or which become liens after the insurance of the mortgage, hazard insurance on the mortgaged property, any mortgaged insurance premiums or charges paid after the institution of foreclosure proceedings or the acquisition of the property otherwise after default, and by deducting from such total any amount received on account of the mortgage after the institution of foreclosure proceedings or the acquisition of the property otherwise after default and from any source relating to the property on account of rent or other income after deducting reasonable expenses incurred in handling the property: *Provided however,* That with respect to mortgages on which the unpaid principal obligation at the time of the institution of foreclosure proceedings exceeds 80 percent of the appraised value of the property as of the date the mortgage was accepted for insurance, there will be included in the debentures issued by the Commissioner, on account of the cost of foreclosure (or of acquiring the property by other means) actually paid by the mortgagee and approved by the Commissioner an amount not in excess of 2 percent of the unpaid principal of the mortgage as of the date of the institution of foreclosure proceedings and not in excess of $75; or not in excess of two-thirds of such cost, whichever is

the greater: *Provided further*, That with respect to mortgages to which the provisions of sections 302 and 306 of the Soldiers' and Sailors' Civil Relief Act of 1940, as amended, apply, there shall be included in the debentures an amount which the Commissioner finds to be sufficient to compensate the mortgagee for any loss which it may have sustained on account of interest on debentures and the payment of insurance premiums by reason of its having postponed the institution of foreclosure proceedings or the acquisition of the property by other means during any part or all of the period of such military service and three months thereafter;

(iii) Be registered as to principal and interest;

(iv) At the option of the Commissioner and with the approval of the Secretary of the Treasury, be redeemed at par and accrued interest on any interest payment day on 3 months' notice of redemption given in such manner as the Commissioner shall prescribe;

(v) Mature 20 years from the date thereof;

(vi) Bear interest from the date of issue, payable semiannually on the first day of January and the first day of July of each year at the rate in effect as of the date the commitment was issued or as of the date the mortgage was endorsed for insurance, whichever rate is the higher. The following interest rates are effective for the dates listed:

| Effective rate | On or after— | Prior to— |
|---|---|---|
| *Percent* | | |
| 2½ | Sept. 1, 1951 | July 8, 1953 |
| 2¾ | July 8, 1953 | May 29, 1954 |
| 2½ | May 29, 1954 | Jan. 1, 1955 |
| 2⅝ | Jan. 1, 1955 | July 1, 1955 |
| 2⅞ | July 1, 1955 | ---------- |

(Sec. 907, 65 Stat. 301; 12 U. S. C. 1750f)

Issued at Washington, D. C., June 30, 1955.

[SEAL] NORMAN P. MASON,
*Federal Housing Commissioner.*

[F. R. Doc. 55-5505; Filed, July 7, 1955; 8:52 a. m.]

# TITLE 31—MONEY AND FINANCE: TREASURY

## Chapter I—Monetary Offices, Department of the Treasury

[1955 Dept. Circular 1]

### PART 129—VALUES OF FOREIGN MONEYS

### QUARTER BEGINNING JULY 1, 1955

JULY 1, 1955.

§ 129.18 *Calendar year, 1955.* * * *

(c) *Quarter beginning July 1, 1955.* Pursuant to section 522, title IV, of the Tariff Act of 1930, reenacting section 25 of the act of August 27, 1894, as amended, the following estimates by the Director of the Mint of the values of foreign monetary units, are hereby proclaimed to be the values of such units in terms of the money of account of the United States that are to be followed in estimating the value of all foreign merchandise exported to the United States during the quarter beginning July 1, 1955, expressed in any such foreign monetary units: *Provided, however*, That if no such value has been proclaimed, or if the value so proclaimed varies by 5 per centum or more from a value measured by the buying rate in the New York market at noon on the day of exportation, conversion shall be made at a value measured by such buying rate as determined and certified by the Federal Reserve Bank of New York and published by the Secretary of the Treasury pursuant to the provisions of section 522, title IV, of the Tariff Act of 1930.

[SEAL] H. CHAPMAN ROSE,
*Acting Secretary of the Treasury.*

[The value of foreign monetary units, as shown below in terms of United States money, is the ratio between the legal gold content of the foreign unit and the legal gold content of the United States dollar. It should be noted that this value, with respect to most countries, varies widely from the present exchange rates. Countries not having a legally defined gold monetary unit, or those for which current information is not available, are omitted.]

| Country | Monetary unit | Value in terms of U. S. money | Remarks |
|---|---|---|---|
| Colombia | Peso | $0.5128 | Monetary Law No. 90 of Dec. 16, 1948, effective Dec. 18, 1948, content of peso 0.50637 gram of gold 9/10 fine. Obligation to sell gold suspended Sept. 24, 1931. |
| Costa Rica | Colon | .1781 | Parity of 0.158267 fine gram gold established by decree law effective Mar. 22, 1947. |
| Denmark | Krone | .4537 | Conversion of notes into gold suspended Sept. 29, 1931. |
| Dominican Republic. | Peso | 1.0000 | By monetary law No. 1528 effective Oct. 9, 1947, gold content of peso equal to 0.888671 gram fine. |
| Ethiopia | Dollar | .4025 | New unit established by Proclamation of the Emperor on May 25, 1945, effective July 23, 1945. |
| Finland | Markka | .0426 | Conversion of notes into gold suspended Oct. 12, 1931. |
| Guatemala | Quetzal | 1.0000 | Decree No. 203 of Dec. 10, 1945, defined the monetary unit as 15 5/21 grains gold 9/10 fine. Conversion of notes into gold suspended Mar. 6, 1933. |
| Haiti | Gourde | .2000 | National bank notes redeemable on demand in U. S. dollars. |
| Peru | Sol | .4740 | Conversion of notes into gold suspended May 18, 1932; exchange control established Jan. 23, 1945. |
| Philippines | Peso | .5000 | International value according to the Central Bank Act approved June 15, 1948. Exchange control established. |
| Sweden | Krona | .4537 | Conversion of notes into gold suspended Sept. 29, 1931. |
| Uruguay | Peso | .6583 | Present gold content of 0.585018 gram fine established by law of Jan. 18, 1938. Conversion of notes into gold suspended Aug. 2, 1914; exchange control established Sept. 7, 1931. |
| Venezuela | Bolivar | .3267 | Exchange control established Dec. 12, 1936. |

(Sec. 522, 46 Stat. 739; 31 U. S. C. 372)

[F. R. Doc. 55-5508; Filed, July 7, 1955; 8:52 a. m.]

# TITLE 38—PENSIONS, BONUSES, AND VETERANS' RELIEF

## Chapter I—Veterans Administration

### PART 36—SERVICEMEN'S READJUSTMENT ACT OF 1944

### SUBPART A—TITLE III; LOAN GUARANTY

### SUPPLEMENTARY ADMINISTRATIVE ACTION

Section 36.4335 is revised to read as follows:

§ 36.4335 *Supplementary administrative action.* Notwithstanding any requirement, condition or limitation stated in or imposed by the regulations concerning the guaranty or insurance of loans to veterans, the Deputy Administrator for Veterans Benefits, within the limitations and conditions prescribed by the Administrator, is hereby authorized, if he finds the interests of the Government are not adversely affected, to relieve undue prejudice to a debtor, holder, or other person, which might otherwise result, provided no such action may be taken which would impair the vested rights of any person affected thereby. If such requirement, condition, or limitation is of an administrative or procedural (not substantive) nature, any employee designated in § 36.4342 is hereby authorized to grant similar relief if he finds the failure or error of the lender was due to misunderstanding or mistake and that the interests of the Government are not adversely affected. Provisions of the regulations considered to be of an administrative or procedural (nonsubstantive) nature are limited to the following:

(a) The requirement in § 36.4303 (a) that a supervised lender originating a loan under the automatic (non-prior approval) procedure report such loan for issuance of guaranty or insurance evidence within 30 days following full disbursement. Waiver of the lender's failure to report the loan within the 30 day period shall be confined to cases where the loan is not in default.

(b) The requirement in § 36.4303 (d) that a lender originating a loan under a certificate of commitment (VA Form 4-1866) report the loan for issuance of guaranty or insurance evidence within 30 days following actual payment of the full proceeds of the loan. In such cases it is not necessary that a finding be made that the loan is not in default.

(c) The requirement in § 36.4314 (e) that a holder promptly forward an advice of the terms of any agreement effecting a reamortization or extension of a loan.

(d) The 45 day requirement in § 36.4315 (a) concerning the giving of notice of default.

(e) The requirement in § 36.4317 that a holder give 30 days advance notice of its intention to foreclose.

(f) The requirement is § 36.4317 (b) that a holder give notice of repossession of personal property within 10 days after such repossession has occurred.

(Sec. 504, 58 Stat. 293, as amended; 38 U. S. C. 694d)

This regulation is effective July 8, 1955.

[SEAL] J. C. PALMER,
*Assistant Deputy Administrator.*

[F. R. Doc. 55-5503; Filed, July 7, 1955; 8:51 a. m.]

# TITLE 46—SHIPPING

## Chapter I—Coast Guard, Department of the Treasury

[CGFR 55-23]

### Tank Vessel and Marine Engineering Regulations

A notice regarding proposed changes in the navigation and vessel inspection rules and regulations was published in the Federal Register dated February 18, 1955 (20 F. R. 1055–1057), as Items I to IX, inclusive, on the Agenda to be considered by the Merchant Marine Council, and a public hearing was held on March 22, 1955, at Washington, D. C. This document is the third of a series of documents covering the rules and regulations considered at this public hearing.

All the comments, views, and data submitted in connection with the items considered by the Merchant Marine Council at this public hearing have been very helpful to the Coast Guard and are very much appreciated. The amendments in this document are based on Items II and III in the Agenda.

The regulations governing the bulk transportation of inflammable or combustible liquids having toxic or lethal characteristics in 46 CFR Part 39 have been revised in their entirety. The revised regulations will permit the transportation in bulk quantities of class "B" poisons, having a negligible vapor pressure, in tanks built integral with the vessel's hull, with other tanks surrounding the ones in which the class "B" poison is stowed. The regulations in 46 CFR Part 39 apply when class "B" or "C" poisons are transported in bulk in vessels. The revised regulations are based on Item III in the Agenda.

The amendment to 46 CFR 52.01–7 permits the alternate use of empirical formulas in lieu of proof hydrostatic tests for determining pressure ratings of pressure vessels having cross sections other than circular. The amendment to 46 CFR 52.05–12 revises the requirements for pressure vessels designed with a factor of safety of four so that these requirements will be similar to those of the American Bureau of Shipping and the ASME Boiler Code Rules. This amendment will require removal of weld reinforcement for vessels subject to temperatures exceeding 800 degrees F. wherever possible. The amendment to 46 CFR 52.20–15 (f) and (h) revises the requirements for reinforced openings in dished heads so that these requirements will be consistent with the ABS Rules and the ASME Boiler Code Rules. The amendment to 46 CFR 52.20–20 revises the requirements for flanged-in manhole openings in heads so that these requirements will be similar to the ABS Rules and the ASME Boiler Code Rules. These amendments are based on Item II in the Agenda.

The regulations in 46 CFR Subpart 52.25 regarding openings and reinforcements have been revised in their entirety in order to conform with new requirements in the ASME Boiler Code Rules. These requirements have been proposed by the American Bureau of Shipping. As a result of revising 46 CFR Subpart 52.25 the requirements in 46 CFR 52.22–15 have been transferred to this new subpart and an appropriate cross reference inserted. The amendment to 46 CFR 52.24–10 (1) is a cross reference to the new requirements in 46 CFR Subpart 52.25. These amendments are based on Item II in the Agenda.

The amendment to 46 CFR 52.60–20 (a) (5) adds a new requirement that superheaters are to be fitted with vents. This requirement is considered essential for the protection of the superheater when starting up. This requirement is in compliance with the ABS Rules. The amendment to 46 CFR 52.70–10 (b) changes the requirements covering studded boiler connections so that these requirements will conform to the current ASME Boiler Code Rules and ABS Rules. These amendments are based on Item II in the Agenda.

The amendment to 46 CFR 54.03–15, including Table 52.03–15 (f), will permit a tube sheet pitch less than the minimum previously required for heat exchangers. However, the manufacturer will be required to demonstrate that he can secure a tight tube connection and that damage to the tube sheet does not occur in way of the tube attachment in rolling. The amendment to 46 CFR 54.03–40 revises the requirements regarding openings and reinforcements for unfired pressure vessels in order that these regulations will be consistent with similar requirements for openings and reinforcements in boilers prescribed by 46 CFR 52.25. These amendments are based on Item II in the Agenda.

The amendment to 46 CFR 55.10–55, regarding lubricating oil system, revises these requirements so that they will be similar to the current ABS Rules. The amendment to 46 CFR 55.10–70 (a) (3) and (g) revises the requirements regarding overboard discharges and shell connections by including recommended practices previously published in Navigation and Vessel Inspection Circular No. 6–48. The revised regulations are in compliance with ABS Rules and are intended to clarify requirements for overboard discharges where led through cargo tanks on tank vessels. These amendments are based on Item II in the Agenda.

The amendment to 46 CFR 56.01–10 revises the qualifications for welders. Welders qualified by the Bureau of Ships, Navy Department, the American Bureau of Shipping, and the U. S. Coast Guard are accepted by each other within the limits covered by the qualification test passed by the welder. In view of the revisions made in welder qualification tests by the Bureau of Ships which were concurred in by representatives of shipyards, manufacturers, the American Bureau of Shipping, and the U. S. Coast Guard, the regulations governing welder qualifications in 46 CFR 56.01–10 have been revised so as to be in agreement with those of the Bureau of Ships. The amendment to 46 CFR 56.01–70 (h) (1) will require class II pressure vessels containing liquefied compressed gases for transportation or stowage to be stress relieved if deemed necessary. This stress relieving is considered necessary in order to reduce the locked-up stresses in these pressure vessels which may result from welding and to minimize the possibility of brittle failure under adverse loading conditions. The amendment to 46 CFR 56.05–5 (c) (3), regarding nondestructive tests provides that the reinforcement shall be finished with a smooth crown having a thickness not exceeding certain specified limits. These requirements are intended to eliminate or minimize the stress concentrations inherent in a welded joint. These changes are necessary because of the elimination of the requirement for the removal of weld reinforcement on pressure vessels designed with a factor of safety of four.

By virtue of the authority vested in me as Commandant, United States Coast Guard, by Treasury Department Order No. 120, dated July 31, 1950 (15 F. R. 6521), and Treasury Department Order 167–14, dated November 26, 1954 (19 F. R. 8026), to promulgate regulations in accordance with the statutes cited with the regulations below, the following amendments to the regulations are prescribed and shall become effective 90 days after the date of publication of this document in the Federal Register:

### Subchapter D—Tank Vessels

### Part 39—Inflammable or Combustible Liquids Having Lethal Characteristics

Part 39 is amended to read as follows:

#### Subpart 39.01—General

Sec.
39.01–1 Scope of regulations—TB/ALL.
39.01–5 Certificate of inspection—TB/ALL.

#### Subpart 39.05—Design, Arrangement, and Installation of Cargo Tanks

39.05–1 Design, construction, and arrangement—TB/ALL.
39.05–5 Markings—TB/ALL.
39.05–10 Installation—TB/ALL.

#### Subpart 39.10—Piping, Valves, Fittings, and Accessory Equipment

39.10–1 Valves and accessories—TB/ALL.
39.10–5 Piping and fittings—TB/ALL.
39.10–10 Safety relief and pressure-vacuum relief valves—TB/ALL.
39.10–15 Gaging devices—TB/ALL.

#### Subpart 39.15—Special Cargo Handling Requirements

39.15–1 Warning sign at gangway—TB/ALL.
39.15–5 Cargo discharge—TB/ALL.
39.15–10 Pump room controls—TB/ALL.

#### Subpart 39.20—Venting and Ventilation

39.20–1 Venting—TB/ALL.
39.20–5 Ventilation—TB/ALL.

#### Subpart 39.25—Periodic Inspections and Tests

39.25–1 Hydrostatic tests and inspection—TB/ALL.
39.25–5 Removal of defective tanks—TB/ALL.
39.25–10 Safety valves—TB/ALL.

Authority: §§ 39.01–1 to 39.25–10 issued under R. S. 4405, as amended, 4417a, as amended, 4462, as amended; 46 U. S. C. 375, 391a, 416. Interpret or apply sec. 3, 68 Stat. 675; 50 U. S. C. 198; E. O. 10402, 17 F. R. 9917; 3 CFR, 1952 Supp.

SUBPART 39.01—GENERAL

§ 39.01–1 *Scope of regulations—TB/ALL.* (a) The regulations in this part contain requirements for the transportation of inflammable or combustible liquids having lethal characteristics and defined as Class "B" or "C" poisons in §§ 146.25–3 and 146.25–5 of Part 146 of Subchapter N (Explosives or Other Dangerous Articles on Board Vessels) of this chapter. The regulations covering the transportation in portable tanks of inflammable or combustible liquids having lethal characteristics and defined as Class "B" or "C" poisons are contained in Part 146 of Subchapter N (Explosives or Other Dangerous Articles on Board Vessels) of this chapter.

§ 39.01–5 *Certificate of inspection—TB/ALL.* (a) Certificate of inspection shall be endorsed for the carriage of Class "B" or "C" poisonous liquids, as follows:

Inspected and approved for the carriage of inflammable or combustible Class "B" or "C" poisonous liquids.

SUBPART 39.05—DESIGN, ARRANGEMENT, AND INSTALLATION OF CARGO TANKS

§ 39.05–1 *Design, construction, and arrangement—TB/ALL.* (a) Cargo having a Reid vapor pressure not exceeding 14 pounds per square inch may be transported in tanks, cylindrical or rectangular, independent of the vessel's hull structure, or in tanks built integral with the vessel's hull and completely separated from the shell of the vessel by means of wing tanks, cofferdams, double bottoms or similar voids.

(b) Independent tanks shall be designed for a head of at least 8 feet above the top of the tank or the highest level the product may rise, whichever is the greater, using the specific gravity of the product to be carried. In general, plate less than 5/16 inch in thickness shall not be used in the fabrication of independent tanks unless otherwise approved by the Commandant.

(c) Tanks built integral with the vessel's hull shall conform with the scantling requirements of the American Bureau of Shipping.

(d) (1) Cargo tanks transporting liquids having a Reid vapor pressure exceeding 14 pounds per square inch, or vented at a gage pressure exceeding 4 pounds per square inch, or where air or water pressure is used to discharge the cargo, shall be fabricated as an arc-welded unfired pressure vessel and meet the applicable requirements of Parts 50 to 61, inclusive, of Subchapter F (Marine Engineering) of this chapter.

(2) Unfired pressure vessel cargo tanks shall be designed for a pressure of not less than the vapor pressure, in pounds per square inch gage, of the lading at 115° F., or the maximum air or water pressure used in discharging cargo, whichever is greater, but in no case shall the design pressure of such tanks be less than 30 pounds per square inch.

(3) The plate thickness of unfired pressure vessel type cargo tanks shall be not less than 5/16 inch. Dished heads shall be used in the design of the tanks.

(e) Each tank shall be provided with not less than a 15-inch by 18-inch or an 18-inch diameter manhole, fitted with a cover and located as close as possible to the top of the tank. Where access trunks are fitted, the diameter or minimum dimension of the trunk shall be not less than 30 inches.

§ 39.05–5 *Markings—TB/ALL.* (a) Upon satisfactory completion of tests and inspection, unfired pressure vessel tanks shall have markings as required by § 38.05–5 (a) of this subchapter.

(b) In addition to the aforementioned markings, the following inscription shall be stamped on the tank, or a corrosion-resistant plate containing this data shall be securely attached thereto:

This tank shall not contain a product having a vapor pressure in excess of ____ p. s. i. gage at 115° F.

(c) All tank markings shall be permanently and legibly stamped in a readily visible position, and shall not be obscured by painting.

§ 39.05–10 *Installation—TB/ALL.* (a) Cargo tanks independent of the hull shall be installed with a clearance of not less than 24 inches from the vessel's sides. A working space of not less than 15 inches shall be provided around and under each tank, or provision shall be made for moving the tanks to secure adequate clearance for inspection and maintenance.

(b) Independent tanks shall be mounted on substantial steel saddles securely held down and chocked. Tank saddles shall be designed so as to minimize the concentration of excessive loads at any point on the shell.

(c) Tanks may be located in hold spaces or in other cargo tanks meeting the requirements for cofferdams as prescribed in § 32.60–10 or 32.65–15, and may be installed "on deck" or "under deck" with the tank protruding above deck. On installations where a portion of the tank extends through the weather deck, provision shall be made to maintain the watertightness of the deck. Where such tanks are installed in bulk liquid cargo tanks, the liquids in the surrounding tanks shall be inert to the toxic or poisonous liquids at temperatures of 100° F. and under, at atmospheric pressure.

(d) All tanks shall be installed with manhole openings and fittings located above the weather deck.

(e) No strength welding employed in the attachment of supports, lugs, fittings, etc. shall be done on tanks that require and have been stress-relieved, unless authorized by the Commandant.

SUBPART 39.10—PIPING, VALVES, FITTINGS, AND ACCESSORY EQUIPMENT

§ 39.10–1 *Valves and accessories—TB/ALL.* (a) All shutoff valves and accessory equipment shall be of types suitable for use with the cargo to be carried. Cast iron shall not be employed in the construction of valves, fittings, or flanges located outside the cargo tanks.

(b) All connections to tanks, except safety relief valves, pressure-vacuum relief valves, or gaging connections, shall have shutoff valves located as close to the tank as practicable.

§ 39.10–5 *Piping and fittings—TB/ALL.* (a) Piping shall be suitable for use with the liquid cargo to be carried and shall conform to the requirements of Part 55 of Subchapter F (Marine Engineering) of this chapter. Piping shall be of seamless drawn material, except that electric resistance-welded steel piping will be acceptable.

(b) All pipe connections on pressure vessel tanks shall be grouped in the smallest practicable space and shall be located near the highest point on the tank. Alternate piping arrangements may be considered for approval by the Commandant.

(c) The pumps and cargo piping used for loading and discharging Class "B" or "C" poisons shall be independent of all other piping.

(d) Where multiple cargoes are carried, and the cargo piping conveying Class "B" or "C" poisons are led through cargo tanks containing other products the piping shall be encased in a tunnel.

(e) Where cargo lines for handling other products, or bilge and ballast piping are led through cargo tanks containing Class "B" or "C" poisons, the piping shall be encased in a tunnel.

(f) Where possible provision shall be made for expansion and contraction of piping by means of seamless steel pipe expansion bends. Corrugated expansion joints may be used, provided satisfactory evidence is shown that space limitations do not permit the use of expansion bends. Slip type expansion joints are prohibited.

§ 39.10–10 *Safety relief and pressure-vacuum-relief valves—TB/ALL.* (a) Each pressure vessel type cargo tank shall be fitted with one or more approved safety relief valves, set to start to discharge at a pressure of not less than 90 percent of the design pressure of the tank, but not in excess of the design pressure. Safety relief valves shall have sufficient relieving capacity to prevent a pressure rise exceeding 20 percent above the design pressure of the tank.

(b) Safety relief valves for pressure type cargo tanks shall be attached to the tank near the highest point of the vapor space.

(c) Gravity type cargo tanks shall be fitted with an approved pressure-vacuum relief valve of not less than 2½-inch size, which shall be set at a pressure of not less than 3 pounds per square inch, but not in excess of the design pressure of the tank.

(d) Pressure-vacuum relief valves for gravity type cargo tanks may be installed on the expansion trunk or in the branch vent line between the expansion trunk and the vent header.

§ 39.10–15 *Gaging devices—TB/ALL.* A closed gaging system shall be provided for determining the liquid level within the tanks.

SUBPART 39.15—SPECIAL CARGO HANDLING REQUIREMENTS

§ 39.15–1 *Warning sign at gangway—TB/ALL.* When transferring bulk cargo a warning sign as provided in § 35.30–1 (b) of this subchapter shall be displayed to warn persons on board or in the vicinity of the tanks.

§ 39.15–5 *Cargo discharge—TB/ALL.* The use of gas or liquid pressure to discharge the cargo from gravity type cargo tanks is prohibited. Gas or liquid pressure may be used to discharge the cargo from pressure vessel type cargo tanks, provided authorization is granted by the Commandant.

§ 39.15–10 *Pump room controls—TB/ALL.* Cargo pumps, valves and fittings used for the transfer of Class "B" or "C" poisons and installed in pump rooms located below the weather deck shall be provided with means of operation from a position above the freeboard deck.

SUBPART 39.20—VENTING AND VENTILATION

§ 39.20–1 *Venting—TB/ALL.* (a) Vent pipes shall be connected to each safety relief or pressure vacuum-relief valve. Tanks carrying Class "B" or "C" poisons shall be vented independent of tanks carrying other products. Tanks carrying the same Class products may be connected to a vent header system or each tank may be vented independently.

(b) The vent riser shall extend to a height above the weather deck equal to at least one-third the beam of the vessel and shall terminate at a comparable distance from any other living or working space, ventilator inlet, or source of vapor ignition. When special conditions prevent the vent outlets from being permanently installed at a height above the deck of one-third the beam of the vessel, an adjustable system shall be provided which, when extended vertically, shall reach a height of one-third the beam of the vessel.

(c) The safety relief valve may be fitted with a bypass having the full capacity of the relief valve and equipped with a manually operated stop valve to permit equalizing pressures during filling and discharging operations.

§ 39.20–5 *Ventilation—TB/ALL.* (a) pump rooms located below the weather deck shall be fitted with power ventilation designed to assure sufficient air movement through the pump room to avoid accumulation of toxic vapors. The ventilation system shall be of the exhaust type having blower capacity sufficient to permit a change of air of at least 20 times per hour. At least two exhaust inlet ducts shall be provided and located near the floor level and at points where a concentration of toxic vapors may be expected. At least two fresh air inlet ducts shall be provided.

(b) Enclosed pump rooms located above the weather deck shall be fitted with power ventilation having an exhaust type blower of sufficient capacity to permit a change of air of at least 10 times per hour. The exhaust inlet ducts shall be located at points where a concentration of toxic vapors may be expected. At least one fresh air inlet duct shall be provided.

(c) The outlet duct exhausts shall terminate at a distance of at least six feet above the enclosed space or pump room and at least six feet from any entrance to the interior part of the vessel. The discharge end of the exhaust ducts shall be so located as to preclude the possibility of recirculating contaminated air through the pump room, or other spaces where personnel may be present.

SUBPART 39.25—PERIODIC INSPECTIONS AND TESTS

§ 39.25–1 *Hydrostatic tests and inspection—TB/ALL.* (a) Each pressure vessel tank shall be subjected to an internal examination biennially and to a hydrostatic test at the time of the periodic inspection on the fourth year after installation, and a like test shall be applied every fourth year thereafter.

(1) If there is evidence of corrosion or deterioration, the marine inspector may require additional internal examinations or hydrostatic tests at intermediate inspection periods.

(2) The hydrostatic test shall be equal to one and one-half times the design pressure. For lagged tanks the hydrostatic test shall be applied for a period of at least 20 minutes without pressure drop when portions of the jacket and lagging are not removed at intermediate inspection period.

(3) Lagged tanks shall have a portion of the jacket and lagging removed on the lower portion of the shell as directed by the marine inspector at least once every eight years for external examination.

(b) Gravity tanks and cargo tanks constructed integral with the vessel's hull shall be inspected as prescribed in Subpart 31.10 of Part 31 of this subchapter. Lagged gravity type tanks shall be examined as required by paragraph (a) of this section.

§ 39.25–5 *Removal of defective tanks—TB/ALL.* If a pressure vessel fails to pass the tests prescribed in this subpart, or is deemed by the marine inspector to be unsuitable for continued use, it shall be removed from service unless otherwise authorized by the Commandant.

§ 39.25–10 *Safety valves—TB/ALL.* (a) The safety relief valve discs shall be lifted from their seats in the presence of a marine inspector by either liquid, gas or vapor pressure at least once every four years to determine accuracy of adjustment and, if necessary, shall be reset.

(b) The setting and operation of the pressure-vacuum relief valves shall be checked at the annual inspection period in the presence of a marine inspector.

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Subchapter F—Marine Engineering

PART 51—MATERIALS

SUBPART 51.07—STAYBOLT AND RIVET STEEL

Section 51.07–1 *Scope* is amended by revising the reference to A. S. T. M. specification designation (column 1) in table 51.07–1 from "A204–54T" to "A202–54T."

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PART 52—CONSTRUCTION

Section 52.01–70 is amended to read as follows:

§ 52.01–70 *Experimental determination of pressure rating.* (a) Where approval is requested for a boiler structure, pressure vessel or any part thereof which, due to its irregular form, process of manufacture, or for any other reason, becomes a new or difficult subject of accurate mathematical analysis, the Commandant may require a full size specimen to be furnished for the purpose of making any tests which he may consider necessary to determine a safe and fair pressure rating for such pressure vessel or pressure part.

(b) In lieu of the proof hydrostatic tests as prescribed in Subpart 61.35 of this subchapter, the Commandant may permit the use of empirical formulas for determining the maximum allowable pressure of pressure vessels of irregular form, or where the stresses cannot be accurately determined. The empirical formulas shall be based upon proof hydrostatic test data acceptable to the Commandant.

SUBPART 52.05—CYLINDRICAL SHELLS

Section 52.05–12 is amended to read as follows:

§ 52.05–12 *Maximum allowable stress.* (a) The maximum allowable stresses given in Tables 52.05–10 (a) and 54.03–10 (c) in Part 54 of this subchapter may be used in the formulas for determining the maximum allowable pressure and the minimum thickness of seamless or arc-welded shells which do not require staying, unstayed blank hemispherical and ellipsoidal heads with the pressure on the concave side, flat heads which do not require staying, bolting flanges, and reinforced openings in shells and heads of boilers and unfired pressure vessels, provided the fabrication complies with the following requirements:

(1) The pressure parts of boilers shall have a minimum thickness exceeding ½ inch, and to the calculated thickness as determined by the applicable design formula, a corrosion allowance of 0.1 inch shall be added.

(2) The pressure parts of unfired pressure vessels shall have a corrosion allowance of one-sixth of the calculated thickness, or 1/16 inch, whichever is smaller, added to the calculated thickness as determined by the applicable design formula, except that no additional thickness need be provided when acceptable corrosion resistant materials are employed.

(3) Backing strips fitted in way of longitudinal joints shall be removed and the weld surface and reinforcement of longitudinal and circumferential joints shall be prepared in accordance with § 56.05–5 (c) of this subchapter. For cylindrical shells subject to temperatures exceeding 800° F., all weld reinforcement on both the inside and outside of the shell at the longitudinal and circumferential joints shall be removed whereever possible.

(4) Class II welded pressure vessels which are not given a complete radiographic examination shall have portions of the welded joints examined by spot radiography as required by § 56.05–6 of this subchapter.

(5) The stresses due to hydrostatic head shall be taken into account in determining the minimum thickness of the shell or head of any pressure vessel. Additional stresses, imposed by effects other than internal pressure or static head, which increase the average stress over substantial sections of the shell or head by more than 10 percent of the allowable stress shall be taken into account. These effects include the weight of the vessel and its contents, method of support, impact loads, superimposed loads, localized stresses due to the reactions of supports, and stresses due to temperature gradient.

(b) The maximum allowable stress used in the formulas for determining the maximum allowable pressure and minimum thickness of the following pressure parts of boilers and unfired pressure vessels shall not exceed 80 percent of the values given in Tables 52.05–10 (a) and 54.03–10 (c) in Part 54 of this subchapter:

(1) Boiler shell or head thicknesses of ½ inch or less.

(2) Riveted or brazed shells or heads.

(3) Dished heads, other than hemispherical or ellipsoidal.

(4) Unstayed hemispherical or ellipsoidal heads with pressure on the convex side.

(5) Hemispherical and ellipsoidal heads with flanged-in or other unreinforced manholes.

(6) All stays, braces or parts requiring staying.

(c) Where the maximum allowable stress is limited to 80 percent of the values given in Table 52.05–10 (a) or 54.03–10 (c) in Part 54 of this subchapter, compliance with the provisions of paragraph (a) of this section is not required.

SUBPART 52.20—DISHED HEADS

1. Section 52.20–15 is amended by changing paragraphs (f) and (h) to read as follows:

§ 52.20–15 *Detail requirements.* * * *

(f) (1) Except as provided for in paragraphs (d) and (e) of this section, all openings which require reinforcement placed in an unstayed spherically dished head, or an ellipsoidal head, or in a full-hemispherical head, including all types of manholes except those of the integral flanged-in type, shall be reinforced in accordance with § 52.25–20.

(2) When so reinforced, the thickness of such a head may be the same as for a blank unstayed dished head.

* * * * *

(h) If more than one flanged-in manhole or access opening is inserted in a dished head, the thickness of which is calculated by paragraph (d) of this section, the minimum distance between the openings shall be not less than one-fourth of the outside diameter of the head.

2. Section 52.20–20 is amended by changing paragraph (a) and the first sentence of paragraph (c) to read as follows:

§ 52.20–20 *Openings in dished heads.* (a) Flanged-in manhole openings in a dished head shall be flanged to a minimum radius measured on the inside of the plate of not less than ⅞ inch for plates up to and including 1⅛ inches in thickness, and for plates exceeding 1⅛ inches in thickness, the radius shall be increased proportionately. The minimum depth of the flange measured from the outside of the opening along the major axis shall be not less than three times the required thickness of the head for plate up to 1½ inches in thickness, and for plate exceeding 1½ inches in thickness, the depth shall be the thickness of the plate plus 3 inches.

* * * * *

(c) Unreinforced openings (or openings with inherent reinforcement) in dished heads shall be governed by the following: * * *

SUBPART 52.22—FLAT HEADS

Section 52.22–15 is amended to read as follows:

§ 52.22–15 *Openings in flat heads.* The reinforcement of openings in flat heads shall comply with the requirements of § 52.25–25.

SUBPART 52.24—ACCESS AND INSPECTION OPENINGS

Section 52.24–10 is amended by adding a new paragraph (1) reading as follows:

§ 52.24–10 *Detail requirements.* * * *

(1) All manholes, handholes, inspection and washout openings in a shell or head shall be designed in conformance with the requirements of Subpart 52.25 of this subchapter.

(R. S. 4405, as amended, 4462, as amended; 46 U. S. C. 375, 416. Interpret or apply R. S. 4399, 4400, 4417, 4417a, 4418, 4421, 4426–4431, 4433, 4434, 4453, 4491 as amended, sec. 14, 29 Stat. 690, 41 Stat. 305, 49 Stat. 1544, sec. 17, 54 Stat. 166, sec. 3, 54 Stat. 346, sec. 2, 54 Stat. 1028, as amended, sec. 3, 68 Stat. 675; 50 U. S. C. 198; 46 U. S. C. 361, 362, 391, 391a, 392, 399, 404–409, 411, 412, 435, 489, 366, 363, 367, 526p, 1333, 463a; E. O. 10402, 17 F. R. 9917; 3 CFR, 1952 Supp.)

SUBPART 52.25—OPENINGS AND REINFORCEMENTS [1]

Subpart 52.25, consisting of §§ 52.25–1 to 52.25–20, inclusive, is amended by changing its heading and text to read as follows:

Sec.
52.25–1 Scope.
52.25–5 Materials and workmanship.
52.25–10 Unreinforced openings.
52.25–15 Computations.
52.25–20 Reinforced opening in shells and dished heads.
52.25–25 Reinforced openings in flat heads.
52.25–30 Reinforcement limits.
52.25–35 Strength of reinforcement.
52.25–40 Reinforcement of multiple openings.
52.25–45 Welded connections.
52.25–50 Riveted connections.
52.25–55 Boiler nozzle neck thickness.

AUTHORITY: §§ 52.25–1 to 52.25–55 issued under R. S. 4405, as amended, 4462, as amended; 46 U. S. C. 375, 416. Interpret or apply R. S. 4399, 4400, 4417, 4417a, 4418, 4421, 4426–4431, 4433, 4434, 4453, 4491, as amended, sec. 14, 29 Stat. 690, 41 Stat. 305, 49 Stat. 1544, sec. 17, 54 Stat. 166, sec. 3, 54 Stat. 346, sec. 2, 54 Stat. 1028, as amended, sec. 3, 68 Stat. 675; 50 U. S. C. 198; 46 U. S. C. 361, 362, 391, 391a, 392, 399, 404–409, 411, 412, 435, 489, 366, 363, 367, 526p, 1333, 463a; E. O. 10402, 17 F. R. 9917; 3 CFR, 1952 Supp.

§ 52.25–1 *Scope.* (a) The regulations in this subpart apply to all openings in shells, headers or heads except as otherwise provided in paragraphs (b) and (c) of this section.

(b) Openings in a definite pattern, such as tube holes, may be designed in accordance with the requirements for ligaments in Subpart 52.40, provided the diameter of the largest hole in the group does not exceed that permitted by § 52.25–15.

(c) Calculations demonstrating compliance with the requirements of this subpart shall be made for all openings except: (1) For single openings not greater than 2-inch size in shells or headers having an inside diameter not less than four times the diameter of the opening, and

(2) For tube holes arranged in a definite pattern as provided in paragraph (b) of this section.

(d) The requirements for reinforcement of openings are intended to apply to openings not exceeding the following dimensions: [2]

(1) For shells 60 inches in outside diameter or less, one-half the shell diameter but not over 20 inches.

(2) For shells over 60 inches in outside diameter, one-third the shell diameter, but not over 40 inches.

(e) Openings, as defined in this subpart, are holes cut in shells or heads of boilers or pressure vessels, including domes and steam chimneys, for the purpose of inspection and cleaning, and for the purpose of connecting nozzles or mountings to shells or heads of such boilers or pressure vessels.

(f) Manhole or other openings in a flat, stayed surface shall be deemed to be sufficiently reinforced if the plate is flanged inwards to a depth not less than that determined by § 52.20–20 (a).

§ 52.25–5 *Materials and workmanship.* (a) The material for reinforcing plates around openings shall conform to the requirements of the plate to be reinforced, except as otherwise provided in

[1] The regulations governing openings as given in this subpart are based on the stress intensification created by the existence of a hole in an otherwise symmetrical section. The requirements are based on experience with vessels designed with safety factors of 4 and 5 applied to the ultimate strength of the shell material. External loadings such as those due to the movement of the ship, thermal expansion, or unsupported weight of connecting piping have not been evaluated and should be given consideration in unusual designs or under conditions of cyclic loading.

[2] For larger openings it is recommended that the reinforcement to be provided be distributed close to the opening and be at least equal to two-thirds of the required reinforcement within a distance of ¼ $d$ on each side of the finished opening.

§ 52.25–35. When they are locally heated for flanging or forming, they shall be properly annealed.

(b) A forged nozzle or forged flange, riveted or welded to the plate, may be considered as reinforcement, provided such fittings are properly designed to compensate for the material removed.

(c) Rivets used in securing reinforcing plates to the shell or other structural part shall conform to the requirements of Subpart 51.07 or 51.13 of Part 51 of this chapter.

(d) The inner radius of the bend of any flanged opening in heads, except manholes or other access openings as specified in § 52.20–20, shall be: for furnace attachments, not less than twice the thickness of the plate flanged; for flue attachments in externally fired boilers, not less than one and one-half times the thickness of the plate flanged.

(e) The riveted joint of a reinforcing plate fitted to an opening in the shell or other part of a boiler or other pressure vessel, shall be properly calked along the edge of the opening and the outer edge of the reinforcing plate as specified in Subpart 52.10 for riveted joints.

§ 52.25–10 *Unreinforced openings.* Plain unreinforced openings in a definite pattern such as tube holes or openings with integral reinforcement shall not exceed the diameter determined by § 52.25–15, nor shall they exceed a diameter of 8 inches in any case.

§ 52.25–15 *Computations.* (a) (1) The maximum diameter of an unreinforced opening as defined in § 52.25–10 shall be determined by the following formulas:

$$d = 2.75\sqrt[3]{DT(1-K)} \qquad (1)$$

$$K = \frac{PD}{1.82ST} \qquad (2)$$

$$K = \frac{PD}{1.6ST} \qquad (3)$$

where

$d$ = maximum allowable diameter of unreinforced openings, in inches.

$T$ = actual full thickness of shell plate, in inches (including the 0.10 inch additional thickness).

$D$ = outside diameter of the drum or shell, in inches.

$S$ = maximum allowable stress as given in table 52.05–10 (a) or 54.03–10 (c) in pounds per square inch.

$K$ = ratio of the computed stress in the solid plate to the maximum allowable stress.

$P$ = maximum allowable pressure, in pounds per square inch.

(2) In determining the maximum size of an unreinforced opening in a shell, head, or header designed under the provisions of § 52.05–12 (a), the value of $K$ shall be computed by formula (2).

(3) In determining the maximum size of an unreinforced opening in a shell, or header designed under the provisions of § 52.05–12 (c) in which the value of $S$ is taken as not more than 80 percent of that given in Tables 52.05–10 (a) and 54.03–10 (c) in Part 54 of this subchapter, the value of $K$ shall be computed by formula (3).

(b) The maximum diameter of unreinforced openings may be determined by use of diagrams, Figures 52.25–15 (b1) and 52.25–15 (b2).

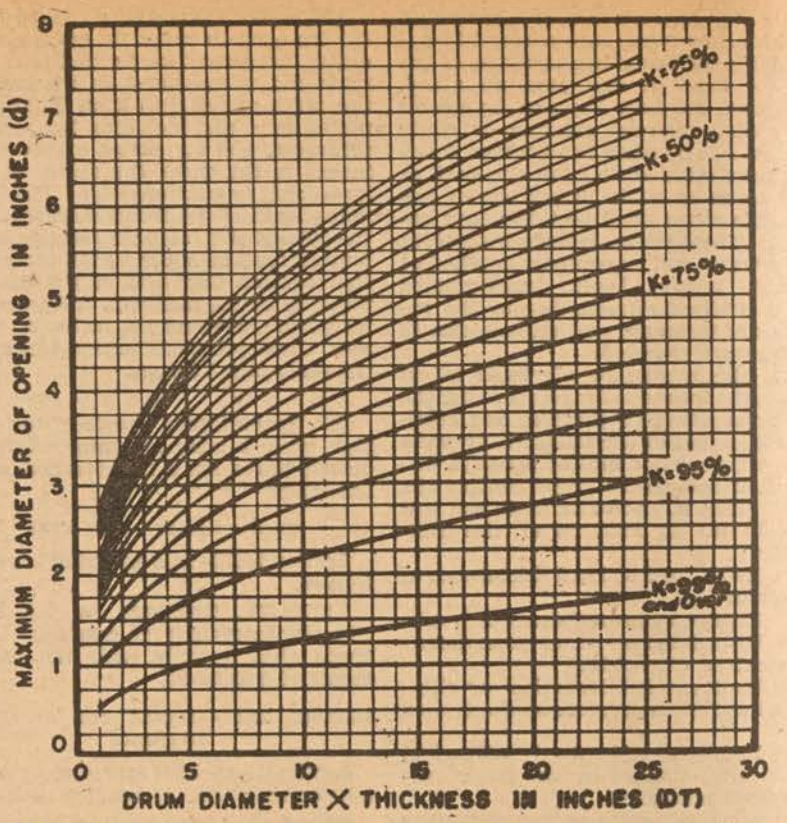



FIGURE 52.25–15 (b1)—Maximum diameter of openings with inherent reinforcement in cylindrical shells.

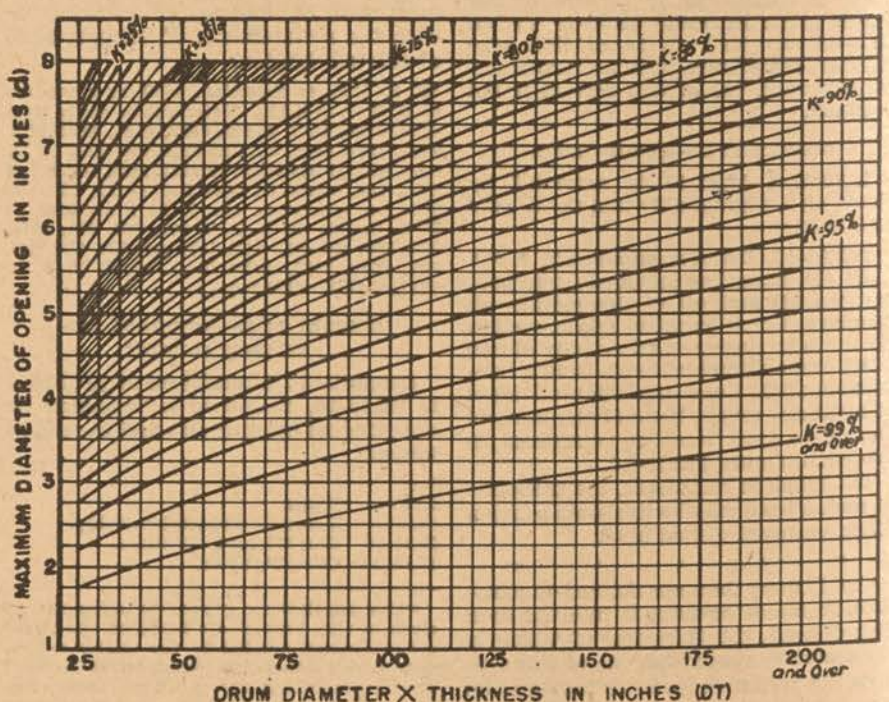



FIGURE 52.25–15 (b2)—Maximum diameter of openings with inherent reinforcement in cylindrical shells.

§ 52.25–20 *Reinforced opening in shells and dished heads.* (a) The regulations in this section apply to all openings other than flanged-in openings in dished heads covered by § 52.20–15, openings in flat heads covered by § 52.25–25, and openings covered in § 52.25–1 (b) and (c).

(b) Reinforcement shall be provided in amount and distribution such that the

area requirements for reinforcement are satisfied for all planes through the center of the opening and normal to the vessel surface. For a circular opening in a cylindrical shell, the plane containing the axis of the shell is the plane of greatest loading due to pressure.

(c) The total cross-sectional area of reinforcement in any given plane shall be not less than that prescribed by the following formula:

$$A = d \times T_r \times F \quad (1)$$

where:

$A$ = the required area of reinforcement, in square inches.

$D$ = the diameter in the given plane of the finished opening, in inches

$T_r$ = the required thickness of a seamless shell, header or blank head, in inches, except that: (1) For spherically dished heads when the opening and its reinforcement are entirely within the spherical portion, $T_r$ is the thickness required for a seamless hemispherical head of the same radius as that of the spherical portion; (2) for ellipsoidal heads when the opening and its reinforcement are located entirely within a circle the center of which coincides with the center of the head and diameter of which is equal to 80 percent of the shell inside diameter, $T_r$ is the thickness required for a seamless hemispherical head of radius equal to 90 percent of the inside diameter of the shell.

$F$ = 1.00 for heads and shells when the plane under consideration is on the longitudinal axis of the shell. For other planes in a shell or header the value of $F$ shall be determined from figure 52.25–20 (c).

§ 52.25–25 *Reinforced openings in flat heads.* (a) Flat heads that have an opening with a diameter that does not exceed one-half of the head diameter or shortest span, as defined in § 52.22–10, shall have a total cross-sectional area of reinforcement not less than that given by Formula (1).

$$A = 0.5d \times T \quad (1)$$

where:

$A$ = the required area of reinforcement, in square inches.

$d$ = diameter in the given plane of the finished opening, in inches.

$T$ = minimum required thickness of plate, in inches, as determined from § 52.22–10.

(b) As an alternate to paragraph (a) of this section, the thickness of flat heads may be increased to provide the necessary reinforcement by using $2C$ in the place of $C$ in the formulas for calculating head thickness in § 52.22–10. The value of $2C$ to be used in the formula need not exceed 0.75, except for the types of flat heads indicated by figures 52.22–10 (F) and (G).

(c) Flat heads that have an opening with a diameter that exceeds one-half of the head diameter, or shortest span, as defined in § 52.22–10, shall be designed as a flange.

§ 52.25–30 *Reinforcement limits.* (a) The boundaries of the cross-sectional area in any plane normal to the vessel wall and passing through the center of the opening within which metal must be located in order to have value as reinforcement are designated as the limits of reinforcement for that plane.

(b) The limits of reinforcement, measured along the vessel wall, shall be at a distance on each side of the axis of the opening equal to the greater of the following:

(1) The diameter of the finished opening.

(2) The radius of the finished opening plus the thickness of the vessel wall, plus the thickness of the nozzle wall.

(c) The limits of reinforcement, measured normal to the vessel wall, shall conform to the contour of the surface at a distance from each surface equal to the smaller of the following:

(1) Two and one-half times the shell thickness.

(2) Two and one-half times the nozzle wall thickness, plus the thickness of any added reinforcement exclusive of the weld metal on the side of the shell under consideration.

(d) (1) The metal thickness in the shell and nozzle wall in excess of the thickness required to resist pressure may be considered as reinforcement within the reinforcement limits given in this section.

(2) The area in the shell available as reinforcement shall be the larger of the values as given in the following formulas:

$$A_1 = (ET - FT_r)d \quad (1)$$

or,

$$A_1 = 2(ET - FT_r)(T + T_n) \quad (2)$$

where:

$A_1$ = area in the excess thickness in shell or head available for reinforcement, in square inches.

$E$ = 1, when the opening is in the solid plate or when the opening passes through a circumferential joint in a shell (exclusive of head-to-shell joints); or the longitudinal joint efficiency when any part of the opening passes through any other welded joint.

$T$ = Actual thickness of the shell or head, in inches.

$T_r$ = Required thickness of the shell or head to resist pressure, as defined in § 52.25–20, in inches.

$T_n$ = Actual thickness of the nozzle wall, in inches.

$d$ = diameter in the plane under consideration of the finished opening, in inches.

$F$ = factor from figure 52.25–20 (c).

(3) The metal thickness of the nozzle used for determining the area in the nozzle available as reinforcement shall be the difference between the actual thickness and the required minimum thickness to resist pressure. In this connection the required thickness of the nozzle may be determined by the same formula used in calculating the required thickness of the shell omitting, only in the case of boilers, the 0.1 inch additive thickness.

(4) Metal added as reinforcement and metal in attachment welds may be considered as reinforcement within the reinforcement limits.

(e) Figure 52.25–30 (e) illustrates limits of reinforcement for some typical openings.

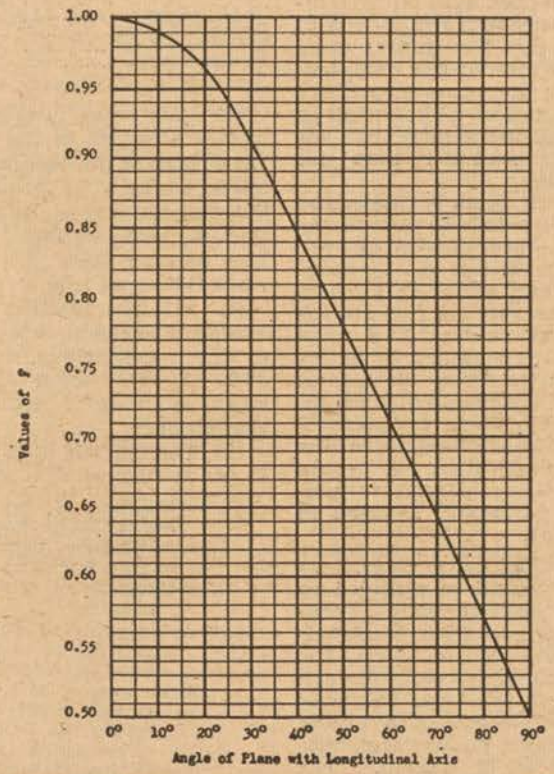



FIGURE 52.25–20 (c)—Chart for determining values of $F$.

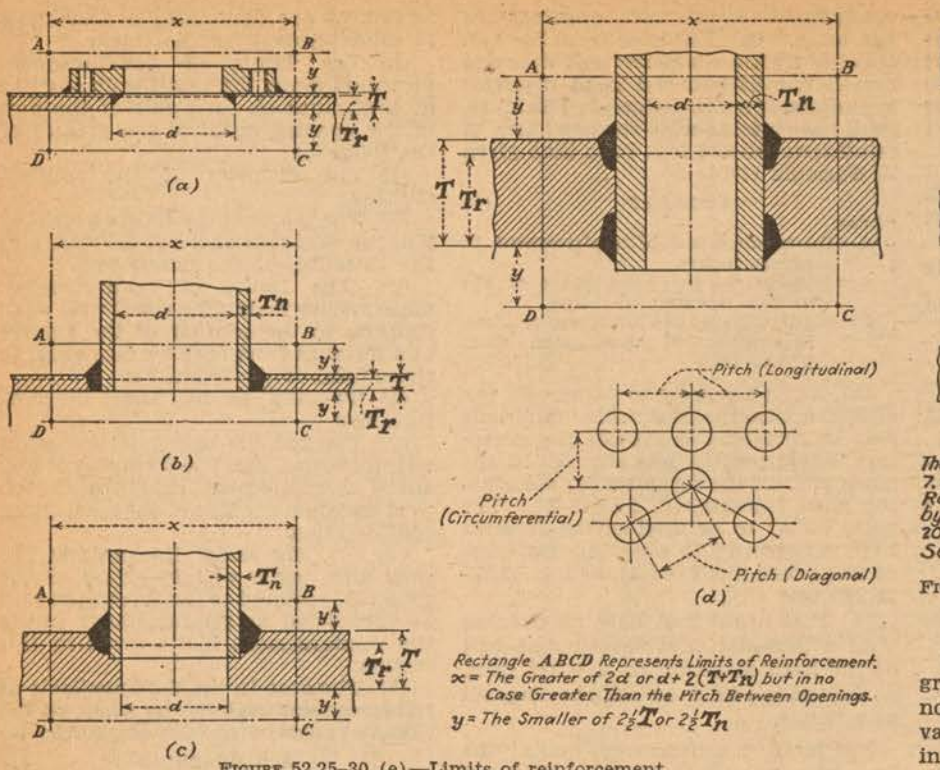



FIGURE 52.25-30 (e)—Limits of reinforcement.

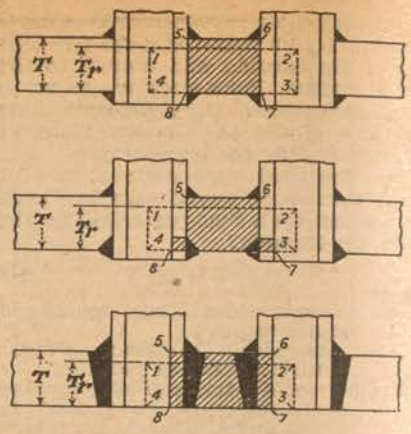



FIGURE 52.25-40 (e)—Reinforcement of multiple openings.

§ 52.25-35 *Strength of reinforcement.* (a) Material used for reinforcement shall have an allowable stress value equal to or greater than that of the material in the vessel wall, except that material of lower strength may be used provided the area of reinforcement is increased to compensate for the lower allowable stress value of the reinforcement. No credit may be taken for the additional strength of any reinforcement having a higher allowable stress value than that of the vessel wall. Where pressure vessels are designed under the provisions of § 52.05-12 (b), the allowable stress value shall be taken as equivalent to 0.8 times the values shown in tables 52.05-10 (a) and 54.03-10 (c) in Part 54 of this subchapter.

(b) On each side of the plane defined in § 52.25-30 (a), the strength of the attachment joining the vessel wall and reinforcement or any two parts of the attached reinforcement, shall be at least equal to the smaller of:

(1) The strength in tension of the cross section of the element of reinforcement being considered, or

(2) The strength in tension of the area of the unfinished opening, including any rivet or stud hole, in the shell or head based on Tr less the strength in tension of the reinforcing area which is integral in the vessel wall as permitted by § 52.25-30 (d). The strength of the attachment shall be considered for its entire length on each side of the plane normal to the vessel wall.

§ 52.25-40 *Reinforcement of multiple openings.* (a) Two adjacent openings shall have a distance between centers not less than 1⅓ times their average diameter.

(b) When any two or larger groups of adjacent openings which require reinforcement are so spaced that their limits of reinforcement overlap, the two or larger group of openings shall be reinforced in accordance with § 52.25-20 with a reinforcement that has an area equal to the combined area of the reinforcement required for the separate openings. No portion of the cross section shall be considered as applying to more than one opening or be evaluated more than once in a combined area.

(c) When a shell, drum or header has a series of holes in a definite pattern, the net cross-sectional area between any two finished openings within the limits of the actual shell wall, excluding the portion of reinforcing part not fused to the shell wall, shall equal at least 0.7 *F* of the cross-sectional area obtained by multiplying the center-to-center distance of the openings by the required thickness of a seamless shell, where the factor *F* is taken from figure 52.25-20 (c) for the plane under consideration. A typical illustration of the requirements prescribed in this paragraph is given in figure 52.25-40 (c).

§ 52.25-45 *Welded connections.* (a) Sufficient welding shall be provided on either side of the plane through the center of the opening parallel to the longitudinal axis of the shell to develop the strength of the reinforcing parts through sheer or tension in the weld, whichever is applicable. The strength of the groove welds shall be based on the area subjected to shear or to tension. The strength of fillet welds shall be based on the area subjected to shear (computed on the minimum leg dimension). The inside diameter of a fillet weld shall be used in figuring its length.

(b) The allowable stress values for groove and fillet welds and for shear in nozzle necks, in percentages of stress value for the vessel material, shall be in accordance with table 52.25-45 (b).

TABLE 52.25-45 (b)—ALLOWABLE STRESS VALUES

| | Stress-relieved | Not stress-relieved |
|---|---|---|
| | *Percent* | *Percent* |
| Nozzle-wall shear | 70 | 70 |
| Groove-weld tension | 74 | 70 |
| Groove-weld shear | 60 | 56 |
| Fillet-weld shear | 49 | 46 |

(c) Reinforcing plates or saddles of nozzles attached to the outside of the vessel shall be provided with at least one tell-tale hole of ¼ inch maximum pipe tap size for testing tightness of welds that seal off the inside of the vessel. The tell-tale holes shall be left open when the vessel is in service.

(d) (1) The location and minimum size of attachment welds shall conform to the requirements shown in figure 52.25-45 (d), which illustrates some types of acceptable arc-welded connections.

(2) The symbols used in figure 52.25-45 (d) are defined as follows:

$t$ = thickness of vessel shell or head, less corrosion allowance, in inches.

$t_n$ = thickness of nozzle wall, less corrosion allowance, in inches.

$t_e$ = thickness of reinforcing element, in inches.

$t_w$ = dimension of partial-penetration attachment welds (fillet, single-bevel, or single-J).

$t_c$ = the smaller of ¼ inch or 0.7 $t_n$. (Inside corner welds may be further limited by a lesser length of projection of the nozzle wall beyond the inside face of the vessel wall.)

$t_{min}$ = the smaller of ¾ inch or the thickness of either of the parts joined by a fillet, single-bevel or single-J weld, in inches.

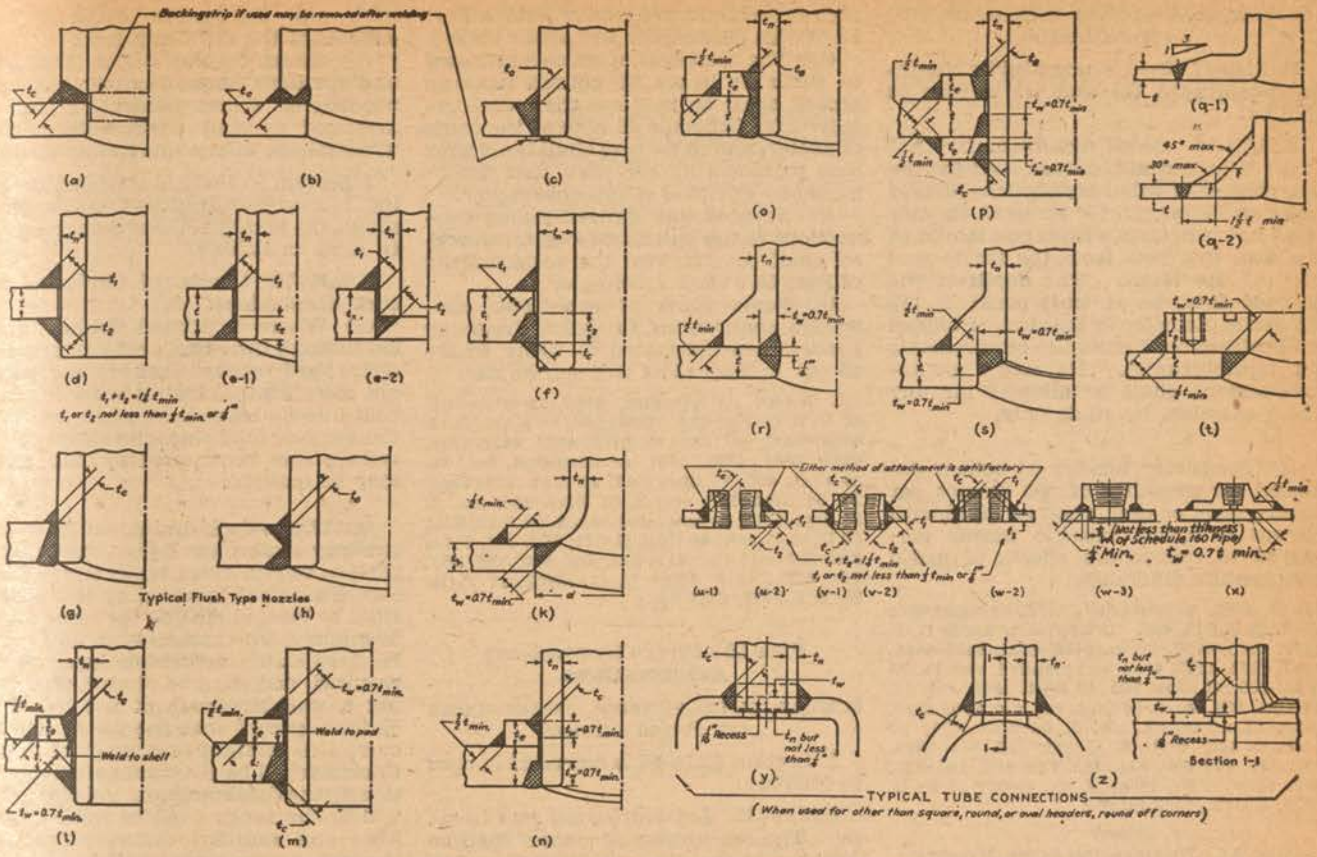



FIGURE 52.25–45 (d)—Acceptable types of welded connections to drums and headers.

(3) When nozzles or couplings are attached to boilers and unfired pressure vessels as shown in figure 52.25–45 (d), (a) and (c), and are welded from one side only, backing strips shall be used unless the inside of the joint can be visually inspected in order that the inspector may satisfy himself that complete penetration is obtained. When attachments as shown in figure 52.25–45 (d), (y) and (z), are employed they shall be limited to 2-inch pipe size for pressures exceeding 150 pounds per square inch.

(e) When the end faces of nozzles or manhole necks are to remain unwelded in the completed vessel, these end faces shall not be cut by shearing unless at least ⅛ inch of the additional metal is removed by any method that will produce a smooth finish.

§ 52.25–50 *Riveted connections.* (a) Openings for nozzles and other connections shall be far enough away from any main riveted joint so that the joint and the opening reinforcement plates do not interfere with one another.

(b) Welded connections which require stress-relieving and which are attached to vessels having seams of riveted construction shall be fabricated and stress-relieved prior to the making up or attachment of the courses by riveting. If they do not require stress-relieving and are attached after riveting, the welds shall be located at a distance from the riveted seam at least equal to the outside diameter of the attachment weld plus four times the thickness of the shell plate.

(c) For nozzle fittings having a bolting flange and an integral flange for riveting, the thickness of the flange attached to the pressure vessel shall not be less than the thickness of the neck of the fitting.

(d) The strength of rivets in tension in a flanged frame or ring riveted to the outside of a vessel shall be at least equal to that required to resist the load due to the maximum allowable working pressure with a factor of safety of 5 computed as follows:

(1) For outside calking the load shall be equal to the area bounded by the outside calking multiplied by the maximum allowable working pressure;

(2) For inside calking (and with no outside calking) the load shall be equal to the area bounded by the inside calking multiplied by the maximum allowable working pressure.

(f) The rivets attaching nozzles shall be so spaced as to avoid the possibility of the shell plate or the nozzle flange failing by tearing around through the rivet holes.

§ 52.25–55 *Boiler nozzle neck thickness.* (a) The thickness of a boiler nozzle shall be not less than the thickness required for Schedule 80 pipe of the same diameter and in no case less than that determined by § 55.07–5 of this subchapter.

(b) The minimum thickness of a tube nipple when used in a reinforced opening on a boiler shall not be less than the required thickness of a boiler tube as determined by § 52.55–10 of this subchapter, but in no case less than the required minimum thickness of a tube nipple based on 600 p. s. i. internal pressure.

### SUBPART 52.35—STAYS AND REINFORCEMENTS

Section 52.35–20 (f) (7) is amended to read as follows:

§ 52.35–20 *Detail requirements.* * * *

(f) * * *

(7) Welded collars may be used in lieu of nuts to attach screw staybolts to plates, provided the legs of the welds are of sufficient length to develop a strength of at least 25 percent of the staybolt, but in no case shall the legs of the welds be less than ¼-inch in length.

### SUBPART 52.60—SUPERHEATERS, HEADERS, WATER WALLS, AND ECONOMIZERS

Section 52.60–20 (a) is amended by adding a new subparagraph (5) reading as follows:

§ 52.60–20 *Detail requirements*—(a) *Superheater.* * * *

(5) Arrangement shall be made for venting the superheater in order to permit steam circulation through the superheater when starting the boiler.

SUBPART 52.70—BOILER MOUNTINGS AND ATTACHMENTS

Section 52.70–10 is amended by changing paragraphs (b) and (f) to read as follows:

§ 52.70–10 *Detail requirements.* * * *

(b) Where stud bolts are used for the attachment of boiler connections, drilled holes to be tapped for straight threads shall not penetrate within one fourth of the wall thickness from the inside surface of the vessel. The depth of the threads shall be at least equal to 1½ times the diameter of the stud. Studded connections shall meet the requirements for reinforcement. No credit for reinforcement shall be allowed for any areas attached by studs only.

* * * * *

(f) Feedwater nozzles of boilers designed for pressures of 400 pounds per square inch, or over, shall be fitted with sleeves or other suitable means employed to reduce the effects of metal temperature differentials.

(R. S. 4405, as amended, 4462, as amended; 46 U. S. C. 375, 416. Interpret or apply R. S. 4399, 4400, 4417, 4417a, 4418, 4421, 4426–4431, 4433, 4434, 4453, 4491, as amended, sec. 14, 29 Stat. 690, 41 Stat. 305, 49 Stat. 1544, sec. 17, 54 Stat. 166, sec. 3, 54 Stat. 346, sec. 2, 54 Stat. 1028, as amended, sec. 3, 68 Stat. 675; 50 U. S. C. 198; 46 U. S. C. 361, 362, 391, 391a, 392, 399, 404–409, 411, 412, 435, 489, 366, 363, 367, 526p, 1333, 463a; E. O. 10402, 17 F. R. 9917; 3 CFR, 1952 Supp.)

PART 54—UNFIRED PRESSURE VESSELS

SUBPART 54.03—DESIGN AND CONSTRUCTION

1. Section 54.03–15 (f), including table 54.03–15 (f), is amended to read as follows:

§ 54.03–15 *Tube sheets.* * * *

(f) The pitch of tubes attached to tube sheets by roller expanding shall be not less than that specified in Table 54.03–15 (f), except that a lesser tube pitch may be authorized for heat exchangers, the failure of which will not affect the safety of the vessel, provided the manufacturer demonstrates by tests prescribed by the Commandant, using the types of material and identical fabricating procedures to be employed in construction, that he can produce equipment of acceptable workmanship and free of leakage.

TABLE 54.03-15 (f)—MINIMUM PITCH OF TUBES

| Outside diameter of tube, in inches | Pitch of tube, in inches |
|---|---|
| ½ and below | ⅝ |
| ⅝ | 13/16 |
| ¾ | 15/16 |
| 1 | 1¼ |
| 1¼ | 1 9/16 |
| 1½ | 1⅞ |

2. Section 54.03–40 is amended to read as follows:

§ 54.03–40 *Openings and reinforcements.* (a) Unless otherwise specified in this subchapter, openings and reinforcements in the shell or heads of unfired pressure vessels shall comply with the requirements of Subpart 52.25 in Part 52 of this subchapter for power boilers.

(b) The thickness of nozzles attached to shells or heads of unfired pressure vessels shall be not less than that required for Schedule 40 pipe of the same diameter, and in no case shall the nozzle wall thickness be less than that determined by § 55.07–5 of this subchapter.

(c) Screwed and flanged piping connections to the outlets on a pressure vessel shall comply with the requirements of Part 55 of this subchapter.

(d) Some types of acceptable arc-welded connections to shells, drums or headers are illustrated in figure 52.25–45 (d) in Part 52 of this subchapter.

(R. S. 4405, as amended, 4462, as amended; 46 U. S. C. 375, 416. Interpret or apply R. S. 4399, 4400, 4417, 4417a, 4418, 4421, 4426–4431, 4433, 4434, 4453, 4491, as amended, sec. 14, 29 Stat. 690, 41 Stat. 305, 49 Stat. 1544, sec. 17, 54 Stat. 166, sec. 3, 54 Stat. 346, sec. 2, 54 Stat. 1028, as amended, sec. 3, 68 Stat. 675; 50 U. S. C. 198; 46 U. S. C. 361, 362, 391, 391a, 392, 399, 404–409, 411, 412, 435, 489, 366, 363, 367, 526p, 1333, 463a; E. O. 10402, 17 F. R. 9917; 3 CFR, 1952 Supp.)

PART 55—PIPING SYSTEMS AND APPURTENANCES

SUBPART 55.10—PUMPING ARRANGEMENTS AND PIPING SYSTEMS

1. Section 55.10–55 is amended to read as follows:

§ 55.10–55 *Lubricating oil system.* (a) The lubricating oil system shall be designed to function satisfactorily when the vessel is permanently inclined to an angle of 15 degrees athwartship and 5 degrees fore or aft.

(b) When pressure or gravity forced lubrication is employed for the steam driven main propelling machinery, an independent auxiliary lubricating pump shall be provided.

(c) Oil coolers on steam driven machinery shall be provided with two separate means of circulating water through the coolers.

(d) For internal combustion engine installations, the requirements of paragraphs (b) and (c) of this section shall be met but do not apply to vessels in river and harbor service, nor in any vessel below 300 gross tons. Where the size and design of an engine is such that lubrication before starting is not necessary and an attached pump is normally used, an independently driven spare pump is not required if a duplicate of the attached pump is carried as spare. Oil filters shall be provided on all internal combustion engine installations, and on main propulsion engines which are fitted with full-flow type filters the arrangement shall be such that the filters may be cleaned without interrupting the oil supply.

(e) The lubricating oil piping shall be independent of other piping systems and shall be provided with necessary coolers, heaters, filters, etc., for proper operation. Oil heaters shall be fitted with bypasses.

(f) Diesel engine lubrication systems shall be so arranged that vapors from the sump tank may not be discharged back into the engine crank case of engines of the dry sump type.

(g) Steam turbine driven propulsion and auxiliary generating machinery depending on forced lubrication shall be arranged to shut down automatically upon failure of the lubricating system.

2. Section 55.10–70 is amended by adding a new subparagraph (3) to paragraph (a) and by revising paragraph (g) to read as follows:

§ 55.10–70 *Overboard discharges and shell connections.* (a) * * *

(3) Where overboard discharges are led through the vessel's sides from spaces above the freeboard deck and are located not more than 18 inches below the freeboard deck and at least 24 inches above the deepest load line, the valves at the vessel's side as required by this section may be omitted.

* * * * *

(g) Where deck drains, soil lines, and sanitary drains discharge through the shell in way of cargo tanks on tank vessels, the valves required by this section shall be located outside the cargo tanks. The piping led through such tanks shall be fitted with expansion bends where required, and shall be of steel pipe having a wall thickness of not less than ⅝ inch, except that the use of suitable corrosion-resistant material of lesser thickness will be given special consideration by the Commandant. All pipe joints within the tanks shall be welded. Soil lines and sanitary drains which pass through cargo tanks shall be provided with non-return valves with positive means of closing or other suitable means for preventing the entrance of gases into living quarters.

(R. S. 4405, as amended, 4462, as amended; 46 U. S. C. 375, 416. Interpret or apply R. S. 4399, 4400, 4417, 4417a, 4418, 4421, 4426–4431, 4433, 4434, 4453, 4491, as amended, sec. 14, 29 Stat. 690, 41 Stat. 305, 49 Stat. 1544, sec. 17, 54 Stat. 166, sec. 3, 54 Stat. 346, sec. 2, 54 Stat. 1028, as amended, sec. 3, 68 Stat. 675; 50 U. S. C. 198; 46 U. S. C. 361, 362, 391, 391a, 392, 399, 404–409, 411, 412, 435, 489, 366, 363, 367, 526p, 1333, 463a; E. O. 10402, 17 F. R. 9917; 3 CFR, 1952 Supp.)

PART 56—ARC WELDING, GAS WELDING, AND BRAZING

SUBPART 56.01—ARC WELDING AND GAS WELDING

1. Section 56.01–10 is amended to read as follows:

§ 56.01–10 *Welder qualification*—(a) *Qualification provisions.* (1) Each welder, prior to performing any production welding in fabricating equipment listed in § 56.01–1, shall demonstrate his ability to produce sound welded joints with the welding process to be used in production. This shall consist of welding the applicable test joints shown in table 56.01–10 (j) to the soundness requirements specified in this section for each type of test, except welders may be considered qualified under the alternate provisions of subparagraph (2) of this paragraph. Welder qualification tests are not required for operators of machine-welding equipment.

(2) (i) Welders who have been qualified by the Bureau of Ships of the Navy Department, or the American Bureau of Shipping, shall be considered qualified within the limits covered by the qualification tests passed.

(ii) The omission of qualification tests of metal arc welders working on assemblies may be authorized by the Officer in Charge, Marine Inspection provided the initial production welds are radiographically examined and found satisfactory to the standards prescribed in Radiographic Standards for Welder Qualification Test, CG 115–1, a copy of which is on file with each Officer in Charge, Marine Inspection. The welder shall be considered qualified for the process, equipment and materials, and in the position of the production welding.

(iii) Qualification tests of welders may be omitted for welders who weld satisfactory procedure qualification test assemblies as required by the Commandant. The welder shall be considered qualified for the process, equipment and materials, and in the position for which the procedure is qualified.

(b) *Process.* The welding processes requiring qualification of welders shall be as follows:

(1) Manual, shielded metal arc.
(2) Semi-automatic, inert-gas (consumable electrode) metal arc.
(3) Semi-automatic submerged arc.
(4) Manual, inert-gas (tungsten electrode) metal arc.
(5) Manual carbon arc.
(6) Manual gas welding.
(7) Manual torch brazing.

(c) *Process qualification limitation.* Welders qualified for a given process with a specific type of electrode or welding rod shall be considered qualified for welding by that process with any other electrode or rod of similar type as provided for in table 56.01–10 (p).

(d) *Fabricators responsibility.* The fabricator shall direct and supervise the testing of welders and shall bear the expense of conducting the tests. When welders are to be qualified by the Coast Guard, the fabricator shall notify the marine inspector and arrange a suitable time and place for conducting the tests so the marine inspector may be present.

(e) *Requalification requirements.* A welder shall be requalified whenever one or more of the changes listed below are made and is to be used in production:

(1) When the filler metal is changed to a filler metal having a different M number in table 56.01–10 (p) or to a filler metal not included, except that qualification under M2 shall qualify a welder for M1.

(2) When the welding position is changed to positions other than those previously qualified.

(3) When the backing strip in arc-welding single welded butt joints is omitted.

(4) When a backing strip in gas welding is added.

(5) Where there is a change in welding processes.

(f) *Qualification duration.* The welder's qualification from tests passed as prescribed in this section shall remain in effect indefinitely unless:

(1) The welder does not use the process for which he was qualified for a period of three months or more; or

(2) The marine inspector believes there is reasonable doubt of the welder's ability. In such cases the welder shall not perform production welding until he passes the applicable qualification tests.

(g) *Retests.* If any of the welder's qualification test welds fail to meet the requirements specified in this section, he may be allowed a retest under the following conditions:

(1) A retest may be made which shall consist of two test welds of each type he failed, all of which shall meet the applicable requirements.

WELDER'S IDENTIFICATION

Date of birth (Month) (Day) (Year) | Place of birth (City) (State) (Country) | Check No.

Welder's Employment Record

| Process | From— | To— |
|---|---|---|
| | | |

Welder's symbol

Photograph or thumb print

Date taken.....

Check:
Right Hand ☐
Left Hand ☐

(Welder's signature)

Name (Last) (First) (Middle) | Employed by— | Location of plant

| Process | Test No. | Base metal | Position | Filler metal | | Date of test | Group limitations | Type of test* | Signature of inspector | Agency |
|---|---|---|---|---|---|---|---|---|---|---|
| | | | | Type | Size | | | | | |
| | | | | | | | | | | |
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*P=Physical tests. R=Radiographic test.

FIGURE 56.01–10 (h)—Welder's identification and record of qualification tests.

(h) *Test records.* Qualification test records of each welder together with identification data, shall be maintained in typewritten form or in ink by the fabricator on cards similar to that shown in Figure 56.01–10 (h). Upon request, duplicate record cards shall be furnished the marine inspector or to any of the participating agencies.

(i) *Transferral of qualification.* The qualification of a welder shall not be transferred from one company's organization to another company's organization. The welder's qualification record may be transferred from one plant to another plant of the same company if authorized by the Officer(s) in Charge, Marine Inspection, involved.

(j) *Qualification test.* The welder qualification tests shall consist of welding the applicable test assemblies shown in Table 56.01–10 (j).

TABLE 56.01-10 (j)—WELDER QUALIFICATION TESTS AND APPLICABLE CONDITIONS

| Construction and material size | Position in which welding shall be done [1] | | |
|---|---|---|---|
| | Flat, vertical, horizontal and overhead: grooves and fillets. | Flat and vertical: grooves and fillets, horizontal fillets. | Flat: grooves and fillets, horizontal fillets |
| On material of limited thickness (¾ inch or less).[2 3 4] | Test No. 1 in vertical and overhead positions. Figure 56.01-10 (j3). | Test No. 1 in vertical position. Figure 56.01-10 (j3). | Test No. 1 in flat position, Figure 56.01-10 (j3). |
| On material of unlimited thickness.[5] | Test No. 2 in vertical and overhead positions. Figure 56.01-10 (j4). | Test No. 2 in vertical position. Figure 56.01-10 (j4). | Test No. 2 in flat position. Figure 56.01-10 (j4). |
| On pipe joints ¾ inch or less thick.[2 6 5] | Test No. 3 in horizontal and vertical fixed positions. Figure 56.01-10 (j5). | | Test No. 3 in horizontal rolled position. Figure 56.01-10 (j5). |
| On pipe joints over ¾ inch thick.[7 5] | Test No. 4 in horizontal and vertical fixed positions. Figure 56.01-10 (j5). | | Test No. 4 in horizontal rolled position. Figure 56.01-10 (j5). |
| For welders doing only tack or fillet welding. | Test No. 5 in vertical and overhead fillet positions. Figure 56.01-10 (j7). | Test No. 5 in vertical and horizontal fillet positions. Figure 56.01-10 (j7). | Test No. 5 in horizontal fillet position. Figure 56.01-10 (j7). |
| For torch brazed piping [8] | Test No. 6 in horizontal and vertical fixed positions. Figure 56.01-10 (j8). | | |
| For torch brazing other than piping. | Test No. 7 in vertical and overhead fixed positions. Figure 56.01-10 (j9). | | |

[1] In special cases when welding is to be done in positions other than those shown in figure 56.01-10 (j2) the welder qualification test plate may be made in the position in which welding will be done with the limitation that the qualification shall be valid only for the actual position tested. An angular tolerance of plus or minus 15° shall apply.

[2] Where the maximum thickness of material on which a welder may work throughout the period governed by a test is indeterminate, the marine inspector may, if desired, require the welder to qualify under unlimited thickness requirements.

[3] Where the maximum thickness of material to be welded throughout the period governed by the test is less than ⅜ inch, the fabricator may, with the permission of the marine inspector, use the following modification of test number 1: The thickness of material shall be the maximum to be welded in production but shall not be less than 3/16 inch. The root opening shall not be more than one nominal diameter of the filler metal to be used. The backing strip thickness shall be not less than 5/32 inch.

[4] Welders qualified under the requirements of test number 1 in the flat position shall be considered qualified to weld piping ¾ inch or less in thickness in the horizontal rolled position and longitudinal pipe joints ¾ inch or less in thickness in the flat position. Welders qualified by test number 1 in the vertical position shall be considered qualified to weld piping ¾ inch or less in thickness in the horizontal fixed position from the horizontal axis up.

[5] Welders qualified under the requirements of test number 2 in the flat position shall be considered qualified to weld piping over ¾ inch in thickness in the horizontal rolled position and longitudinal pipe joints over ¾ inch in thickness in the flat position. Welders qualified by test number 2 in the vertical position shall be considered qualified to weld piping over ¾ inch in thickness in the horizontal fixed position from the horizontal axis up.

[6] Welders qualified under the requirements of test number 3 shall be considered qualified to make welds governed by test number 1 for the positions tested under test number 3.

[7] Welders qualified under the requirements of test number 4 shall be considered qualified to make welds governed by tests numbers 1, 2, and 3 for the positions tested under test number 4.

[8] Where the welder is to be qualified for welding or torch brazing of piping onboard ship the space restrictions shown in connection with tests numbers 3, 4, and 6 shall be used.

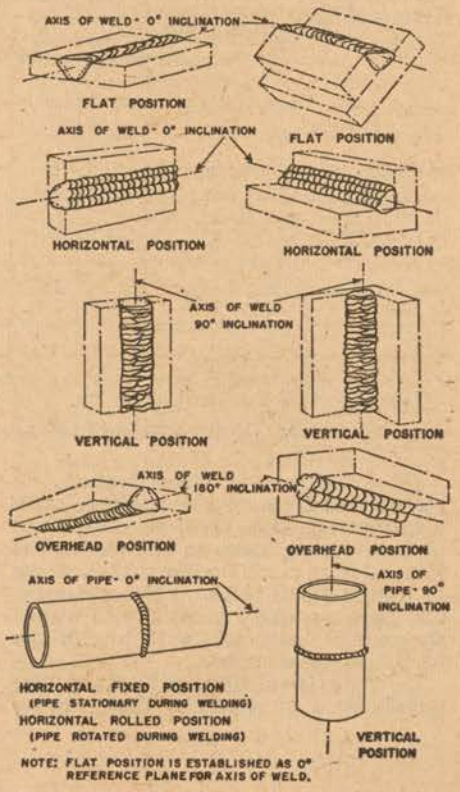
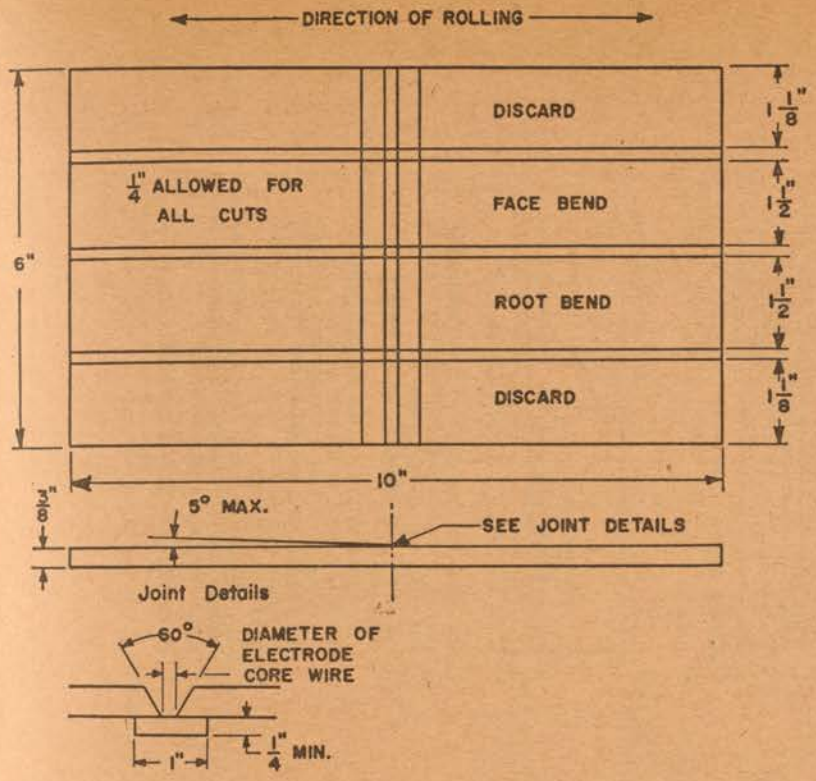
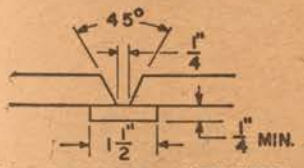


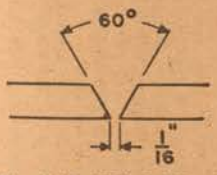

FIGURE 56.01-10 (j2)—Positions of welding.




MANUAL SHIELDED METAL ARC



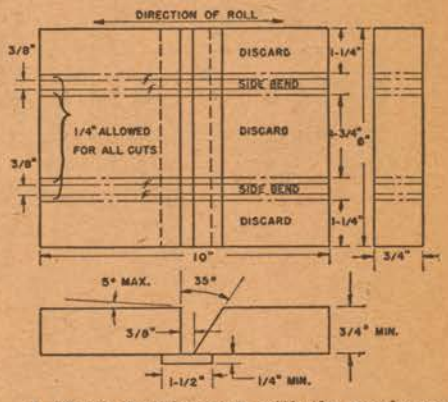

MANUAL AND SEMI-AUTOMATIC INERT GAS; METAL-ARC WELDING; MANUAL CARBON ARC WELDING; MANUAL GAS WELDING; SEMI-AUTOMATIC SUBMERGED ARC




MANUAL GAS WELDING ALTERNATE

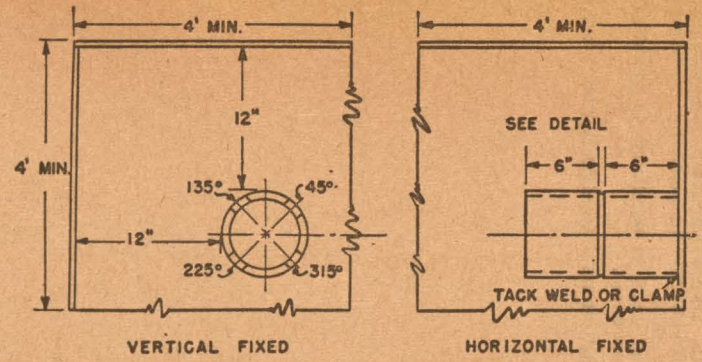
1. Weld shall be made with the maximum size electrode or welding rod suitable for the position and thickness of test plate.
2. Backing strap shall be contiguous with plates.
3. Joints welded in vertical position shall be welded upwards.
4. Welding shall be done from one side only.
5. Reinforcement and/or backing strap shall be machined flush. Undercutting shall not be removed.
6. Specimens may be machined or oxygen cut from plate.
7. Edges of specimens may be broken to a maximum radius of T/6.

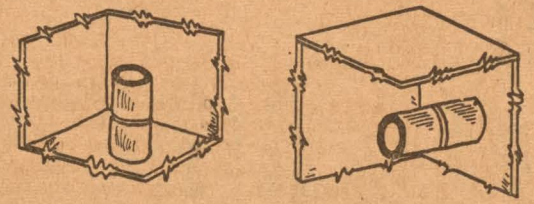
FIGURE 56.01-10 (J3)—Qualification test No.1.



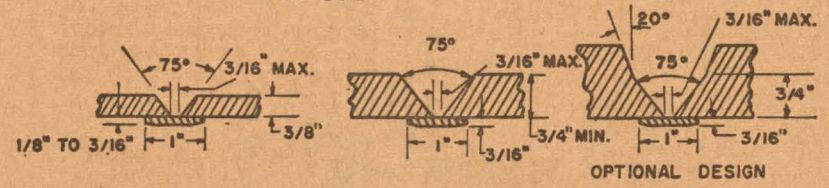

1. Welds shall be made with the maximum size electrode or welding rod suitable for the position and thickness of test plate.
2. Backing strap shall be contiguous with plates.
3. Joints welded in the vertical position shall be welded upwards.
4. Welding shall be done from one side only.
5. Machine reinforcement and backing strap flush. Do not remove any undercutting.
6. Specimens may be machined or oxygen cut from plate.
7. Break edges of specimens to a radius of T/6 maximum.

FIGURE 56.01-10 (J4)—Qualification test No. 2.



Joint Details




TEST NO. 3
FOR PIPING UP TO AND INCLUDING 3/4" THICK

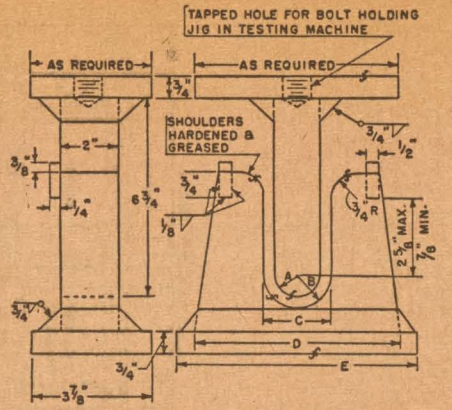
TEST NO. 4
FOR PIPING OVER 3/4 THICK

TEST 3A - WHERE MAXIMUM THICKNESS TO BE WELDED IS LESS THAN 3/8" WALL THICKNESS OF PIPE SHALL BE MAXIMUM TO BE WELDED BUT NOT LESS THAN 3/16"

SPECIMENS -
TEST 3 - FACE BENDS FROM 45° AND 225° POSITIONS
ROOT BENDS FROM 135° AND 315° POSITIONS
TEST 3A - MACRO SPECIMENS FROM 45°, 135°, 225°, AND 315° POSITIONS
TEST 4 - SIDE BENDS FROM 45°, 135°, 225°, AND 315° POSITIONS

1. Space restrictions shown may be omitted when welders are to weld piping only in the shop.
2. Nominal pipe size shall be 5 inches or larger.
3. Weld shall be made with the maximum size electrode or welding rod suitable for the position and thickness of test plate.
4. Welding shall be from one side only.
5. Mark top and front of pipe to insure location of specimens.
6. Machine reinforcement and backing ring flush-undercutting shall not be removed.
7. Specimens may be machined or oxygen cut from pipe.
8. Edges of specimens shall be broken to a radius of T/6 maximum.

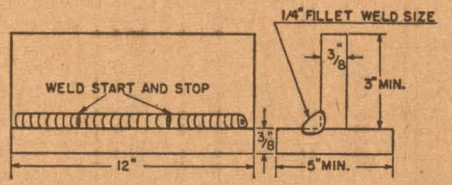
FIGURE 56.01-10 (j5)—Qualification tests Nos. 3 and 4.




HARDENED ROLLS MAY BE USED ON SHOULDERS IF DESIRED

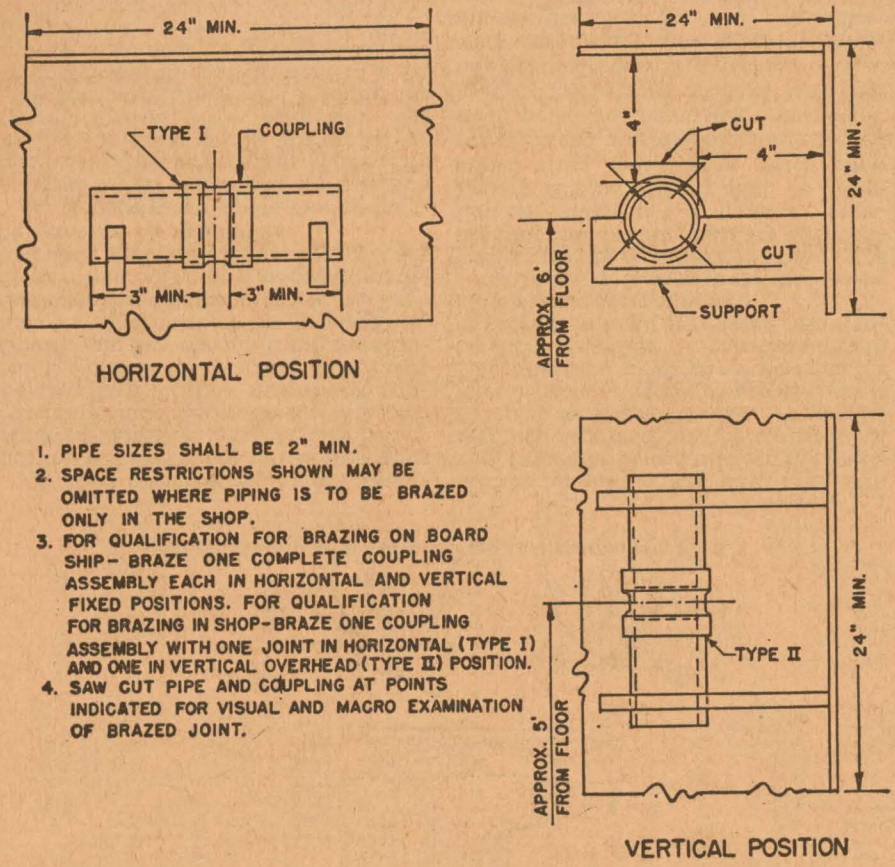
| SPECIMEN MATERIAL | SPECIMEN THICKNESS | DIMENSIONS | | | | |
|---|---|---|---|---|---|---|
| | | A | B | C | D | E |
| BASE METALS OTHER THAN ALUMINUM | 3/8" | 3/4" | 1-3/16" | 2-3/8" | 7-1/2 | 9 |
| | T" | 2T | 3T+1/16 | 6T+1/8" | 20T | 24T |
| ALUMINUM | 3/8" | 1-1/8" | 1-9/16" | 3-1/8" | 8-1/4" | 9-3/4" |
| | T" | 3T | 4T+1/16 | 8T+1/8" | 22T | 26T |

FIGURE 56.01-10 (j6)—Jig for guided bend test.



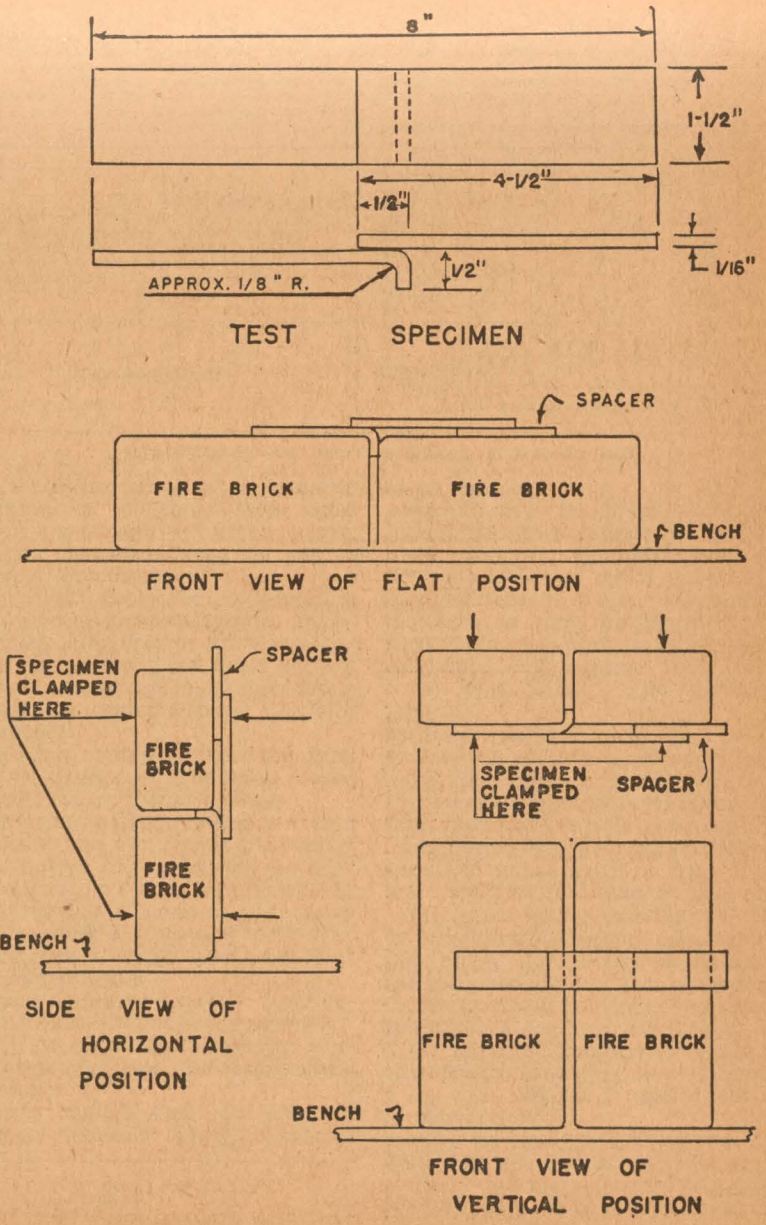

1. Weld shall be made with the maximum size of electrode suitable for the position and thickness of test plate.
2. Weld size specified is for single pass weld only.
3. Joints welded in the vertical position of welding shall be welded upwards.
4. Base plate and standing web shall be straight and in intimate contact throughout its length and securely tacked at ends before fillet weld is made.
5. The test assembly may be machined or oxygen cut into sections approximately 6 inches long to facilitate testing.

FIGURE 56.01-10 (j7)—Qualification test No. 5.




1. PIPE SIZES SHALL BE 2" MIN.
2. SPACE RESTRICTIONS SHOWN MAY BE OMITTED WHERE PIPING IS TO BE BRAZED ONLY IN THE SHOP.
3. FOR QUALIFICATION FOR BRAZING ON BOARD SHIP - BRAZE ONE COMPLETE COUPLING ASSEMBLY EACH IN HORIZONTAL AND VERTICAL FIXED POSITIONS. FOR QUALIFICATION FOR BRAZING IN SHOP - BRAZE ONE COUPLING ASSEMBLY WITH ONE JOINT IN HORIZONTAL (TYPE I) AND ONE IN VERTICAL OVERHEAD (TYPE II) POSITION.
4. SAW CUT PIPE AND COUPLING AT POINTS INDICATED FOR VISUAL AND MACRO EXAMINATION OF BRAZED JOINT.

FIGURE 56.01-10 (j8)—Qualification test No. 6.




1. Assembly shall be brazed in horizontal, vertical, or flat position as applicable, heating shall be done from one side only.
2. Assembly shall be tested as indicated in figure 56.01-10 (j10).

FIGURE 56.01-10 (j9)—Qualification test No. 7.

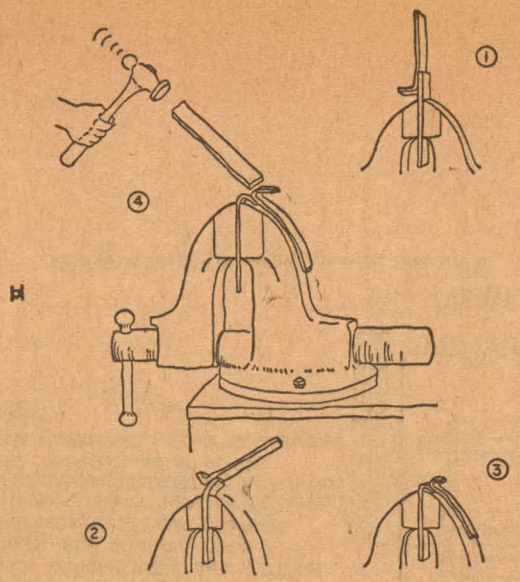



FIGURE 56.01–10 (j10)—Peel test for qualification test No. 7.

(k) *Test assembly markings.* Qualification test assemblies and all specimens removed therefrom shall be stamped or otherwise indelibly marked with the welder's identification number or symbol, the official stamp of the U. S. Coast Guard, and the marine inspector's initials or other identifying markings to establish the welding position and type of specimen. The test assembly markings shall be so located that they will not be removed by machining.

(l) *Requirements for test numbers 1, 2, 3, and 4.* (1) Specimens cut from the test plates shall be bent in a bending jig having the exact profile illustrated by figure 56.01–10 (j6). Specimens for qualification test number 1 modified for thinner material shall be bent in a jig having a contour proportional to the thickness of the test plates involved as shown in figure 56.01–10 (j6). Root bend specimens shall be bent with the root of the weld in tension; face bend specimens with the face in tension, and side bend specimens with that side, which is suspected of being the worst of the two, in tension.

(2) Specimens shall be bent until they conform to the contour of the female member of the jig, and until a 1/32-inch wire cannot be placed between the specimen and any point on the curvature of the male member of the jig. Any specimen in which a crack or opening exists before bending, or which results from the bending, exceeding 1/8 inch measured in any direction, shall be rejected. No elongation data are required.

(3) In lieu of tests as prescribed above, welders may be qualified by radiographic examination of butt joints for qualification tests numbers 1, 2, 3, and 4. Satisfactory passing of tests shall be determined from radiographs which show penetrameter and which show deposited weld metal free from slag entrapment, weld or fusion zone cracking, and does not contain porosity in excess of that shown in the applicable group of Radiographic Standards for Welder Qualification Test, CG–115–1, a copy of which is on file with each Officer in Charge, Marine Inspection . The radiographs of the test plates shall indicate that the weld(s) are acceptable for group 1 or 2 covering the fabrication classification for which the welder is being qualified as specified in table 56.01–10 (l) (3).

TABLE 56.01–10 (l) (3)—WELDER RADIOGRAPHIC QUALIFICATION TESTS

| Group | Classification |
|---|---|
| 1 | Class I piping. |
| 1 | Class I and class II welded pressure vessels. |
| 2 | Class II piping. |
| 2 | Class III welded pressure vessels. |

(m) *Test number 5.* Fillet weld specimens shall comply with the following requirements:

(1) Welds shall be of the specified size and shall be within the applicable convexity or concavity limits of the gage.

(2) Base metal shall be free from excessive undercutting.

(3) Surface of welds shall be free of cracks, porosity, overlap and roughness.

(4) Fractured surfaces of fillet welds shall be free from cracks, and the sum of lengths of slag inclusions, gas pockets, worm holes, and sections of incomplete fusion that are present shall not exceed 1½ inches per 12 inches of weld.

(n) *Test number 6.* The torch brazed assembly shall comply with the following requirements:

(1) Exterior examination of the joint shall show a complete ring of filler metal between the tube and the outer ends of the fittings. Surfaces of the specimens shall be free of globules of filler metal. Fillets shall be concave and of minimum practicable dimension.

(2) The specimens shall be cut as shown in figure 56.01–10 (j8). Visual examination of the joints shall show complete penetration of the filler metal throughout at least 75 percent of the circumference of the fittings. Penetration is defined as follows: The presence or at least a metallic stain of filler metal at the fitting end of the tubing. The stain resulting from the penetration of the flux shall not be considered as penetration. The metallic stain is differentiated from the flux by its color which is grayish white. The flux stain is glossy in appearance.

(o) *Test number 7.* Specimens shall comply with the following requirements:

(1) Exterior examination of the joint shall show a complete line of filler metal at each edge of the joint. Surfaces of the specimen shall be free of globules of filler metal. Fillets shall be concave and of minimum practicable dimension.

(2) After visual examination specimens shall be fractured by peel test as shown in figure 56.01–10 (j10). Visual examination of the faying surface of the joint shall show at least 75 percent penetration of the filler metal throughout the joint. Specimens which do not fracture by peel test shall be acceptable if failure occurs in the base metal away from the joint.

(p) *Filler metal.* The grouping of electrodes and welding rods together with applicable specifications shall be as indicated in table 56.01–10 (p). The number grouping of electrodes and welding rods shown is based essentially on their usability characteristics which fundamentally determine the ability of a welder to make acceptable welds with a given electrode.

TABLE 56.01–10 (p)—GROUPING OF ELECTRODE AND WELDING RODS

| Type of weld deposit | | Applicable specification | Electrode Classification [1] [2] [3] | | | | Welding rod classification |
|---|---|---|---|---|---|---|---|
| | | | XX10 XX11 | XX12 XX13 | XX20 XX30 | XX15 XX16 | |
| Mild steel | All types | A233–55 | M1 | M1 | M1 | M2 | |
| Carbon molybdenum | All types | A316–54T | M1 | --- | M1 | M2 | |
| Low alloy steel | All types | A316–54T | M1 | --- | --- | M2 | |
| Chrome molybdenum | 4 to 6 percent chrome–502 | A298–55T | --- | --- | --- | M2 | |
| High alloy martensitic | 11 to 14 chrome 410 | A298–55T | --- | --- | --- | M2 | |
| Chrome nickel | 308, 308 ELC, 309, 309 cb, 309 Mo, 316, 316 ELC, 318, 347. | A298–55T | --- | --- | --- | M3 | |
| Mild steel | All | A251–46T | --- | --- | --- | --- | M4 |

[1] Qualification of a welder for M2, automatically qualifies him for M1 but not vice versa. A welder qualifying with an electrode M3 and above is qualified only for that group.

[2] Covering and filler metal types not listed above shall require separate qualification.

[3] Base metal—Qualification of welding electrodes classes M1, M2, and M3 shall be performed on base metal of the comparable tensile strength and chemical analysis as the deposited weld where mechanical tests are used. Where qualification is by radiographic means, carbon steel may be used as the base material for qualification tests with M1, M2, and M3 electrode classes.

2. Section 56.01–70 (h) (1) is amended to read as follows:

§ 56.01–70 *Preheating and stress relieving.* * * *

(h) (1) Class II welded pressure vessels shall be stress-relieved under the following conditions:

(i) If required by figure 56.01–70 (h).

(ii) If fabricated of Grade C or D marine steel boiler plate exceeding a thickness of 1 inch.

(iii) If fabricated of Grade E, F, or G marine steel boiler plate of a thickness of 0.58 inch and over.

(iv) Class II pressure vessels containing liquefied compressed gases designed for pressures exceeding 100 p. s. i. shall be stress-relieved.

SUBPART 56.05—TESTS AND INSPECTION

Section 56.05–5 (c) (3) is amended to read as follows:

§ 56.05–5 *Nondestructive tests.* * * *

(c) * * *

(3) The finished surface of the reinforcement may have a crown of smooth contour not exceeding the following:

| Material thickness, inches: | *Maximum thickness of reinforcement, inches* |
|---|---|
| ½ and below | 1/16 |
| Over ½ to 1, inclusive | 3/32 |
| Over 1 to 2, inclusive | ⅛ |
| Over 2 | 5/32 |

(R. S. 4405, as amended 4462, as amended; 46 U. S. C. 375, 416. Interpret or apply R. S. 4399, 4400, 4417, 4417a, 4418, 4421, 4426–4431, 4433, 4434, 4453, 4491, as amended, sec. 14, 29 Stat. 690, 41 Stat. 305, 49 Stat. 1544, sec. 17, 54 Stat. 166, sec. 3, 54 Stat. 346, sec. 2, 54 Stat. 1028, as amended, sec. 3, 68 Stat. 675; 50 U. S. C. 198; 46 U. S. C. 361, 362, 391, 391a, 392, 399, 404–409, 411, 412, 435, 489, 366, 363, 367, 526p, 1333, 463a; E. O. 10402, 17 F. R. 9917; 3 CFR, 1952 Supp.)

Dated: June 30, 1955.

[SEAL] A. C. RICHMOND,
*Vice Admiral, U. S. Coast Guard, Commandant.*

[F. R. Doc. 55–5507; Filed, July 7, 1955; 8:52 a. m.]

## TITLE 43—PUBLIC LANDS: INTERIOR

### Chapter I—Bureau of Land Management, Department of the Interior

#### Appendix C—Public Land Orders

[Public Land Order 1182]

[Misc. 1739765]

ALASKA

AMENDING EXECUTIVE ORDER NO. 8278 OF OCTOBER 28, 1939, WHICH WITHDREW PUBLIC LAND AND WATER FOR NAVAL PURPOSES

By virtue of the authority vested in the President by Section 1 of the act of June 25, 1910, ch. 421 (36 Stat. 847; 43 U. S. C. 141), and pursuant to Executive Order No. 10355 of May 26, 1952, it is ordered as follows:

The description of lands withdrawn for use of the Department of the Navy for naval purposes by Executive Order No. 8278 of October 28, 1939, is hereby amended to read as follows:

The eastern portion of Kodiak Island included within the boundaries of U. S. Survey No. 2539, as delineated on Department of the Interior Plat entitled "Plat of U. S. Survey No. 2539 of the U. S. Naval Reserve—— on Kodiak Island at the head of Chiniak Bay" dated April 24, 1942.

ORME LEWIS,
*Assistant Secretary of the Interior.*

JULY 1, 1955.

[F. R. Doc. 55–5484; Filed, July 7, 1955; 8:48 a. m.]

# PROPOSED RULE MAKING

## DEPARTMENT OF AGRICULTURE

### Agricultural Marketing Service

### [ 7 CFR Part 958 ]

IRISH POTATOES GROWN IN COLORADO

NOTICE OF PROPOSED EXPENSES AND RATE OF ASSESSMENT

Notice is hereby given that the Secretary of Agriculture is considering the approval of the expenses and rate of assessment hereinafter set forth, which were recommended by the area committee for Area No. 1, established pursuant to Marketing Agreement No. 97 and Order No. 58 (7 CFR Part 958; 19 F. R. 9368), regulating the handling of Irish potatoes grown in the State of Colorado, issued under the Agricultural Marketing Agreement Act of 1937, as amended (48 Stat. 31, as amended; 7 U. S. C. 601 et seq.).

Consideration will be given to any data, views, or arguments pertaining thereto, which are filed in triplicate with the Director, Fruit and Vegetable Division, Agricultural Marketing Service, United States Department of Agriculture, Washington 25, D. C., not later than 15 days following publication of this notice in the FEDERAL REGISTER.

The proposals are as follows:

§ 958.218 *Expenses and rate of assessment.* (a) The reasonable expenses that are likely to be incurred by the area committee for Area No. 1, established pursuant to Marketing Agreement No. 97 and Order No. 58, to enable such committee to perform its functions pursuant to the provisions of aforesaid marketing agreement and order, during the fiscal period ending May 31, 1956, will amount to $1,250.00.

(b) The rate of assessment to be paid by each handler, pursuant to Marketing Agreement No. 97 and Order No. 58, shall be one cent ($0.01) per hundredweight of potatoes handled by him as the first handler thereof during said fiscal period.

(c) The terms used in this section shall have the same meaning as when used in Marketing Agreement No. 97 and Order No. 58.

(Sec. 5, 49 Stat. 753, as amended; 7 U. S. C. 608c)

Done at Washington, D. C., this 5th day of July 1955.

[SEAL] FLOYD F. HEDLUND,
*Acting Director, Fruit and Vegetable Division, Agricultural Marketing Service.*

[F. R. Doc. 55–5531; Filed, July 7, 1955; 8:56 a. m.]

## DEPARTMENT OF HEALTH, EDUCATION, AND WELFARE

### Food and Drug Administration

### [ 21 CFR Part 120 ]

TOLERANCES AND EXEMPTIONS FROM TOLERANCES FOR PESTICIDE CHEMICALS IN OR ON RAW AGRICULTURAL COMMODITIES

NOTICE OF FILING OF PETITION FOR ESTABLISHMENT OF EXEMPTION FROM NECESSITY OF TOLERANCE FOR RESIDUES OF ALLETHRIN

Pursuant to the provisions of the Federal Food, Drug, and Cosmetic Act as amended (sec. 408 (d) (1); 68 Stat. 512; 21 U. S. C. 348 (d) (1), the following notice is issued:

A petition has been filed by Food Machinery and Chemical Corporation, Middleport, New York, proposing that the pesticide chemical allethrin (allyl homolog of cinerin I) be exempted from the requirement of a tolerance when used in the production of fruit and vegetable crops.

The method set forth in the petition for determining residues of allethrin is "Estimation of Micro Quantities of Pyrethroids," published in Analytical Chemistry, Volume 26, pp. 604–607 (1954).

Dated: July 1, 1955.

[SEAL] GEO. P. LARRICK,
*Commissioner of Food and Drugs.*

[F. R. Doc. 55–5481; Filed, July 7, 1955; 8:47 a. m.]

### [ 21 CFR Part 120 ]

TOLERANCES AND EXEMPTIONS FROM TOLERANCES FOR PESTICIDE CHEMICALS IN OR ON RAW AGRICULTURAL COMMODITIES

NOTICE OF FILING OF PETITION FOR ESTABLISHMENT OF TOLERANCES FOR RESIDUES OF 3-(3,4-DICHLOROPHENYL)-1,1-DIMETHYLUREA

Pursuant to the provisions of the Federal Food, Drug, and Cosmetic Act as amended (sec. 408 (d) (1), 68 Stat. 512; 21 U. S. C. 348 (d) (1)), the following notice is issued:

A petition has been filed by E. I. du Pont de Nemours and Company, Wilmington, Delaware, proposing the establishment of tolerances for 3-(3,4-dichlorophenyl)-1,1-dimethylurea, as follows:

Proposed tolerances of 3 parts per million on:

Sugarcane.
Pineapple.
Cottonseed.

The analytical method proposed in the petition for determining residues of 3-(3,4-dichlorophenyl)-1,1-dimethylurea in cottonseed is reported in "Determination of 3(ρ-chlorophenyl)-1,1-dimethylurea in Soils and Plant Tissues," by W. E. Bleidner, H. M. Baker, Michael Levitsky, and W. K. Lowen, published in the Journal of Agricultural and Food Chemistry, Volume 2, pages 476–479, April 28, 1954, with the following exceptions:

1. For calibration, 3,4-dichloraniline is used in place of ρ-chloroaniline.

2. Hexane is the recommended solvent.

3. Under calibration, page 477: Following the dilution of the aliquot to 40 milliliters with 1.0 *N* HCl, 5 milliliters of glacial acetic acid is added. The sodium nitrite is then added and the color development completed as described. Fifteen minutes after the addition of the *N*-(1-naphthyl)-ethylenediamine dihydrochloride, the intensity of the color is determined at approximately 560 mμ with a filter photometer.

4. Under "Determination," page 479: Following placement of the aliquot into a 50-milliliter volumetric flask the aliquot is diluted to 40 milliliters with 1.0 *N* HCl and 5 milliliters of glacial acetic acid is added. The color is then developed and read as before.

5. In the equation on page 479, the factor should be changed from 1.56 to 1.44.

The analytical method proposed in the petition for determining residues of 3-(3,4-dichlorophenyl)-1,1-dimethylurea in sugarcane and pineapple is as follows:

*Calibration.* Place 0.05 gram (weighed accurately) of 3,4-dichloroaniline in a 100-milliliter volumetric flask. Dissolve and dilute to the mark with 1.0 *N* HCl. Pipette 5 milliliters of this solution into a second 100-milliliter volumetric flask and dilute to the mark with 1.0 *N* HCl. This forms a solution containing 25 micrograms per milliliter. Place 0.5, 1.0, 2.0, 3.0, and 4.0 milliliters in separate 50-milliliter volumetric flasks. Dilute each to 40 milliliters with 1.0 *N* HCl. Add to each 5 milliliters of glacial acetic acid.

Add 1 milliliter of 2-percent $NaNO_2$ solution (prepared fresh daily), shake and allow to stand 15 minutes. Then add 1 milliliter of 10-percent sulfamic acid. Shake vigorously, and allow to stand 10 minutes. Then add 2 milliliters of 2-percent *N*-(1 naphthyl) ethylenediamine dihydrochloride solution and dilute to the mark with 1.0 *N* HCl. Shake well and allow to stand 15 minutes. At the end of this period determine the optical density (O. D.) of the solution at 558 mμ on a spectrophotometer or on a filter photometer, using a green filter. Use distilled water as a reference. Plot the optical density of the solutions against micrograms per 50 milliliters and construct the calibration curve.

*Procedure.* Place 100 grams of well chopped sugarcane or pineapple in a 2-liter round-bottom flask with a 29/26 standard taper joint. Add boiling chips and 800 milliliters of 50-percent NaOH. Attach an L-shaped tube (10 millimeters in diameter), each arm of which is 3 inches long. One arm is equipped with a 29/26 standard taper inner joint and the other with a spherical outer joint. Attach to the spherical joint a vertical water-cooled reflux condenser leading down into a 150-milliliter beaker containing 8.5 milliliters of concentrated hydrochloric acid. Place a hemispherical heating mantle under the 2-liter pot and heat to boiling. Hold at a minimum boil under air reflux for 18 hours. At the end of this period take over 75 milliliters of distillate into the trap.

Rinse the trap carefully into a 100-milliliter volumetric flask and dilute to the mark with distilled water. Take an aliquot and place into a 50-milliliter volumetric flask. Dilute to 40 milliliters with 1.0 *N* HCl and add 5 milliliters of glacial acetic acid. Develop the color and read the optical density as above. From the curve determine the concentration of 3,4-dichloroaniline and calculate the parts per million of 3-(3,4-dichlorophenyl)-1,1-dimethylurea. The factor to convert 3,4-dichloroaniline to 3-(3,4-dichlorophenyl)-1,1-dimethylurea is 1.44.

Dated: July 1, 1955.

[SEAL] GEO. P. LARRICK,
*Commissioner of Food and Drugs.*

[F. R. Doc. 55–5482; Filed, July 7, 1955; 8:47 a. m.]

## [ 21 CFR Part 120 ]

TOLERANCES AND EXEMPTIONS FROM TOLERANCES FOR PESTICIDE CHEMICALS IN OR ON RAW AGRICULTURAL COMMODITIES

NOTICE OF FILING OF PETITION FOR ESTABLISHMENT OF TOLERANCES FOR RESIDUES OF 3-(ρ-CHLOROPHENYL)-1,1-DIMETHYLUREA

Pursuant to the provisions of the Federal Food, Drug, and Cosmetic Act as amended (sec. 408 (d) (1), 68 Stat. 512; 21 U. S. C. 348 (d) (1)), the following notice is issued:

A petition has been filed by E. I. du Pont de Nemours and Company, Wilmington, Delaware, proposing the establishment of tolerances for 3-(ρ-chlorophenyl)-1,1-dimethylurea as follows:

Proposed tolerances of 3 parts per million on:

Asparagus.
Sugarcane.
Pineapple.
Onions.
Spinach.
Cottonseed.

The analytical method proposed in the petition for determining residues of 3-(ρ-chlorophenyl)-1,1-dimethylurea is reported in "Determination of 3(ρ-chlorophenyl)-1,1-dimethylurea in Soils and Plant Tissue," by W. E. Bleidner, H. M. Baker, Michael Levitsky, and W. K. Lowen, published in the Journal of Agricultural and Food Chemistry, Volume 2, pages 476–479, April 28, 1954.

Dated: July 1, 1955.

[SEAL] GEO. P. LARRICK,
*Commissioner of Food and Drugs.*

[F. R. Doc. 55–5483; Filed, July 7, 1955; 8:48 a. m.]

# FEDERAL COMMUNICATIONS COMMISSION

## [ 47 CFR Part 3 ]

[Docket No. 11279; FCC 55–753]

SUBSCRIPTION TELEVISION SERVICE

ORDER EXTENDING TIME FOR FILING REPLY COMMENTS

In the matter of amendment of Part 3 of the Commission's rules and regulations (Radio Broadcast Services) to provide for Subscription Television Service; Docket No. 11279.

At a session of the Federal Communications Commission held at its offices in Washington, D. C., on the 29th day of June 1955;

The Commission has under consideration the petition filed June 21, 1955, by the Joint Committee on Toll TV requesting that the time for filing reply comments in the above-entitled proceeding be extended from July 11, 1955, to September 9, 1955; and the statements supporting the above petition submitted by American Broadcasting Company, Columbia Broadcasting System, National Association of Radio and Television Broadcasters, International Telemeter Corporation, Zenith Radio Corporation, and TECO, Inc., and Skiatron TV Inc. and Skiatron Electronics & Television Corporation.

The time for filing reply comments in the subscription television proceeding now runs to July 11, 1955. The Joint Committee on Toll TV notes that voluminous and extensive comments have been filed and requests that the time for filing replies to these comments be extended to September 9, 1955. The Joint Committee urges that postponing the time for filing replies will enable interested parties to prepare more detailed and thorough analyses of the proposals advanced by the proponents of subscription as well as provide an opportunity for commenting on the various contentions submitted by the opponents.

The Commission believes that an extension of time for filing reply comments in this proceeding is warranted and that such an extension will serve the public interest, convenience and necessity.

In view of the foregoing: *It is ordered*, That the time for filing reply comments in the above-entitled proceeding is extended to September 9, 1955.

Released: July 5, 1955.

FEDERAL COMMUNICATIONS COMMISSION,
[SEAL] MARY JANE MORRIS,
*Secretary.*

[F. R. Doc. 55–5520; Filed, July 7, 1955; 8:54 a. m.]

# NOTICES

## DEPARTMENT OF THE INTERIOR

### Bureau of Land Management

ALASKA

SMALL TRACT CLASSIFICATION ORDER NO. 101

JUNE 24, 1955.

By virtue of the authority contained in the act of June 1, 1938 (52 Stat. 609; 43 U. S. C. 682a), as amended and pursuant to Delegation of Authority contained in section 1.9 (o), Order No. 541 of April 21, 1954, Bureau of Land Management, it is ordered as follows:

1. Subject to valid existing rights, the public lands hereinafter described, which are situated in the Anchorage, Alaska, Land District, are hereby classified as chiefly valuable for residence site purposes, as hereinafter indicated, for lease and sale under the Small Tract Act of June 1, 1938, supra:

SITKA AREA

FOR LEASE AND SALE—FOR RESIDENCE SITES

U. S. Survey 2746, Lots 8–A and 9–A.
U. S. Survey 2747, Lot 10–A.
U. S. Survey 2749, Lots 4–A, C–1 and D–1.
U. S. Survey 2750, Lots L and 2–A.
U. S. Survey 2752, Lot 1–A.
U. S. Survey 3317, Tract A: Lots 2–18, inclusive.

Comprising 26 lots aggregating 43.75 acres.

2. The classification of the above-described lands segregates them from all appropriations, including locations under the mining laws, except as to applications under the Small Tract Act and applications under the mineral leasing laws.

3. The lands involved are located along the North Sitka Highway and Halibut Point and are within 4 miles of Sitka. Some of the tracts presently have access from the North Sitka Highway and an extension of the Highway is now under construction which will provide access from the Highway for the remaining tracts. Some of the lots have beach frontage and many of them command an excellent view of Sitka Sound and the islands off shore. The area is typical of Southeastern Alaska coastal lands which are usually rugged in character with rock outcroppings, thin soil, traversed by numerous streams, and covered with an overmature non-commercial stand of spruce and hemlock. City power, and in some cases city water, is available to some of the lots along the North Sitka Highway. There are no public services available to those lots in the Halibut Point Group at this time. All of the lots are within easy driving distance of Sitka with its schools, churches, stores and other public services.

4. The individual tracts vary in size from 0.24 to 2.84 acres. The supplemental plat of survey showing the location of each tract can be secured for $1.00 from the Area Cadastral Engineering Office, Bureau of Land Management, Juneau, Alaska. Brochures which describe the area and contain sketch maps of the platting of the small tracts can be obtained free of charge from the Manager, Anchorage Land Office, Anchorage, Alaska. The appraised values of the tracts vary from $200 to $800 per lot as shown below. Each lot is subject to the easement as indicated on the "Appraisal Schedule" for the existing highway or for easement purposes for a future highway. Each lot is subject to any existing facilities used for the transmission of telephonic communication, sewage, water or electricity.

SITKA AREA SMALL TRACTS APPRAISAL SCHEDULE

| Official description | Acreage | Advanced rental (2 years) | Easements (feet) | Appraised value |
|---|---|---|---|---|
| U. S. Survey 2746: | | | | |
| Lot 8–A | 2.84 | $50 | SW 17 [1] | $500 |
| 9–A | 1.08 | 60 | NE 17 [1] | 600 |
| U. S. Survey 2747: | | | | |
| Lot 10–A | 1.42 | 80 | NE 17 [1] | 800 |
| U. S. Survey 2749: | | | | |
| Lot 4–A | .40 | 20 | NE 17 [1] | 200 |
| C–1 | .93 | 30 | NE 17 [1] | 300 |
| D–1 | .24 | 20 | NE 17 [1] | 200 |
| U. S. Survey 2750: | | | | |
| Lot L | 1.18 | 50 | NE 17 [1] | 500 |
| 2–A | 1.14 | 50 | NE 17 [1] | 500 |
| U. S. Survey 2752: | | | | |
| Lot 1–A | 2.75 | 50 | NE 17 [1] | 500 |
| U. S. Survey 3317—Tract A: | | | | |
| Lot 2 | 2.09 | 31 | SW 50 [2] [3] | 310 |
| 3 | 1.81 | 31 | SW 50 [2] [3] | 310 |
| 4 | 1.86 | 23 | SW 50 [3] | 230 |
| 5 | 1.86 | 23 | SW 50 [3] | 230 |
| 6 | 1.86 | 23 | SW 50 [3] | 230 |
| 7 | 1.86 | 25 | SW 50 [3] | 250 |
| 8 | 1.86 | 27 | SW 50 [3] | 270 |
| 9 | 1.86 | 25 | SW 50 [3] | 250 |
| 10 | 1.86 | 25 | SW 50 [3] | 250 |
| 11 | 1.87 | 25 | SW 50 [3] | 250 |
| 12 | 1.87 | 25 | SW 50 [3] | 250 |
| 13 | 1.87 | 25 | SW 50 [3] | 250 |
| 14 | 1.87 | 23 | SW 50 [3] | 230 |
| 15 | 1.87 | 23 | SW 50 [3] | 230 |
| 16 | 1.87 | 23 | SW 50 [3] | 230 |
| 17 | 1.85 | 23 | SW 50 [3] | 230 |
| 18 | 1.78 | 23 | SW 50 [3] | 230 |

[1] Lots in this group subject to additional 17 foot easement on side or sides as noted for relocation and widening of existing North Sitka Highway.
[2] Subject to easement for Harbor Mountain Road (Forest Service access road) as shown on plat of survey.
[3] Lots in this group (Halibut Point Group) are surveyed to the centerline of the existing extension of the North Sitka Highway now under construction and are subject to an easement on half of the total easement, in this case 50 feet each side of the centerline thereof. Lot corners are Reference Monuments set approximately 50 feet from the center of the road.

5. Leases will be issued for a term of two years and will contain an option to purchase in accordance with 43 CFR 257.13 (Circular 1899). Lessees who comply with the general terms and conditions of their leases will be permitted to purchase their tracts at the prices listed above at any time during the term of their leases providing that they have either (a) constructed the improvements specified in paragraph 6 or (b) filed a copy of an agreement in accordance with 43 CFR 257.13 (d). Leases will not be renewable unless failure to construct the required improvements is justified under the circumstances and nonrenewal would work an extreme hardship on the lessee.

6. To maintain their rights under their leases, lessees will be required to either (a) construct substantial improvements on their lands or (b) file a copy of an agreement with their neighbors binding them to construct substantial improvements on their lands. Such improvements must conform with health, sanitation, and construction requirements of local ordinances and must, in addition, meet at least the following minimum standards. The home must be insulated and be suitable for year-around occupancy, be on a permanent foundation, contain at least 192 square feet of floor space (outside measure), and contain a minimum of one door and one window. The home must be built in a workmanlike manner out of attractive materials properly finished. Adequate disposal and sanitary facilities must be installed.

7. Beginning at 10:00 a. m. on July 20, 1955, the lands will be open to filing of drawing-entry cards (Form 4–775) only by persons entitled to veterans' preference. In brief, persons entitled to such preference are (a) honorably discharged veterans who served in the armed forces of the United States for a period of at least 90 days after September 15, 1940, (b) surviving spouse or minor orphan children of such veterans through a legally authorized representative, and (c) with the consent of the veteran, the spouse of living veterans. The 90-day requirement does not apply to veterans who were discharged on account of wounds or disability incurred in the line of duty or the surviving spouse or minor children of veterans killed in the line of duty. Drawing-entry cards (Form 4–775) are available upon request from the Manager, Anchorage Land Office, Anchorage, Alaska.

Drawing-entry cards will be accepted if filled out in compliance with the instructions on the form and submitted to the above named official prior to 10:00 a. m. on August 10, 1955. A drawing will be held on that date to select the successful entrants who will be sent copies of the lease form, Form 4–776, with instructions as to their execution and return and as to payment of fees and rentals. All entrants will be notified of the results of the drawing.

For a period of 91 days or until the close of business on November 9, 1955, any tracts remaining unappropriated will be subject to filing in the order received by qualified veteran applicants. Such filings will be executed upon the lease form, Form 4–776.

During the 21 day period extending between 10:00 a. m. on October 19, 1955 and November 9, 1955, drawing-entry cards will be accepted from the general public on any unappropriated parcels of the subject land, however, during this 21 day period veteran priority rights still prevail. A drawing will be held at 10:00 a. m. on November 9, 1955, to select successful entrants, after which the unappropriated portions of the subject land will be open to application under this classification in order of filing. All entrants will be notified of the results of the drawing and successful entrants will be sent copies of the lease forms with instructions as to their execution. Per-

sons claiming veterans' preference rights must enclose with their applications proper evidence of military or naval service, preferably a complete photostatic copy of the certificate of honorable discharge.

The filing of the lease form, Form 4–776, must be accompanied by a filing fee of $10.00 plus the advance rental specified above. The advance rental is determined as being a sum which amounts to 1/20th of the appraised value of the land for each of two years under lease. The advance rental for any unexpired full lease year, if any, subsequent to the filing of the application to purchase, will be subtracted from the sale price of the land as shown above. Failure to transmit the filing fee and the advance rental with the application will render the application invalid. Advance rentals will be returned to unsuccessful applicants. All filing fees will be retained by the United States.

8. All valid applications filed prior to June 19, 1952, will be granted the preference right provided for by 43 CFR 257.5 (a).

ROGER R. ROBINSON,
*Acting Area Administrator.*

[F. R. Doc. 55–5485; Filed, July 7, 1955; 8:48 a. m.]

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[Serial No. Oregon 04516]

OREGON

ORDER PROVIDING FOR OPENING OF PUBLIC LANDS

JUNE 29, 1955.

Pursuant to determination DA–417, Oregon of the Federal Power Commission and in accordance with Order No. 541, section 2.5, of the Director, Bureau of Land Management, approved April 21, 1954 (19 F. R. 2473, 2476), it is ordered as follows:

The lands hereinafter described, so far as they are withdrawn for power purposes, are hereby restored to disposition under applicable public land laws as provided below, subject to the provisions of section 24 of the Federal Power Act of June 10, 1920 (41 Stat. 1075; 16 U. S. C. 818), as amended.

OREGON

WILLAMETTE MERIDIAN

T. 1 S., R. 4 E.,
Sec. 23: SE¼NE¼, NE¼NW¼.
T. 2 S., R. 6 E.,
Sec. 17: SE¼SW¼;
Sec. 19: SW¼NE¼;
Sec. 23: SW¼NE¼, NW¼, NE¼SW¼, W½SW¼;
Sec. 25: E½SE¼, SW¼SE¼, SW¼.
T. 2 S., R. 7 E.,
Sec. 19: NW¼SW¼;
Sec. 30: E½NE¼;
Sec. 31: NW¼NW¼;
Sec. 33: SW¼NE¼.

Total area aggregates 920 acres.

The NW¼, SW¼NE¼, NE¼SW¼, W½SW¼ Section 23; NE¼SE¼ Section 25, T. 2 S., R. 6 E., and the E½NE¼ Section 30; NW¼NW¼ Section 31, T. 2 S., R. 7 E., have been patented, are privately owned lands and are, therefore, not subject to classification, entry or disposal under any of the public land laws.

The SE¼NE¼, NE¼NW¼ Sec. 23, T. 1 S., R. 4 E.; the SE¼SW¼ Sec. 17, SW¼NE¼ Sec. 19, SE¼SE¼, SW¼ SE¼, SW¼ Sec. 25, T. 2 S., R. 6 E., and the NW¼SW¼ Sec. 19, T. 2 S., R. 7 E., are revested Oregon and California Railroad grant lands valuable for the production of timber and for recreational purposes. The topography of the lands makes them unsuitable for the production of agricultural crops.

Subject to valid existing rights and the provisions of existing laws, the above described revested Oregon and California Railroad grant lands are hereby restored to entry, location, or selection under applicable public land laws. No application for the revested lands will be allowed under the homestead, desert land, small tract or any other nonmineral public land law, unless the lands have already been classified as valuable or suitable for such type of application, or shall be so classified upon consideration of an application. Any application that is filed will be considered on its merits. The lands will not be subject to occupancy or disposal until they have been classified.

Any disposition or allowed use of the revested lands described herein shall be subject to the stipulation that if and when the land is required in whole or in part for power development purposes, any structures or improvements placed thereon which may be found to obstruct or interfere with such development shall without cost, expense, or delay to the United States, its licensees or permittees, be removed or relocated insofar as may be necessary to eliminate interference with such power development.

The public lands described shall be subject to application by the State of Oregon for a period of 90 days from the date of publication of this order in the FEDERAL REGISTER for right-of-way for public highways or as a source of material for construction and maintenance of such highways, in accordance with and subject to the provisions of section 24 of the Federal Power Act, as amended, and the special stipulation provided in the preceding paragraph.

This order shall not otherwise become effective to change the status of the described land until 10:00 a. m. on the 35th day after the date of this order. At that time the said land shall become subject to application, petition, location and selection under the applicable public-land laws, subject to valid existing rights, the provisions of existing withdrawals, the requirements of applicable laws, and the 91-day preference right filing period for veterans and others entitled to preference under the act of September 27, 1944 (58 Stat. 747; 43 U. S. C. 279–284), as amended. All applications filed pursuant to the Veterans' Preference Act of 1944, on or before 10:00 a. m. of the 35th day after the date of this order shall be treated as though simultaneously filed at that time. All other applications under the public-land laws filed on or before 10:00 a. m. of the 126th day after the date of this order shall be treated as though simultaneously filed at that time.

Inquiries concerning these lands shall be addressed to State Supervisor, Bureau of Land Management, P. O. Box 3861, 1001 N. E. Lloyd Blvd., Portland 14, Oregon.

VIRGIL T. HEATH,
*State Supervisor.*

[F. R. Doc. 55–5486; Filed, July 7, 1955; 8:48 a. m.]

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## Bureau of Reclamation

SALT RIVER PROJECT, ARIZONA

ORDER OF REVOCATION

MAY 12, 1954.

Pursuant to the authority delegated by Departmental Order No. 2515 of April 7, 1949 (14 F. R. 1937), I hereby revoke Departmental Order of July 2, 1902, insofar as said order affects the following described land; *Provided, however,* That such revocation shall not affect the withdrawal of any other lands by said order or affect any other orders withdrawing or reserving the land hereinafter described.

ARIZONA

GILA AND SALT RIVER MERIDIAN

T. 1 N., R. 5 E.,
Sec. 4, Lots 1 to 4 incl., S½N½, SW¼, N½ SE¼;
Secs. 5 and 6 all;
Sec. 7, Lots 1 to 4 incl., NE¼, E½W½, N½SE¼;
Sec. 8, N½NE¼, SW¼NE¼, NW¼, N½ SW¼;
Sec. 9, NW¼NW¼.

The above area aggregates 2805.13 acres.

W. A. DEXHEIMER,
*Commissioner.*

[Misc. 67133]

JULY 1, 1955.

I concur. The records of the Bureau of Land Management will be noted accordingly.

The lands are included within the Salt River Indian Reservation, created by Executive order of January 10, 1879, and are therefore not subject to the provisions of the act of September 27, 1944 (58 Stat. 747; 43 U. S. C. 279–284) as amended, granting preference rights to veterans of World War II, the Korean Conflict, and others.

W. G. GUERNSEY,
*Associate Director,*
*Bureau of Land Management.*

[F. R. Doc. 55–5502; Filed, July 7, 1955; 8:51 a. m.]

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# DEPARTMENT OF AGRICULTURE

## Office of the Secretary

TEXAS

DISASTER ASSISTANCE; DELINEATION AND CERTIFICATION OF CERTAIN COUNTIES IN THE DROUGHT AREAS

Pursuant to Public Law 875, 81st Congress (42 U. S. C. 1855 et seq.), the President determined on July 21, 1954, that a major disaster occasioned by drought existed in the State of Texas.

Pursuant to the authority delegated to me by the Administrator, Federal Civil Defense Administration (18 F. R.

4609; 19 F. R. 2148; 19 F. R. 5364), and for the purposes of section 2 (d) of Public Law 38, 81st Congress, as amended by Public Law 115, 83d Congress, certain counties in the State of Texas were on August 10, 1954 (19 F. R. 5155), as amended (19 F. R. 5388, 5957, 6127, 6417, 6557, 7547, 8635; 20 F. R. 140, 813, 1384, 3142, 3450, and 4308) determined to be the areas affected by the major disaster by drought.

Pursuant to the aforesaid delegations, the delineation and certification of counties in the drought area in the State of Texas, as above described are herewith amended by adding Goliad County, on June 20, 1955, to the major disaster area in the State of Texas.

Done at Washington, D. C., this 1st day of July 1955.

[SEAL] TRUE D. MORSE,
*Acting Secretary.*

[F. R. Doc. 55-5501; Filed, July 7, 1955; 8:51 a. m.]

## CIVIL AERONAUTICS BOARD

[Docket No. 6950 et al.]

SOUTH PACIFIC AIR LINES, INC.; CERTIFICATE RENEWAL CASE

NOTICE OF HEARING

In the matter of the application of South Pacific Air Lines, Inc., under section 401 of the Civil Aeronautics Act of 1938, as amended, for a temporary or permanent certificate of public convenience and necessity authorizing air transportation of persons and property between the Territory of Hawaii and the Society Islands via Christmas Island.

Notice is hereby given, pursuant to the Civil Aeronautics Act of 1938, as amended, particularly sections 401 and 1001 of said act, that a hearing in the above-entitled proceeding will be held on August 9, 1955, at 10:00 a. m., e. d. s. t., in Room E-206, Temporary Building No. 5, Sixteenth Street and Constitution Avenue NW., Washington 25, D. C., before Curtis C. Henderson, Hearing Examiner.

Without limiting the scope of the issues, particular attention will be directed to the following matter:

1. Do the public convenience and necessity require the renewal of the certificate of public convenience and necessity of South Pacific Air Lines, Inc., authorizing it to engage in the scheduled transportation by air of persons and property between Honolulu, Territory of Hawaii, or Territory of Hawaii and Papeete, Tahiti, the Society Islands, French Oceania or the Society Islands via the Christmas Islands, permanently, or for 10 years, or some other period?

2. Do the public convenience and necessity require that South Pacific Air Lines, Inc., be granted authority to engage in air transportation (1) on an irregular and infrequent basis, and/or (2) on a charter basis, as defined in Part 207 of the Board's Economic Regulations, without regard to regularity or frequency?

3. Is South Pacific Air Lines, Inc., a citizen of the United States within the meaning of section 1 (13) of the Civil Aeronautics Act of 1938, as amended?

4. Is South Pacific Air Lines, Inc., fit, willing, and able within the meaning of section 401 of the Civil Aeronautics Act of 1938, as amended, to perform the transportation proposed as set forth in its application?

For further details of the issues involved in this proceeding, interested persons are referred to the applications and other documents entered in the docket of this proceeding, all of which are on file with the Civil Aeronautics Board.

Notice is further given that any person other than parties of record desiring to be heard in this proceeding should file with the Board, on or before August 9, 1955, a statement setting forth the issues of fact or law raised by said applications which he desires to controvert.

Dated at Washington, D. C., July 1, 1955.

[SEAL] FRANCIS W. BROWN,
*Chief Examiner.*

[F. R. Doc. 55-5522; Filed, July 7, 1955; 8:54 a. m.]

[Docket No. 7177]

CATALINA AIR TRANSPORT ABANDONMENT

NOTICE OF HEARING

In the matter of the application of Catalina Air Transport under section 401 (k) of the Civil Aeronautics Act of 1938, as amended, to abandon route and to surrender certificate.

Notice is hereby given pursuant to the provisions of the Civil Aeronautics Act of 1938, as amended, that hearing in the above-entitled proceeding is assigned to be held on July 18, 1955, at 10:00 a. m., e. d. s. t., in Room E-206, Temporary Building No. 5, Sixteenth Street and Constitution Avenue NW., Washington, D. C., before Examiner Richard A. Walsh.

Dated at Washington, D. C., July 1, 1955.

[SEAL] FRANCIS W. BROWN,
*Chief Examiner.*

[F. R. Doc. 55-5521; Filed, July 7, 1955; 8:54 a. m.]

## FEDERAL COMMUNICATIONS COMMISSION

[Docket Nos. 9594 and 9595; FCC 55-735]

PACIFIC COAST BROADCASTING CO. (KXLA)

ORDER CONTINUING ORAL ARGUMENT

In re application of Pacific Coast Broadcasting Company (KXLA), Pasadena, California, for modification of license, Docket No. 9594, File No. BML-1328; in re order to show cause directed to Pacific Coast Broadcasting Company (KXLA), Pasadena, California, Docket No. 9595, File No. BS-1189.

At a session of the Federal Communications Commission held at its offices in Washington, D. C., on the 29th day of June 1955;

The Commission having under consideration a motion filed on June 27, 1955, by Pacific Coast Broadcasting Company requesting a postponement of the oral argument on its application now scheduled for July 12, 1955;

It appearing, that KFAB Broadcasting Company, Omaha, Nebraska, party respondent, and the Broadcast Bureau have consented to the requested postponement, and that in view of the circumstances set out in the motion a postponement is desirable;

*It is ordered*, That oral argument in the above-entitled proceeding now scheduled for July 12, 1955, is continued without date.

Released: June 30, 1955.

FEDERAL COMMUNICATIONS COMMISSION,
[SEAL] MARY JANE MORRIS,
*Secretary.*

[F. R. Doc. 55-5509; Filed, July 7, 1955; 8:52 a. m.]

[Docket No. 10960; FCC 55M-596]

LAKE SHORE BROADCASTING CO., INC. (WSHE)

ORDER CONTINUING HEARING

In re application of Lake Shore Broadcasting Co., Inc. (WSHE), Sheboygan, Wisconsin, Docket No. 10960, File No. BP-8808; for construction permit.

The Hearing Examiner having under consideration (1) the 800 kc hearing now scheduled for July 5, 1955, and the prehearing exchange of exhibits scheduled for July 1; (2) the Commission's action of June 29, 1955, granting without hearing Lake Shore's application for 950 kc;

*It is ordered*, This 30th day of June 1955, that the prehearing exchange of exhibits and the hearing of July 5 are indefinitely continued.

FEDERAL COMMUNICATIONS COMMISSION,
[SEAL] MARY JANE MORRIS,
*Secretary.*

[F. R. Doc. 55-5510; Filed, July 7, 1955; 8:52 a. m.]

[Docket No. 11146; FCC 55M-591]

BLACKHAWK BROADCASTING CO., INC. (WSDR)

PRE-HEARING CONFERENCE AND ORDER SCHEDULING HEARING

In re application of Blackhawk Broadcasting Company, Inc. (WSDR) Sterling, Illinois, Docket No. 11146, File No. BP-9258; for construction permit.

1. The third pre-hearing conference was held herein, before the Hearing Examiner, on June 22, 1955.

2. Agreements were reached among the parties and were stated on the record, as reflected in the transcript which is incorporated herein by reference. Such agreements are found to be acceptable and approved by the Hearing Examiner. They include the following subjects:

(a) Additional information to be supplied by applicant (Tr. 50-53).

(b) Witnesses of applicant requested for cross-examination (Tr. 49, 52, 53).

(c) Possibility of stipulation and earlier hearing date (Tr. 54).

(d) Hearing date (Tr. 54).

*It is ordered,* This 1st day of July 1955, that the foregoing agreements and requirements shall govern the course of the proceeding to the extent indicated, unless modified by the Hearing Examiner for cause or by the Commission upon review of the Hearing Examiner's ruling; and hearing herein is scheduled to be held on September 7, 1955, at 10:00 a. m.

FEDERAL COMMUNICATIONS COMMISSION,
[SEAL] MARY JANE MORRIS,
*Secretary.*

[F. R. Doc. 55-5511; Filed, July 7, 1955; 8:52 a. m.]

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[Docket No. 11262; FCC 55-726]

AMERICAN SOUTHERN BROADCASTERS (WPWR)

ORDER SPECIFYING ISSUES

In re application of Carrol F. Jackson & D. N. Jackson, d/b as American Southern Broadcasters (WPWR), Laurel, Mississippi, Docket No. 11262, File No. BP-9440; For construction permit for new standard broadcast station.

At a session of the Federal Communications Commission held at its offices in Washington, D. C., on the 29th day of June, 1955;

The Commission having under consideration the oral argument held in the above-entitled proceeding on February 21, 1955, on the so-called "economic injury" issues involved in the proceeding; and the "Brief in Support of Request to Designate Issues for Evidentiary Hearing," filed on March 8, 1955, by Southland Broadcasting Company and New Laurel Radio Station, Inc., joint protestants herein;

It appearing, that our disposition of this matter is governed by our action taken today in the Radio Tifton case (FCC 55-725; Mimeo 20784); and that for the reason set out in the latter case, an evidentiary hearing on the "economic issues" is appropriate;

*It is ordered,* That the evidentiary hearing in this proceeding shall be held in Washington, D. C., at a time to be specified by later order, on the following issues (the "economic injury" issues and issues 4 and 5 set out on pages 4-5 of the Commission's Memorandum Opinion and Order of January 26, 1955 (FCC 55-112; Mimeo 15377)):

1. To determine whether the Laurel market will provide sufficient revenues to the proposed station so as to permit the applicant to adequately serve its public.

2. To determine whether the advertising potential of the Laurel market is such as may indicate that one or both of the existing stations, and the proposed stations, will go under, with the result that a portion of the listening public will be left without adequate service.

3. To determine whether the advertising potential of the Laurel market is so slight that by a division of the field, one or both of the existing stations, and the proposed station, will be compelled to render inadequate service.

4. To determine whether the applicant is financially qualified to construct, own, and operate the proposed station.

5. To determine whether the applicant has misrepresented to the Commission facts concerning the applicant-partner Jackson's balance sheet, the proposed transmitter site, studio construction, or the availability of equipment.

*It is further ordered,* That the burden of proceeding and the burden of proof on issues 1, 2, 3, and 5, set out above are placed upon the joint protestants, Southland Broadcasting Company and New Laurel Radio Station Inc.; and that as to issue 4, such burden is placed upon American Southern Broadcasters.

Released: July 1, 1955.

FEDERAL COMMUNICATIONS COMMISSION,
[SEAL] MARY JANE MORRIS,
*Secretary.*

[F. R. Doc. 55-5512; Filed, July 7, 1955; 8:52 a. m.]

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[Docket No. 11271; FCC 55-725]

RADIO TIFTON (WTIF)

MEMORANDUM OPINION AND ORDER AMENDING ISSUES

In re application of Charlie H. Parish, Jr. and Charlie H. Parish, Sr., d/b as Radio Tifton (WTIF), Tifton, Georgia, Docket No. 11271, File No. BP-9415; for construction permit.

1. The Commission has before it for consideration the following pleadings: (a) "Brief in Support of Request to Designate Issues for Evidentiary Hearing," filed March 15, 1955 by Tifton Broadcasting Corporation (herein called WWGS); (b) "Proposed Findings of Fact and Conclusions of Law," filed March 16, 1955 by Charlie H. Parish, Jr., and Charlie H. Parish, Sr., d/b as Radio Tifton (herein called WTIF); and (c) a petition for reconsideration, filed on March 18, 1955, by WWGS. Some brief background remarks are believed desirable.

2. This proceeding arose from a protest filed February 14, 1955 by WWGS (1340 kc, 250 w, unlimited time, Tifton, Georgia), protesting the Commission's action of December 15, 1954, granting without hearing the WTIF application for a new daytime-only AM station to operate on 1570 kc, with power of 1 kw, at Tifton, Georgia. In its protest, WWGS alleged, on the basis of an attached economic study, that the community of Tifton could not support a second station; that if it was not reasonably probable that the market could adequately support such a second station without the occurrence of either (i) inadequate revenue to the second station and its resultant failure; or (ii) the failure of both the existing and the second station; or (iii) the consequent rendering by both of an inadequate program service, then the Commission could not properly conclude that the grant of the application would serve the public interest; and that the protestant had a right, under section 309 (c) of the Communications Act of 1934, as amended, to a hearing to explain and expand its economic data. WWGS also requested three other issues: whether WTIF's programming is designed to serve the needs of the Tifton areas; whether the applicant had made a full disclosure to the Commission concerning its intention to build a station at Tifton; and whether, in the light of alleged misrepresentations made in the balance sheet of Charlie H. Parish, Sr., WTIF is financially qualified to construct and operate its proposed station. Of these last named issues, the Commission granted the first two, and denied the last. It is of this denial that WWGS now seeks reconsideration (see par. 5, infra).

3. As to the "economic injury" issues, the Commission, in line with the action taken in the similar Laurel, Mississippi protest case (In re Application of American Southern Broadcasters, 11 RR 1054), decided to afford the protestant an oral argument on the legal and policy questions raised by these issues. That argument was held February 28, 1955. In accordance with the opportunity provided by the Commission's Memorandum Opinion and Order, both parties filed pleadings, within 15 days after the oral argument, directed to the action which they desired the Commission to take as a result of that argument. WWGS filed a brief in support of its request to designate the "economic injury" issues for evidentiary hearing. WTIF filed a document entitled "Proposed Findings of Fact and Conclusions of Law," in which it stated that while it did not concede protestant's claimed right to an evidentiary hearing on such issues, it interposed no objection to the inclusion of these issues in the hearing to be held on the protest, providing that the burden of proceeding with the introduction of evidence and the burden of proof with respect to such issues was placed upon the protestant.

4. In view of our action here, we need not set out in detail the matters or argument advanced in these pleadings. We have determined that resolution of the legal and policy questions raised by the "economic injury" issues can best or most appropriately be made after the factual evidence pertinent to such issues has been adduced in the hearing. We have therefore decided to set the WTIF application for evidentiary hearing on the "economic injury" issues, with the determination of the legal and policy issues raised by these issues to be made, if such a determination is called for after the receipt of the factual evidence, initially by the Examiner in his Initial Decision and subsequently upon review by this Commission. See WJR, The Goodwill Station, Inc., FCC 55-651 (Mimeo 19795). The burden as to these "economic injury" issues shall be on the protestant.

5. As noted in paragraph 2, the Commission refused to designate the WTIF application for hearing on the following issue: "To determine whether misrepre-

sentations have been made to the Commission concerning the finances of the applicant and Charlie H. Parish, Sr., and whether, in the light of these facts, and the unavailability of potential advertising in Tifton, Georgia, the applicant is financially qualified to construct and operate a radio station." We have determined, upon reconsideration, that the inclusion of the requested issue is appropriate since it has not been shown to be a frivolous or sham one. Accordingly, evidence will also be received at the hearing on the following issue: "To determine whether misrepresentations have been made to the Commission concerning the finances of the applicant and Charlie H. Parish, Sr., and whether, in the light of these facts, and the showing made with respect to potential advertising in Tifton, Georgia, the applicant is financially qualified to construct and operate a radio station." The burden as to this issue is again placed on protestant.

6. In view of the foregoing, *It is ordered*, This 29th day of June 1955, that the evidentiary hearing to be held in this proceeding in Washington, D. C., at a time to be specified by a further order, shall, in addition to the issues 4 and 5 set out on page 6 of the Commission's Memorandum Opinion and Order of February 10, 1955 (FCC 55–160, Mimeo 15725), include the following issues:

1. To determine whether the Tifton market area will provide sufficient revenues to the proposed station to enable it to adequately operate in the public interest.

2. To determine whether, because of the lack of advertising potential in the Tifton market competition between the existing station and the proposed station may force one or both to fail for lack of financial support, with the result that the public of Tifton will be without a local radio outlet.

3. To determine whether the advertising potential of the Tifton market is so inadequate, that the operation of a second station may cause either or both stations to render an inadequate service to the people of Tifton.

6. To determine whether misrepresentations have been made to the Commission concerning the finances of the applicant and Charlie H. Parish, Sr., and whether, in the light of these facts, and the showing made with respect to potential advertising in Tifton, Georgia, the applicant is financially qualified to construct and operate a radio station.

*It is further ordered*, That the burden of proceeding and the burden of proof on issues 1, 2, 3 and 6 are placed upon Tifton Broadcasting Corporation.

Released: July 5, 1955.

FEDERAL COMMUNICATIONS COMMISSION,
[SEAL] MARY JANE MORRIS,
*Secretary.*

[F. R. Doc. 55–5513; Filed, July 7, 1955; 8:52 a. m.]

[Docket No. 11273; FCC 55M–597]

E. WEAKS MCKINNEY-SMITH

ORDER CONTINUING HEARING

In re application of E. Weaks McKinney-Smith, Paducah, Kentucky, Docket No. 11273, File No. BP–9268; for construction permit.

Pursuant to the discussion at the further conference today, *It is ordered*, This 1st day of July 1955, that the hearing now scheduled for July 6, 1955, is continued to July 12, 1955, at 10:00 a. m., in the offices of the Commission, Washington, D. C.

FEDERAL COMMUNICATIONS COMMISSION,
[SEAL] MARY JANE MORRIS,
*Secretary.*

[F. R. Doc. 55–5514; Filed, July 7, 1955; 8:52 a. m.]

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[Docket Nos. 11276 to 11278; FCC 55M–595]

RADIO SUBURBIA, INC., ET AL.

In re applications of Edward Schons & William E. Schons d/b as Radio Suburbia, Inc., Hopkins-Edina-St. Louis Park, Minn., Docket No. 11276, File No. BP–9405; Suburban Broadcasting Corporation, Hopkins-St. Louis Park-Edina, Minn., Docket No. 11277, File No. BP–9467; The Northeast Iowa Radio Corporation (KOEL), Olewoin, Iowa, Docket No. 11278, File No. BP–9498; for construction permits.

*Appearances.* Samuel Miller, on behalf of Radio Suburbia, Inc.; Edward P. Morgan, on behalf of Suburban Broadcasting Corporation; Eugene L. Burke and Doris R. Williamson, on behalf of Northeast Iowa Radio Corporation (KOEL); L. P. B. Emerson, on behalf of Town & Farm Company, Inc.; and Jerome S. Boros, on behalf of the Chief, Broadcast Bureau, Federal Communications Commission.

*Order governing hearing (July 1, 1955).* 1. The pre-hearing conference pursuant to provisions of § 1.813 of the Commission's Rules was held June 23, 1955. Counsel present were as indicated in the appearances above. No counsel appeared on behalf of Peoples Broadcasting Company, licensee of Station WPBC, Minneapolis, Minnesota. The appearance of Mr. Emerson on behalf of Town & Farm Company, Inc. (KIOA), was in the nature of a "friend of the court" and not as a party participant.

2. The application of Edward Schons & William E. Schons, d/b as Radio Suburbia, Inc., hereinafter sometimes referred to as Radio Suburbia, and the application of Suburban Broadcasting Corporation, hereinafter sometimes referred to as Suburban, are mutually exclusive. Neither application, however, is mutually exclusive with the operation proposed by Northeast Iowa Radio Corporation (KOEL), hereinafter sometimes referred to as Northeast Iowa. The engineers are in agreement that the interference which would result from the simultaneous operation of either of the proposed Hopkins-Edina-St. Louis Park, Minnesota, stations and Station KOEL at Oelwein, Iowa, would be of a very minor degree and from an engineering point of view, there is no reason why the Northeast Iowa application (KOEL) could not be granted without a hearing.

3. The purpose of the appearance of counsel for Town & Farm Company, Inc. (KIOA) was to invite to the attention of the Commission the possibility of interference within the service area of KIOA, Des Moines, Iowa, if the radiation from KOEL, operating as proposed, exceeded certain values in the direction of Station KIOA and to request the Commission to place a condition in the KOEL construction permit that the radiation not exceed those values. Northeast Iowa (KOEL) is willing to accept the construction permit with such conditions.

4. The only exhibits which Northeast Iowa need introduce at the hearing in response to the issues as drawn are those in response to the engineering issues. Issue No. 6, the comparative issue, is not applicable to Northeast Iowa for the reason that Northeast Iowa is the only one of the three applicants in the hearing proposes to serve the Oelwein, Iowa, area and the Commission has already found Northeast Iowa Radio Corporation (KOEL) to be legally, financially and otherwise qualified to operate Station KOEL as proposed.

5. The engineering exhibits to be submitted by or on behalf of all parties in response to the pertinent engineering issues will be exchanged on or before July 15, 1955.

6. Radio Suburbia and Suburban will exchange the lay exhibits on or before July 15, 1955. The lay exhibits may show (a) the corporate organization; (b) the biographies of the principals, with particular reference to their participation in civic affairs, broadcast experience, and anticipated participation in the operation of the proposed station; (c) the local programming proposed; (d) the staff; (e) the studio locations; (f) the areas and population to be served; and (g) the concentration, if any, of media for the mass dissemination of news and information which might result as a grant to one of the applicants.

7. The exhibit setting forth the programming proposals will describe the programs. Where the program involves the contemplated assistance of local people and organizations, the exhibit will show the organization or persons contacted and the date of such contact.

8. The location and size of the main and auxiliary studios, the size of the staff and the type of equipment proposed are not comparative issues.

9. All exhibits will be exchanged on or before July 15, 1955. The hearing on the engineering phases of this proceeding will begin on July 15, 1955. On the same day, all lay exhibits will be exchanged. As soon as possible after the lay exhibits are exchanged, counsel will advise opposing counsel of the name of witnesses desired for cross-examina-

tion and the purpose for such cross-examination. It is presently contemplated that the cross-examination of the lay witnesses will begin Monday, July 25, 1955.

*It is ordered,* This the 1st day of July 1955, that the hearing presently scheduled to begin July 8, 1955, is continued to July 15, 1955, and that the hearing proceed in accordance with the foregoing.

Released: July 5, 1955.

FEDERAL COMMUNICATIONS COMMISSION,
[SEAL] MARY JANE MORRIS,
*Secretary.*

[F. R. Doc. 55-5515; Filed, July 7, 1955; 8:52 a. m.]

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[Docket No. 11360; FCC 55M-590]

MOUNTAIN STATE BROADCASTING CO., INC.

ORDER CONTINUING HEARING

In re application of Mountain State Broadcasting Co., Inc., Morgantown, West Virginia, Docket No. 11360, File No. BP-9471; for construction permit.

A further prehearing conference herein having been held June 30, 1955, and counsel for applicant having announced his intention of filing a petition to dismiss the application herein and counsel for all parties having requested that the hearing herein now scheduled for July 15, 1955, be continued indefinitely;

*It is ordered,* This 1st day of July 1955, that the hearing now scheduled for July 15, 1955, is continued to a date to be scheduled by the Hearing Examiner in a later order.

FEDERAL COMMUNICATIONS COMMISSION,
[SEAL] MARY JANE MORRIS,
*Secretary.*

[F. R. Doc. 55-5516; Filed, July 7, 1955; 8:53 a. m.]

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[Docket No. 11310; FCC 55M-599]

NORTHERN CORPORATION (WMEX)

POSTPONEMENT OF PRE-HEARING CONFERENCE

In re application of The Northern Corporation (WMEX), Boston, Massachusetts, Docket No. 11310, File No. BR-833; for renewal of license.

Notice is hereby given that an informal prehearing conference in the above-entitled proceeding, which was previously scheduled to be held on Thursday, July 7, 1955, is postponed until 10:00 o'clock a. m., on Tuesday, July 12, 1955, in the offices of this Commission, Washington, D. C.

Dated: July 1, 1955.

FEDERAL COMMUNICATIONS COMMISSION,
[SEAL] MARY JANE MORRIS,
*Secretary.*

[F. R. Doc. 55-5517; Filed, July 7, 1955; 8:53 a. m.]

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[Docket No. 11413; FCC 55-738]

SOUTHWESTERN BELL TELEPHONE CO.

ORDER DESIGNATING APPLICATION FOR HEARING ON STATED ISSUES

In the matter of the application of Southwestern Bell Telephone Company, Docket No. 11413, File No. P-C-3551; for a certificate under section 221 (a) of the Communications Act of 1934, as amended, to acquire certain telephone plant and properties of General Telephone Company of the Southwest in Oklahoma.

At a session of the Federal Communications Commission held at its offices in Washington, D. C., on the 29th day of June 1955;

The Commission having under consideration an application filed by Southwestern Bell Telephone Company for a certificate under section 221 (a) of the Communications Act of 1934, as amended, that the proposed acquisition by Southwestern Bell Telephone Company of certain telephone plant and properties of General Telephone Company of the Southwest furnishing telephone service in and around the cities of Billings, Marland, Morrison, Red Rock, Glencoe, Perkins, Ripley, Yale, Coyle, Mulhall, Carney, and Langston, all in the State of Oklahoma, will be of advantage to the persons to whom service is to be rendered and in the public interest;

*It is ordered,* That pursuant to the provisions of section 221 (a) of the Communications Act of 1934, as amended, the above application is designated for hearing for the purpose of determining whether the proposed acquisition will be of advantage to the persons to whom service is to be rendered and in the public interest;

*It is further ordered,* That the hearing upon said application be held at the offices of the Commission in Washington, D. C., beginning at 10:00 a. m. on the 20th day of July 1955, and that a copy of this order shall be served upon Southwestern Bell Telephone Company, General Telephone Company of the Southwest, The Governor of the State of Oklahoma, Oklahoma Corporation Commission, and the Postmasters of Billings, Ripley, Marland, Yale, Morrison, Coyle, Red Rock, Mulhall, Glencoe, Carney, Perkins, and Langston.

*It is further ordered,* That within 10 days after the receipt from the Commission of a copy of this order, the applicant herein shall cause a copy hereof to be published in a newspaper or newspapers having general circulation in and around the cities of Billings, Marland, Morrison, Red Rock, Glencoe, Perkins, Ripley, Yale, Coyle, Mulhall, Carney and Langston, all in the State of Oklahoma, and shall furnish proof of such publication at the hearing herein.

*It is further ordered,* That the Oklahoma Corporation Commission is hereby granted leave to intervene in the above-entitled proceeding.

Released: July 1, 1955.

FEDERAL COMMUNICATIONS COMMISSION,
[SEAL] MARY JANE MORRIS,
*Secretary.*

[F. R. Doc. 55-5518; Filed, July 7, 1955; 8:53 a. m.]

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[Docket No. 11414; FCC 55-732]

BASIN TV CO. (KBAS-TV)

MEMORANDUM OPINION AND ORDER

In re application of Basin TV Company, Ephrata, Washington (KBAS-TV), Docket No. 11414, File No. BPCT-1977; for construction permit.

1. The Commission has before it for consideration a protest filed by KSEM, Inc., licensee of radio station KSEM, Moses Lake, Washington (1450 kc, 250 w, Unl.), pursuant to section 309 (c) of the Communications Act of 1934, as amended, protesting the Commission's action of May 4, 1955, granting without hearing the above-entitled application of Basin TV Company for a new television broadcast station to operate on Channel 43 at Ephrata, Washington; and a reply to such protest filed by Basin TV on June 13, 1955. The protestant filed a response to the opposition on June 15, 1955. Basin TV, in its application, proposed to operate the Ephrata television station as a "satellite" of the Yakima, Washington, television station KIMA-TV, i. e., to rebroadcast all of the programs of that station with no local programming, pursuant to the policy regarding satellite operation announced by the Commission in its Public Notice, dated August 5, 1954.

2. KSEM, Inc., claims standing as a "party in interest" under section 309 (c) of the Communications Act of 1934, as amended, by virtue of its status as licensee of radio station KSEM in Moses Lake, Washington, which is located approximately 18 miles from Ephrata. KSEM alleges that Basin's proposed operation on Channel 43 at Ephrata will provide a Grade A signal to the outskirts of Moses Lake and a Grade B signal to all of Moses Lake and several miles beyond; that Basin's proposed television station and KSEM will "in large part" serve the same areas; that the two stations will be in direct competition with each other for advertising revenues and for listening and viewing audience; and that, consequently, KSEM will suffer economic injury within the meaning of the Sanders case [1] and is a "party in interest" under section 309 (c) of the act.

3. In support of its protest, KSEM alleges, in substance, that Basin TV is the wholly owned subsidiary of Cascade Broadcasting Co., permittee of KIMA-TV, Channel 29, Yakima, Washington, and KEPR-TV, Channel 19, Pasco, Washington, a "satellite" of KIMA-TV;

[1] F. C. C. v. Sanders Brothers Radio Station, 309 U. S. 407 (9 Pike & Fischer RR 2008).

that Cascade, through another subsidiary, Lewiston TV Company, is permittee of a fourth television station, KLEW–TV, Channel 3, in Lewiston, Idaho; that these stations will serve contiguous areas in southern, eastern and north-central Washington and central Idaho; that the competitive advantages of such multiple ownership together with satellite operation proposed by Basin TV are such that the chances of establishing a local television service in competition with such an operation are rendered much more difficult, if not impossible; that this is particularly true if the existence of the UHF satellite is used as a reason for not assigning a VHF channel to the area;[2] and that the subject application raises questions as to whether it is in the public interest to grant a UHF satellite operation in an area where nearly all of the existing sets are VHF only, where such grant may foreclose the assignment of an available VHF channel to the area, and where the satellite operation may preclude the area from having a local television service. The protestant requests that, pursuant to the provisions of section 309 (c) of the Communications Act, the Commission designate the above-entitled application for hearing, on the issues specified in its protest, together with such other issues as the Commission deems appropriate, to make the protestant a party to the proceeding, and to postpone the effective date of the Commission's action to the effective date of the Commission's decision after hearing.

4. In reply to the above protest, Basin TV argues that KSEM has pleaded no facts showing it to be a party in interest under section 309 (c), and that it has failed to set forth particular "facts, matters and things relied upon" in support of its protest as required by section 309 (c) of the act. Basin TV urges, therefore, that the protest should be denied, but requests that if the Commission grants the protest it should include in the order of hearing additional issues for the purpose of eliciting evidence on the gross annual revenue of standard broadcase station KSEM, the programming policies of KSEM, the basic economic data of the Moses Lake trading area, and the potential advertising revenue available in that area.

5. In light of the fact that the protestant is licensee of standard broadcast station KSEM in Moses Lake, Washington; that the grant protested herein establishes a television broadcast station in Ephrata, Washington, which will provide either a Grade A or Grade B signal to Moses Lake and the surrounding area, in competition with protestant's existing and operating AM station; and that the protestant has alleged that it will suffer economic injury as a result of the grants complained of, we find that KSEM, Inc. is a "party in interest" within the meaning of section 309 (c) of the Communications Act. F. C. C. v. Sanders Brothers Radio Station, supra; Versluis Radio and Television, Inc., 9 Pike & Fischer RR 102; T. E. Allen and Sons, 9 Pike & Fischer RR 197.

6. The Commission finds further that the protestant has specified with particularity the facts, matters and things relied upon as required by section 309 (c) of the act to warrant designation of the above-entitled application for hearing on the issues specified by it. We must point out, however, that the designation of the issues specified by the protestant, to the extent such issues seek a finding as to the competitive effect of a grant upon the establishment of a hypothetical local television station in the Moses Lake area at some future date, does not constitute a determination at this time that the competitive effect of a grant upon such a hypothetical station is a relevant consideration. This question will be determined in the hearing.

7. In addition to the issues specified by the protestant, the Commission believes that the allegations contained in the protest warrant the inclusion of an additional issue, as follows:

To determine whether the grant of the above-entitled application is consistent with the provisions of § 3.636 of the Commission's rules and regulations and the policies promulgated thereunder.

Inasmuch as the above issue is based upon matters alleged in the protest the burden of proof as to the issue will be upon the protestant.

8. As noted above, the applicant, in its reply to the protest, requested that in the event the Commission granted the protest, it include four issues with reference to the protestant's radio operation and the economic potential of the Moses Lake area. These requested issues are clearly not pertinent to a determination of the merits of the instant protest, nor are they relevant to reconsideration of our action granting the subject application. Accordingly, we are not designating for hearing the issues requested by the applicant.

9. In view of the foregoing: *It is ordered*, That, effective immediately, the effective date of the grant of the above-entitled application is postponed pending a final determination by the Commission with respect to the protest of KSEM, Inc.; and that, pursuant to section 309 (c) of the Communications Act of 1934, as amended, the above-entitled application for construction permit is designated for hearing at the offices of the Commission in Washington, D. C., on the following issues:

(a) To determine whether the grant of the above-entitled application is consistent with the provisions of § 3.636 of the Commission's rules and regulations and the policies promulgated thereunder.

(b) To determine whether the grant of a satellite operation in Ephrata will render more difficult, if not preclude, the subsequent establishment of a local television station in the same general area, and whether a grant under such circumstances is in the public interest.

(c) To determine whether the grant of a satellite operation to a multiple television owner and operator serving contiguous areas will render more difficult, if not impossible, the subsequent establishment of a competitive local service in North Central Washington, and if so whether a grant under such circumstances is in the public interest.

(d) To determine whether the grant of a UHF satellite, in an area where existing sets are predominately VHF, is in the public interest, where Basin TV seeks to use the existence of that grant as a reason for not allocating a VHF channel to Moses Lake to serve an area which receives fringe and Grade B service from existing VHF stations in Spokane.

(e) To determine whether it is sound policy to authorize the expansion of holdings by a multiple-station owner where such action may foreclose the area from obtaining its own outlet for local expression.

The burden of proof as to each of the above issues shall be on the protestant.

*It is further ordered*, That the protestant and the Chief of the Broadcast Bureau are hereby made parties to the proceeding herein and that:

(a) The hearing on the above issues shall commence at 10:00 a. m. on July 18, 1955, before an Examiner to be specified by the Commission;

(b) The parties to the proceeding herein shall have fifteen (15) days after the issuance of the Examiner's decision to file exceptions thereto and seven (7) days thereafter to file replies to any such exceptions; and

(c) The appearances by the parties intending to participate in the above hearing shall be filed not later than July 11, 1955.

Adopted: June 29, 1955.

Released: July 5, 1955.

FEDERAL COMMUNICATIONS COMMISSION,
[SEAL] MARY JANE MORRIS,
*Secretary.*

[F. R. Doc. 55-5519; Filed, July 7, 1955; 8:53 a. m.]

[2] On February 11, 1955, KSEM, Inc., filed a petition requesting the assignment of VHF Channel 8 to Moses Lake. In response to a Notice of Proposed Rule Making (Docket No. 11369), issued by the Commission on April 21, 1955, as a result of the KSEM petition, Basin TV has filed comments opposing the assignment of Channel 8 to Moses Lake. This matter is currently pending before the Commission.

## FEDERAL POWER COMMISSION

[Docket No. G-8288]

SUN OIL CO.

NOTICE OF CONTINUANCE OF HEARING

JUNE 30, 1955.

Upon consideration of the motion filed June 23, 1955, by Sun Oil Company, for continuance of the hearing now scheduled for July 14, 1955, in the above-designated matter;

The hearing now scheduled for July 14, 1955, is hereby postponed to September 7, 1955, at 10:00 a. m., e. d. s. t., in the Commission's Hearing Room, 441 G Street NW., Washington, D. C.

[SEAL] LEON M. FUQUAY,
*Secretary.*

[F. R. Doc. 55-5487; Filed, July 7, 1955; 8:49 a. m.]

[Docket No. G-8488]

SOHIO PETROLEUM CO.

NOTICE OF CONTINUANCE OF HEARING

JUNE 30, 1955.

Upon consideration of the motion of Sohio Petroleum Company, filed June 21, 1955, for continuance of the hearing now scheduled for July 18, 1955, in the above-designated matter;

The hearing now scheduled for July 18, 1955, is hereby postponed to September 12, 1955, at 10:00 a. m., e. d. s. t., in the Commission's Hearing Room, 441 G Street NW., Washington, D. C.

[SEAL] LEON M. FUQUAY, *Secretary.*

[F. R. Doc. 55-5488; Filed, July 7, 1955; 8:49 a. m.]

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[Docket No. G-8518]

ORANGE GROVE OIL & GAS CO. AND H. J. MOSSER

NOTICE OF CONTINUANCE OF HEARING

JUNE 30, 1955.

Upon consideration of the motion of Orange Grove Oil & Gas Co. and H. J. Mosser, filed June 27, 1955, for continuance of the hearing now scheduled for July 13, 1955, in the above-designated matter;

The hearing now scheduled for July 13, 1955, is hereby postponed to September 19, 1955, at 10:00 a. m., e. d. s. t., in the Commission's Hearing Room, 441 G Street NW., Washington, D. C.

[SEAL] LEON M. FUQUAY, *Secretary.*

[F. R. Doc. 55-5489; Filed, July 7, 1955; 8:49 a. m.]

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[Docket No. G-8519]

ASSOCIATED OIL & GAS CO.

NOTICE OF CONTINUANCE OF HEARING

JUNE 30, 1955.

Upon consideration of the motion of Associated Oil & Gas Co., filed June 27, 1955, for continuance of the hearing now scheduled for July 11, 1955, in the above-designated matter;

The hearing now scheduled for July 11, 1955, is hereby postponed to September 14, 1955, at 10:00 a. m., e. d. s. t., in the Commission's Hearing Room, 441 G Street NW., Washington, D. C.

[SEAL] LEON M. FUQUAY, *Secretary.*

[F. R. Doc. 55-5490; Filed, July 7, 1955; 8:49 a. m.]

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[Docket No. G-8815]

BURK ROYALTY CO.

NOTICE OF APPLICATION AND DATE OF HEARING

JUNE 30, 1955.

Take notice that Burk Royalty Company (Applicant), whose address is 820 Oil & Gas Building, Wichita Falls, Texas, filed on April 28, 1955, an application for a certificate of public convenience and necessity pursuant to section 7 of the Natural Gas Act, authorizing Applicant to render service as hereinafter described, subject to the jurisdiction of the Commission, all as more fully represented in the application which is on file with the Commission and open for public inspection.

Applicant proposes to sell natural gas produced from the Shermon Field, Grayson County, Texas, to Lone Star Gas Company at 10 cents per Mcf, for transportation in interstate commerce for resale.

This matter is one that should be disposed of as promptly as possible under the applicable rules and regulations and to that end:

Take further notice that, pursuant to the authority contained in and subject to the jurisdiction conferred upon the Federal Power Commission by sections 7 and 15 of the Natural Gas Act, and the Commission's rules of practice and procedure, a hearing will be held on July 26, 1955, at 9:30 a. m., e. d. s. t., in a Hearing Room of the Federal Power Commission, 441 G Street NW., Washington, D. C., concerning the matters involved in and the issues presented by such application: *Provided, however,* That the Commission may, after a non-contested hearing, dispose of the proceedings pursuant to the provisions of § 1.30 (c) (1) or (2) of the Commission's rules of practice and procedure.

Protests or petitions to intervene may be filed with the Federal Power Commission, Washington 25, D. C., in accordance with the rules of practice and procedure (18 CFR 1.8 or 1.10) on or before July 19, 1955. Failure of any party to appear at and participate in the hearing shall be construed as waiver of and concurrence in omission herein of the intermediate decision procedure in cases where a request therefor is made.

[SEAL] LEON M. FUQUAY, *Secretary.*

[F. R. Doc. 55-5491; Filed, July 7, 1955; 8:49 a. m.]

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[Docket No. G-2506]

PANHANDLE EASTERN PIPE LINE CO.

ORDER FIXING DATE OF HEARING AND SPECIFYING PROCEDURE

On December 13, 1954, the Commission issued an order granting in part and denying in part motions for the dismissal of Panhandle Eastern Pipe Line Company's (Panhandle) increase in rates proposed at this docket. Said order further provided that Panhandle should be permitted to file substitute tariff sheets reflecting the exclusion of the matters dismissed by the December 13, 1954, order.

Substitute tariff sheets, together with certain revised tariff sheets, respecting Panhandle's interruptible rate schedules, were filed on December 30, 1954. By order issued January 28, 1955, the Commission provided for a hearing to be held in these proceedings at a date and place to be subsequently fixed.

The Commission finds:

(1) The public hearing in this proceeding should be held at the time and place hereinafter designated.

(2) It is necessary and appropriate to carry out the provisions of the Natural Gas Act, and it is in the public interest that the procedure hereinafter prescribed shall be followed at the hearing in order to conduct this proceeding with reasonable dispatch.

The Commission orders:

(A) A public hearing be held commencing on July 26, 1955, at 10:00 a. m. in a Hearing Room of the Federal Power Commission, 441 G Street NW., Washington, D. C., concerning the matters provided by the Commission's order issued January 28, 1955.

(B) At the hearing Panhandle shall go forward first and shall present its case upon which it bases the filing of the substitute and revised tariff sheets referred to in our order issued January 28, 1955. Upon the completion of such presentation, Panhandle's witnesses shall be cross-examined. Other parties to the proceedings shall then present evidence and shall be cross-examined thereon. The Presiding Examiner shall provide for recess at an appropriate stage of the proceedings consistent with the Commission's announced policy for the suspension of hearings during the period August 1 through September 5, 1955.

Adopted: June 29, 1955.

Issued: June 30, 1955.

By the Commission.

[SEAL] LEON M. FUQUAY, *Secretary.*

[F. R. Doc. 55-5492; Filed, July 7, 1955; 8:50 a. m.]

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[Docket No. G-9086]

COTTON VALLEY OPERATORS COMMITTEE

ORDER TO SHOW CAUSE

Cotton Valley Operators Committee (Respondent) is an organization which was formed on or about April 20, 1940, by the terms of an unitization agreement of certain corporate and individual gas producers in the Cotton Valley Field, Webster Parish, Louisiana, to undertake the production and delivery of gas and collection of revenues from the sale of natural gas to various buyers, one of which is Louisiana Nevada Transit Company (Louisiana Nevada), a natural gas company, as defined by the Natural Gas Act, which transports said gas in interstate commerce for ultimate public consumption.

By the terms of the aforesaid unitization agreement by several of the separate producer units in the Cotton Valley Field, Louisiana, the said producers agreed that ". . . it is their intention to create the relationship of principal and agent between each of the Operators (the gas producers) and the Operators Committee." (Parentheses added.)

After the organization of the Committee, a natural gas sales contract was executed with Louisiana Nevada on or about October 26, 1940, as amended on May 10, 1942, and on May 27, 1949, by

the terms of which the Committee, as agent for all operators, (i. e., gas producers) and Royalty Owners, agreed to sell and deliver to Louisiana Nevada specified quantities of natural gas and said Louisiana Nevada agreed to purchase natural gas from and to make payment therefor to said Committee.

Notwithstanding the terms and provisions of the aforesaid sales contract and unitization agreement, and notwithstanding the terms and provisions of the Natural Gas Act, and the regulations issued thereunder, which require the filing of a rate schedule for the sales of all gas made herein to Louisiana Nevada, the Committee has failed and neglected to submit to and file with the Federal Power Commission its contracts or rate schedules for sales and deliveries of gas presently being made to Louisiana Nevada, nor has said Committee made application to the Federal Power Commission for a certificate of public convenience and necessity to authorize said sales.

The Commission finds:

It is appropriate and in the public interest, and necessary to the proper administration of the Natural Gas Act, that the Respondent herein named be required to show cause, if any there be, why Cotton Valley Operators Committee should not forthwith file as a rate schedule as well as file an application for a certificate of public convenience and necessity upon the basis of the contract executed by Cotton Valley Operators Committee as agent or seller of natural gas from Cotton Valley Field, Webster Parish, Louisiana, to Louisiana Nevada Transit Company, which transports said gas in interstate commerce for ultimate public consumption.

The Commission orders:

(A) Pursuant to the authority conferred upon the Federal Power Commission by the Natural Gas Act, including particularly sections 4, 5, 7, 14, 15, and 16, Cotton Valley Operators Committee shall show cause, if any there be, at a public hearing, which is hereby provided to be held commencing July 29, 1955, at 10:00 a. m., e. d. s. t., in a Hearing Room of the Federal Power Commission, 441 G Street NW., Washington, D. C., why the said Cotton Valley Operators Committee should not submit and file its contract for the sale of natural gas to Louisiana Nevada Transit Company in interstate commerce for ultimate public consumption, as a rate schedule in compliance with the Natural Gas Act, and why Cotton Valley Operators Committee should not file application with the Federal Power Commission for a certificate of public convenience and necessity authorizing said sale of natural gas to said Louisiana Nevada Transit Company.

(B) Interested State commissions may participate as provided by §§ 1.8 and 1.37 (f) of the Commission's rules of practice and procedure (18 CFR 1.8 and 1.37 (f)).

Adopted: June 29, 1955.

Issued: June 30, 1955.

By the Commission.

[SEAL] LEON M. FUQUAY, *Secretary.*

[F. R. Doc. 55-5493; Filed, July 7, 1955; 8:50 a. m.]

[Docket Nos. G-4653, G-4907, G-5144, G-5619, G-6872, G-8064, G-8118, G-8732]

B. J. CROWLEY ET AL.

NOTICE OF FINDINGS AND ORDERS

JUNE 30, 1955.

In the matters of B. J. Crowley, Docket No. G-4653; Dorchester Corporation, Docket No. G-4907; H. S. Cole, Jr., et al., Docket No. G-5144; Louisiana Nevada Transit Company, Docket No. G-5619; Arkansas Fuel Oil Corporation, Docket No. G-6872; Clark Dale Drilling Company, Docket No. G-8064; Coronet Oil Company, Docket No. G-8118; C. N. Johnston et al., Docket No. G-8732.

Notice is hereby given that on June 27, 1955, the Federal Power Commission issued its findings and orders adopted June 22, 1955, issuing certificates of public convenience and necessity in the above-entitled matters.

[SEAL] LEON M. FUQUAY, *Secretary.*

[F. R. Doc. 55-5494; Filed, July 7, 1955; 8:50 a. m.]

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[Docket Nos. G-2668 and G-6190; G-3944; G-5930; G-5931, G-6052, G-6055, and G-6873; G-6310; G-6710; G-6826; G-6935; G-7299; G-7313; G-7392; G-8120; G-8153; G-8326; G-8456; G-8462; G-8468; G-8469; G-8552; G-8593; G-8653]

ARKANSAS FUEL OIL CORP. ET AL.

NOTICE OF FINDINGS AND ORDERS

JUNE 30, 1955.

In the matters of Arkansas Fuel Oil Corporation, Docket Nos. G-2668 and G-6190; Spartan Well Service, Docket No. G-3944; Morgan & Norton, Docket No. G-5930; Sunray Oil Corporation, Docket Nos. G-5931, G-6052, G-6055 and G-6873; Edwin Neilsen, et al., Docket No. G-6310; L. B. Porter, Docket No. G-6710; Scurlock Oil Company, Docket No. G-6826; Tom McGlothlin, Docket No. G-6935; Charles F. Buckwalter, Docket No. G-7299; Crow Drilling Company, Inc., Docket No. G-7313; Seaboard Oil Company, Docket No. G-7392; Deposit Guaranty Bank & Trust Company, Trustee for Charles Hooper and Doris R. Hooper, Docket No. G-8120; W. C. Feazel, et al., Docket No. G-8153; Stanolind Oil and Gas Company, Docket No. G-8326; Dick D. Quin, Docket No. G-8456; George D. Hunt, et al., Docket No. G-8462; S. J. Hooper, Docket No. G-8468; Katharine Damare, Docket No. G-8469; Clyde H. Alexander, et al., Docket No. G-8552; Douglas Whitaker, Docket No. G-8593; R. H. Boteler, Docket No. G-8653.

Notice is hereby given that on June 27, 1955, the Federal Power Commission issued its findings and order adopted June 22, 1955, issuing certificates of public convenience and necessity in the above-entitled matters.

[SEAL] LEON M. FUQUAY, *Secretary.*

[F. R. Doc. 55-5495; Filed, July 7, 1955; 8:50 a. m.]

## SECURITIES AND EXCHANGE COMMISSION

[File No. 70-3369]

COLUMBIA GAS SYSTEM, INC., ET AL.

ORDER AUTHORIZING SALE OF INSTALLMENT NOTES BY TWO SUBSIDIARIES AND ACQUISITION THEREOF BY PARENT AND OPEN ACCOUNT ADVANCES BY PARENT TO ONE OF SUCH SUBSIDIARIES

JULY 1, 1955.

In the matter of The Columbia Gas System, Inc., United Fuel Gas Company, and Amere Gas Utilities Company et al., File No. 70-3369.

The Columbia Gas System, Inc. ("Columbia"), a registered holding company, and certain of its wholly-owned subsidiaries, including United Fuel Gas Company ("United Fuel") and Amere Gas Utilities Company ("Amere"), have filed a joint application-declaration and amendments thereto pursuant to sections 6 (b), 10, 12 (b) and 12 (f) of the Public Utility Holding Company Act of 1935 ("act") and Rules U-43 and U-45 thereunder, including therein, among others, the following proposed transactions:

United Fuel will issue and sell, and Columbia will purchase, at the principal amount thereof from time to time as required prior to March 31, 1956, not to exceed $5,900,000 principal amount of United Fuel's Installment Promissory Notes; and

Amere will issue and sell, and Columbia will purchase, at the principal amount thereof from time to time as required prior to March 31, 1956, not to exceed $300,000 principal amount of Amere's Installment Promissory Notes.

All of the aforesaid notes will mature in equal annual installments on February 15 of the years 1957 through 1981; and they will bear interest at the rate of 3 percent per annum, payable semi-annually, subject to adjustment, as of the date of Columbia's next issue of debentures under the Indenture dated as of June 1, 1950 between Columbia and Guaranty Trust Company of New York, Trustee, to an interest rate equal to the coupon rate which will be borne by said debentures. The proceeds to be received by United Fuel and Amere from the sale of said notes will be used by them to finance capital expenditures incurred or to be incurred in their current construction programs.

Columbia further proposes to advance to United Fuel on open account, from time to time during 1955, amounts up to $10,000,000 in the aggregate, for the purchase of current inventory gas for storage; such advances to be repaid in three equal installments on February 25, March 25, and April 25, 1956, and to bear interest at the rate of 3 percent per annum.

All of the said transactions have been authorized by the Public Service Commission of West Virginia, in which State both United Fuel and Amere are organized and doing business.

Other transactions proposed in said joint application-declaration have heretofore been authorized by orders of this Commission entered herein on May 12, June 17, and June 24, 1955. Still other

transactions proposed therein await authorizations from various state commissions.

Due notice having been given of the filing of said joint application-declaration, and a hearing not having been requested of or ordered by the Commission; and the Commission finding, with respect to the transactions specifically described herein, that the applicable provisions of the Act and the Rules promulgated thereunder are satisfied and that no adverse findings are necessary, and deeming it appropriate in the public interest and in the interest of investors and consumers that the joint application-declaration, as amended, be granted and permitted to become effective forthwith, to the extent of such proposed transactions:

*It is ordered,* Pursuant to Rule U-23 and the applicable provisions of the act, that said joint application-declaration, as amended, with respect to the transactions specifically described above be, and hereby is, granted and permitted to become effective forthwith, subject to the conditions prescribed in Rule U-24.

*It is further ordered,* That jurisdiction be, and hereby is, continued with respect to the remaining transactions proposed in said joint application-declaration, as amended.

By the Commission.

[SEAL] ORVAL L. DUBOIS, *Secretary.*

[F. R. Doc. 55-5496; Filed, July 7, 1955; 8:50 a. m.]

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[File Nos. 812-938, 812-939]

AMERICAN TELEPHONE AND TELEGRAPH CO. AND GENERAL ELECTRIC CO.

NOTICE OF FILING OF APPLICATIONS FOR EXEMPTIONS FROM THE MINIMUM CAPITAL REQUIREMENT

JULY 1, 1955.

In the matter of The Quinby Plan for Accumulation of Common Stock of American Telephone and Telegraph Company, File No. 812-939; The Quinby Plan for Accumulation of Common Stock of General Electric Company, File No. 812-938.

Notice is hereby given that Quinby & Co., Incorporated ("Quinby"), of Rochester, New York, the principal underwriter for and depositor of The Quinby Plan for Accumulation of Common Stock of American Telephone and Telegraph Company, and of The Quinby Plan for Accumulation of Common Stock of General Electric Company, each of which is a unit investment trust registered as such under the act, has filed an application pursuant to section 6 (c) of the act for an order of the Commission exempting each of such plans from the requirements of section 14 (a) of the act.

Each of the aforementioned plans is designed to provide for investment and dividend reinvestment over a period of years in the Common Stock of American Telephone and Telegraph Company in the case of one plan and of General Electric Company in the case of the other plan. Each plan is organized under an agreement between Quinby and a custodian, The Lincoln Rochester Trust Company ("Custodian"), of Rochester, New York. Under the Custodian's agreement with Quinby, the Custodian agrees to perform certain services for specified fees.

An investor may open an account by executing an order under either plan, and by indicating the amount he plans to invest and by arranging payment to the Custodian. Upon receipt of each payment the Custodian will deduct therefrom a custody fee which it will retain and a sales fee which will be paid to Quinby; the balance is to be invested in the common stock to be accumulated. A relatively large proportion of the total sales fee involved is deducted from the earlier payments. The shares of stock acquired will be issued to and held in the name of the Custodian's nominee. Instead of issuing the stock to each investor, the Custodian is to maintain at all times ledger records showing the exact condition of each account until the termination of the investor's account. Each investor may withdraw the stock credited to his account or terminate his account at any time.

The foregoing plans have not been the subject of a public offering; and neither plan has ever had or now has any net worth.

Section 14 (a) of the act provides that no registered investment company, and no principal underwriter for such a company, shall make a public offering of securities of such company unless such company has a net worth of $100,000; (2) such company at the time of a previous public offering had such a net worth; or (3) provision is made as a condition to the registration of its securities under the Securities Act of 1933 which insures that such company will receive from not more than 25 persons, and within 90 days of the effectiveness of its registration, sufficient funds which, added to its then net worth, will equal $100,000 before subscriptions may be accepted from other persons.

Quinby states that it is now the depositor and sponsor of four other plans which are similar to the ones which are the subject of this application except that each of such four other plans provide, respectively, for the accumulation of common stock of Eastman Kodak Company, E. I. du Pont de Nemours & Company, General Motors Corporation, and Standard Oil Company (New Jersey). The application further states that the aggregate net worth of the four other plans at April 30, 1955, exceeds $10,000,000; that Quinby & Co., Incorporated, or its predecessor proprietorship, Quinby & Co., has been engaged in the business of sponsoring plans of this type since 1938; and that in view of the foregoing no additional protection for investors would be provided under the requirements of section 14 (a).

Notice is further given that any interested person may, not later than July 18, 1955, at 5:30 p. m., submit to the Commission in writing any facts bearing upon the desirability of a hearing on the matter and may request that a hearing be held, such request stating the nature of his interest, the reasons for such request and the issues, if any, of fact or law proposed to be controverted, or he may request that he be notified if the Commission should order a hearing thereon. Any such communication or request should be addressed: Secretary, Securities and Exchange Commission, Washington 25, D. C. At any time after said date, the application may be granted as provided in Rule N-5 of the rules and regulations promulgated under the act.

By the Commission.

[SEAL] ORVAL L. DUBOIS, *Secretary.*

[F. R. Doc. 55-5497; Filed, July 7, 1955; 8:50 a. m.]

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[File No. 812-944]

COLONIAL FUND, INC.

NOTICE OF FILING OF APPLICATION FOR EXEMPTION OF PURCHASE OF SECURITIES FROM UNDERWRITING SYNDICATE

JULY 1, 1955.

Notice is hereby given that The Colonial Fund, Inc. ("Colonial"), a registered, open-end, investment company, has filed an application pursuant to section 10 (f) of the Investment Company Act of 1940, for an order of the Commission exempting from the provisions of section 10 (f) the proposed purchase by Colonial of not exceeding 5,000 units consisting of one share of preferred stock, $3 Series, and common stock, 1¢ par value of McLean Industries, Inc. (formerly McLean Securities Corporation) ("McLean"). The number of shares of common stock of McLean to be included in each unit will be specified at a later date.

The application recites that James H. Orr and Stedman Buttrick, two of the seven directors of Colonial, are respectively a director of The First Boston Corporation and a partner of Estabrook & Co., investment banking firms, and that Russell Robb, one of the three members of the advisory board of Colonial, is a director of Stone & Webster, Incorporated, of which Stone & Webster Securities Corporation, also an investment banking firm, is a subsidiary. The application further recites that The First Boston Corporation expects to be among a group of investment bankers who will underwriter 148,000 shares of Cumulative Preferred Stock and a presently undetermined number of shares of common stock of McLean to be offered in units. Colonial has no knowledge as to whether Estabrook & Co. or Stone & Webster Securities Corporation will be included in the underwriting group or in any selling group that may be formed.

It is represented that the Board of Directors of Colonial has authorized the purchase by the Applicant of not exceeding 5,000 of said units subject to market conditions at the time of the offering. Such purchase is to be made from underwriters or members of the selling group, if any, other than The First Boston Corporation, or Estabrook & Co. or Stone & Webster Securities Corporation if they should be principal underwriters or members of any selling group, except to the extent that those firms might be

included if a purchase were to be made from White, Weld & Co., representative, for the account of the several underwriters.

Section 10 (f) of the act provides, among other things, that no registered investment company shall knowingly purchase or otherwise acquire, during the existence of any underwriting or selling syndicate, any security (except a security of which such company is the issuer) a principal underwriter of which is a person of which a director of such registered investment company is an affiliated person, unless the Commission by order grants an exemption therefrom. Since Orr, Buttrick and Robb are by definition under the act, affiliated persons of The First Boston Corporation, Estabrook & Co. and Stone & Webster Securities Corporation, respectively, the proposed transactions are subject to the provisions of section 10 (f) of the act.

McLean, a Delaware corporation, was organized on January 14, 1955. It is a holding company whose principal operating subsidiaries are: (1) Waterman Steamship Corporation, ("Waterman"), and (2) Pan-Atlantic Steamship Corporation ("Pan-Atlantic"). Waterman and Pan-Atlantic are principally engaged in offshore and domestic commerce, respectively.

It is stated in the application that the proposed purchase by Colonial of 5,000 of said units is consistent with Colonial's investment policies as stated in its registration statement on Form N-8B-1 filed with the Commission under the Investment Company Act of 1940 and in its registration statement on Form S-5 filed on April 23, 1954, under the Securities Act of 1933 and effective May 18, 1954.

If the Applicant were to purchase the entire 5,000 units, it would acquire 3.4 percent of the total offering, and assuming a price of $52 per unit (the proposed maximum offering price), the purchase would represent an investment of $260,000 or approximately 1 percent of the total assets of Applicant as at June 28, 1955.

Notice is further given that any interested person may, not later than July 15, 1955, at 1:00 p. m., submit to the Commission in writing any facts bearing upon the desirability of a hearing on the matter and may request that a hearing be held, such request stating the nature of his interest, the reasons for such request and the issues, if any, of fact or law proposed to be controverted, or he may request that he be notified if the Commission should order a hearing thereon. Any such communication or request should be addressed: Secretary, Securities and Exchange Commission, Washington 25, D. C. At any time after said date, the application may be granted as provided in rule N-5 of the rules and regulations promulgated under the act.

By the Commission.

[SEAL] ORVAL L. DUBOIS, *Secretary.*

[F. R. Doc. 55-5498; Filed, July 7, 1955; 8:50 a. m.]

## DEPARTMENT OF JUSTICE

### Office of Alien Property

STATEMENT OF ORGANIZATION AND DELEGATIONS OF FINAL AUTHORITY

The Statement of Organization and Delegations of Final Authority (18 F. R. 7895), as amended (19 F. R. 405), is hereby further amended as follows and not otherwise:

1. Subparagraph 4 (b) thereof is amended to read:

(b) *Legal and Legislative Section.* Under the supervision of the Chief, Legal and Legislative Section, this section advises on all legal and legislative matters generally affecting the operations of the Office of Alien Property. This section also is responsible for all matters relating to the liquidation of banking and insurance institutions under the control of the Office and all matters relating to the administration of patents, and rights or interests therein or related thereto vested under the Trading With the Enemy Act, as amended, or controlled thereunder by 8 CFR Part 507.

(1) The Chief, Legal and Legislative Section is authorized to exercise such powers and authority as may be necessary and appropriate in the performance of his functions.

(2) The Chief, Legal and Legislative Section, is authorized:

(i) To issue licenses with respect to vested patents, applications for patents, and rights or interests therein or related thereto; and to fix royalty schedules pertaining thereto;

(ii) To make demand for and accept payment of royalties and other moneys due the Attorney General with respect to vested patents, applications for patents, licenses and rights or interests therein or relating thereto; and to execute receipts, surrenders, releases or other instruments to evidence such action;

(iii) To execute powers of attorney and sign all papers for the necessary conduct of the business of the Office of Alien Property before the United States Patent Office.

2. Subparagraph 4 (e) is amended to read:

(e) *Liquidation Section.* Under the supervision of the Chief, Liquidation Section, this Section is responsible for matters relating to the operation or liquidation of business enterprises which have been supervised or vested, or in which interests have been supervised or vested, for the management and liquidation of vested real and personal property and for all matters relating to the administration of trade-marks and copyrights and rights or interests therein or related thereto vested under the Trading With the Enemy Act, as amended, or controlled thereunder by 8 CFR Part 507. This section also performs certain functions in connection with effectuating returns of vested property.

(1) The Chief, Liquidation Section, is authorized to exercise such powers and authority as may be necessary and appropriate in the performance of his functions.

(2) The Chief, Liquidation Section, is authorized:

(i) To issue licenses with respect to vested copyrights and rights or interests therein or related thereto; and to fix royalty schedules pertaining thereto;

(ii) To approve requests for loans of vested motion picture films and to enter into agreements concerning the use thereof;

(iii) To make demand for and accept payment of royalties and other moneys due the Attorney General with respect to vested copyrights, trade-marks, films, licenses and rights or interests therein or relating thereto; and to execute receipts, surrenders, releases or other instruments to evidence such action.

(3) The Chief, Liquidation Section, and within this Section the Chief, Collection and Custody Unit, and the Assistant Chief, Collection and Custody Unit, are severally authorized:

(i) To issue any demand, direction or instruction directed to any person, firm, or corporation or to take any other action necessary to effectuate a vesting order;

(ii) To take custody of any property or interest therein which is vested in, or is transferable or deliverable to, the Attorney General under the Trading With the Enemy Act, as amended; to accept payment, conveyance, transfer, assignment or delivery made to or for the account of the Attorney General pursuant to said Act; and to execute receipts, surrenders, releases or other instruments to evidence such action;

(iii) To waive compliance with any vesting order which vests a debt in a specific amount to the extent of normal service charges not to exceed $250.00 asserted by a claimant who would be entitled to a return of the amount of such charges if the vesting order were enforced according to its terms;

(iv) To direct the execution and delivery of transfers of vested property.

(40 Stat. 411, 55 Stat. 839, 60 Stat. 50, 925, 64 Stat. 1079, 50 U. S. C. App. and Sup. 1-40; 60 Stat. 418, 64 Stat. 1116, 22 U. S. C. and Sup. 1382; E. O. 8389, April 10, 1940, 5 F. R. 1400, as amended, 3 CFR, 1943 Cum. Supp.; E. O. 9142, April 21, 1942, 7 F. R. 2985, 3 CFR, 1943 Cum. Supp.; E. O. 9193, July 6, 1942, 7 F. R. 5205, 3 CFR, 1943 Cum. Supp.; E. O. 9567, June 8, 1945, 10 F. R. 6917, 3 CFR, 1945 Supp.; E. O. 9725, May 16, 1946, 11 F. R. 5381, 3 CFR, 1946 Supp.; E. O. 9788, October 14, 1946, 11 F. R. 11981, 3 CFR, 1946 Supp.; E. O. 9818, January 1, 1947, 12 F. R. 133, 3 CFR, 1947 Supp.; E. O. 9921, January 10, 1948, 13 F. R. 171, 3 CFR, 1948 Supp.; E. O. 9989, August 20, 1948, 13 F. R. 4981, 3 CFR, 1948 Supp.; Proc. 2914, December 16, 1950, 15 F. R. 9029, 3 CFR, 1950 Supp.; E. O. 10244, May 17, 1951, 16 F. R. 4639, 3 CFR, 1951 Supp.; E. O. 10254, June 15, 1951, 16 F. R. 5829, 3 CFR, 1951 Supp.; E. O. 10348, April 26, 1952, 17 F. R. 3769, 3 CFR, 1952 Supp.)

Executed at Washington, D. C., on June 30, 1955.

[SEAL] DALLAS S. TOWNSEND, *Assistant Attorney General, Director, Office of Alien Property.*

[F. R. Doc. 55-5473; Filed, July 7, 1955; 8:45 a. m.]

### E. M. VAN STEEDEN

NOTICE OF INTENTION TO RETURN VESTED PROPERTY

Pursuant to section 32 (f) of the Trading With the Enemy Act, as amended, notice is hereby given of intention to return, on or after 30 days from the date of publication hereof, the following property, subject to any increase or decrease resulting from the administration thereof prior to return, and after adequate provision for taxes and conservatory expenses:

*Claimant, Claim No., Property, and Location*

E. M. van Steeden, Burgemeester Meineszlaan 87b, Rotterdam, The Netherlands, Claim No. 41847, Vesting Order No. 248; $1,196.84 in the Treasury of the United States.

Executed at Washington, D. C., on June 29, 1955.

For the Attorney General.

[SEAL] DALLAS S. TOWNSEND,
*Assistant Attorney General,*
*Director, Office of Alien Property.*

[F. R. Doc. 55-5474; Filed, July 7, 1955; 8:45 a. m.]

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### D. C. SCHUTTE

NOTICE OF INTENTION TO RETURN VESTED PROPERTY

Pursuant to section 32 (f) of the Trading With the Enemy Act, as amended, notice is hereby given of intention to return, on or after 30 days from the date of publication hereof, the following property, subject to any increase or decrease resulting from the administration thereof prior to return, and after adequate provision for taxes and conservatory expenses:

*Claimant, Claim No., Property, and Location*

D. C. Schutte, 's Gravenhage, Nieuwe Parklaan 62, The Netherlands, Claim No. 41848, Vesting Order No. 248; $4,236.67 in the Treasury of the United States.

Executed at Washington, D. C., on June 29, 1955.

For the Attorney General.

[SEAL] DALLAS S. TOWNSEND,
*Assistant Attorney General,*
*Director, Office of Alien Property.*

[F. R. Doc. 55-5475; Filed, July 7, 1955; 8:45 a. m.]

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### LISE ENGEL ET AL.

NOTICE OF INTENTION TO RETURN VESTED PROPERTY

Pursuant to section 32 (f) of the Trading With the Enemy Act, as amended, notice is hereby given of intention to return, on or after 30 days from the date of publication hereof, the following property, subject to any increase or decrease resulting from the administration thereof prior to return, and after adequate provision for taxes and conservatory expenses:

*Claimant, Claim No., Property, and Location*

Lise Engel, Jerusalem, Israel; Eva Markus, Jerusalem, Israel; Jehuda Engel, Ramath Gan V, Israel; Claim No. 63166, Vesting Order No. 7382; all right, title, interest and claim of any kind or character whatsoever of Clara Engel and Theodor (Engle) Engel and each of them, in and to the Trust created under the will of August A. Katz, deceased, in the following shares to the claimants: Lise Engel 6/16; Eva Markus 5/16; and Jehuda Engel 5/16.

The above property is in the process of administration by the Bankers Trust Company, as Substituted Trustee, acting under the judicial supervision of the Surrogate's Court of New York County, New York.

Executed at Washington, D. C., on June 30, 1955.

For the Attorney General.

[SEAL] DALLAS S. TOWNSEND,
*Assistant Attorney General,*
*Director, Office of Alien Property.*

[F. R. Doc. 55-5476; Filed, July 7, 1955; 8:46 a. m.]

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### AUGUSTE KRAEMER

NOTICE OF INTENTION TO RETURN VESTED PROPERTY

Pursuant to section 32 (f) of the Trading With the Enemy Act, as amended, notice is hereby given of intention to return, on or after 30 days from the date of publication hereof, the following property, subject to any increase or decrease resulting from the administration thereof prior to return, and after adequate provision for taxes and conservatory expenses:

*Claimant, Claim No., Property, and Location*

Auguste Kraemer, 27 rue Anatole France, Basse-Yutz (Moselle), France, Claim No. 62396, Vesting Order No. 18755; $304.53 in the Treasury of the United States. Twenty-five (25) shares Franco Wyoming Oil Company $6 par value common stock, as evidenced by five (5) certificates numbered 48826, 55232, 56372, 56373, and 60679, and presently in the custody of the Federal Reserve Bank of New York.

Executed at Washington, D. C., on June 30, 1955.

For the Attorney General.

[SEAL] DALLAS S. TOWNSEND,
*Assistant Attorney General,*
*Director, Office of Alien Property.*

[F. R. Doc. 55-5477; Filed, July 7, 1955; 8:46 a. m.]

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### MARIA CONCETTA GUGLIELMI ET AL.

NOTICE OF INTENTION TO RETURN VESTED PROPERTY; AMENDMENT

A Notice of Intention to Return Vested Property to the hereinafter described claimants was published on May 19, 1955 (20 F. R. 3514). That Notice of Intention to Return Vested Property is hereby amended to include, in addition to the property previously described, the property hereinafter described and, pursuant to section 32 (f) of the Trading With the Enemy Act, as amended, notice is hereby given of intention to return, on or after 30 days from the date of the publication hereof, the following property, in addition to the property described in the Notice of Intention to Return Vested Property which was published on May 19, 1955, subject to any increase or decrease resulting from the administration thereof prior to return, and after adequate provision for taxes and conservatory expenses:

*Claimant, Claim No., Property, and Location*

Maria Concetta Guglielmi a/k/a Concetta Guglielmi Ferrante, Rome, Italy, Claim No. 57805; Rosa Guglielmi a/k/a Rose Guglielmi, Canneto, Italy, Claim No. 57806; Filomena Guglielmi a/k/a Philomena Guglielmi, Canneto, Italy, Claim No. 57807; Antonio Iacobellis, Canneto, Italy, Claim No. 57808; Domenico Iacobellis, Canneto, Italy, Claim No. 57809; Bernardo Iacobellis, Canneto, Italy, Claim No. 57810; Caterina Iacobellis, Canneto, Italy, Claim No. 57811; all right, title, interest and claim of any kind or character whatsoever of Concetta Guglielmi Ferrante, Rose Guglielmi, Philomena Guglielmi, Antonio Iacobellis, Domenico Iacobellis, Bernard Iacobellis, and Caterina Iacobellis, and each of them, in and to the Estate of Bernardo Guglielmi, also known as Bernard Guglielmi and Bernard Guleilui, deceased.

Giuseppe Pontrelli, Cesaria Pontrelli, Nicolina Pontrelli, Regina Pontrelli, Michele Pontrelli, and Leopoldo Pontrelli, all residing in Canneto, Italy, Claim No. 57812; all right, title, interest and claim of any kind or character whatsoever of Philomena (Iacobellis) Attolico in and to the aforesaid Estate of Bernardo Guglielmi.

Giuseppe Scuccimarri and Allegra Scuccimarri, Canneto, Italy, Claims Nos. 62857 and 62858, respectively; all right, title, interest and claim of any kind or character whatsoever of Marietta (Maria) Guglielmi-Seicimari in and to the aforesaid Estate of Bernardo Guglielmi.

All of the above described property was in the process of administration by Antonio Guglielmi, as Administrator of the Estate of Bernardo Guglielmi, acting under the judicial supervision of the Superior Court of the State of California, in and for the County of Los Angeles.

Executed at Washington, D. C., on June 29, 1955.

For the Attorney General.

[SEAL] DALLAS S. TOWNSEND,
*Assistant Attorney General,*
*Director, Office of Alien Property.*

[F. R. Doc. 55-5478; Filed, July 7, 1955; 8:46 a. m.]